The Long Reach of the Strong Arm: Evolving Forms of Transnational Authoritarianism

Edited by
Mubashar Hasan · Arild Engelsen Ruud

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Abbreviations

AA	Arakan Army
AAPP	Assistance Association for Political Prisoners
AI	Artificial Intelligence
AIGS	Artificial Intelligence Global Surveillance
ASEAN	Association of Southeast Asian Nations
BBC	British Broadcasting Corporation
BRI	Belt and Road Initiative
CCA	Computer-Related Crimes Act
CDM	Civil Disobedience Movement
CI	Confucius Institutes
CPJ	Committee to Protect Journalists
CSIS Act	Canadian Security Intelligence Service Act
CSOs	Civil Society Organizations
CTR	China's Transnational Repression
DDoS	Distributed Denial-of-Service
DGFI	Directorate General of Forces Intelligence
DSR	Digital Silk Road
DTR	Digital Transnational Repression
DTRG	Digital Technologies Regime
EFF	Electronic Frontier Foundation
EU	European Union
GANs	Generative Adversarial Networks
GDPR	General Data Protection Regulation
GPT	Generative Pre-trained Transformers
HRW	Human Rights Watch
LLM	Large Language Model

MICT	Ministry for Information and Communication Technology (Thailand)
NCGUB	National Coalition Government of the Union of Burma
NCPO	National Council for Peace and Order (Thailand)
NGO	Non Govermental Organizations
NITDA	National Information Technology Development Agency (Nigeria)
NLD	National League for Democracy
NSA	National Security Agency
NUG	National Unity Government (Myanmar)
OCCRP	Organized Crime and Corruption Reporting Project
OCI	Overseas Citizenship of India
ODNI	Office of the Director of National Intelligence
OHCHR	Office of the High Commission for Human Rights
PRMC	Public Relations Monitoring Cell
RAB	Rapid Action Battalion
RAW	Research and Analysis Wing
RBI	Remote Biometric Identification
RSF	Reporters Without Borders
SIB	Signal Intelligence Bureau
TCL	The Citizen Lab
TIB	Transparency International Bangladesh
TNR	Transnational Repression
UDD	United Front for Democracy against Dictatorship
UHRP	Uyghur Human Rights Project
UNESCO	United Nations Educational, Scientific and Cultural Organization
UNGA	United Nations General Assembly
UNHCR	United Nations High Commissioner for Refugees
USAID	United States Agency for International Development
VPNs	Virtual Private Networks

CHAPTER 1

Introduction

Mubashar Hasan and Arild Engelsen Ruud

Efforts to repress critics abroad are a disturbing and little-appreciated aspect of the contemporary wave of authoritarian strongman politics. It is a characteristic trait of authoritarian regimes to be sensitive to criticism, and the signs are that they are pursuing critics not just at home but increasingly also those in exile in foreign countries. While in the past, only a handful of truly autocratic regimes would actively pursue critics abroad (think of how Stalin had Trotsky murdered in Mexico), what we are witnessing today is that backsliding electoral democracies are joining established authoritarian and autocratic states in increasing efforts to repress critics—at home, certainly, and increasingly also those living in other countries. The transnational repression they all engage in, we argue, is an extension of their domestic compulsions. For authoritarian regimes,

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a multiplicity of voices is anathema to their claim to wide popular support. The compulsion to silence these voices extends domestic authoritarianism to other countries. This is what we here call *transnational authoritarianism*,, and it is a real and underappreciated aspect of the current wave of democratic backsliding.

There are important differences between elected but backsliding democracies and pure autocracies. The issue is that with democratic backsliding, an increasing number of states find themselves in the grey zone in between—not fully autocratic but also not democratic. They are variously known as 'flawed democracy', 'hybrid regime', 'illiberal democracy', 'electoral authoritarian regime', or 'electoral autocracy'. Because they seek to pass themselves off as democrats, these contemporary authoritarians tend to permit degrees of controlled criticism in government-friendly news media (Guriev and Treisman 2022). Mostly, they also hold constitutionally mandated elections even as these are stage-managed, and they allow individual citizens to let off steam within exacting limits on social media. But criticism by individuals who live abroad is more challenging to control and more dangerous because it can reach large diasporic communities, foreign governments, and international agencies. When this happens, criticism can hurt investments, risk arms deals, invite sanctions, and cause other forms of international embarrassment. This is so whether these critics live in Western countries with direct access to powerful international media or human rights organisations, or they live in neighbouring countries, or they live in basically any country with internet access.

Critics abroad can be a particularly challenging spanner in the works because their intimate knowledge of the situation back home upsets the narrative of a popular regime. Such critics may raise issues, spread contrary information online, and openly point to abuses—often while communicating with internationally connected news media or human rights networks. Others continue to organise domestic opposition forces from abroad or raise issues through wide-reaching opposition networks. Criticism that reaches citizens at home via online media or via groups of dissatisfied migrant workers can constitute a real threat to autocrats. 'Even my driver watched Pinaki on Facebook when he was waiting for me', said an informant in Bangladesh about the situation before the fall of Sheikh Hasina's regime in August 2024. Pinaki lived in France and was one of Hasina's fiercest online critics with millions of followers. Despite efforts, the Hasina regime was unable to stop him, and he is credited with a significant role in bringing down her regime.

This collection is about transnational repression as it is practised by Asian authoritarian strongman regimes. It is about how their sensitivity to criticism extends to their critics abroad. The collection does not seek to be comprehensive. It does not cover all relevant countries, and it does not attempt to give a full overview of the situation. It aims instead to show the many forms of transnational authoritarianism and how it becomes effective. At one extreme, there are the options offered by modern surveillance technology and social media. At the other, there is heckling by pro-regime activists or intimidation of relatives still living at home, or pin-prick harassment such as delayed consular services. Transnational repression efforts mostly target individuals and exploit their vulnerabilities, which is why it works. While outright assassination is still part of the arsenal, less violent forms can prove to be as effective and much less likely to attract negative attention. It is clear from this collection that even 'weak' states or nascent authoritarians, such as Laos or India, are joining this league of the infamous. They are doing so by learning from stronger or more audacious states, through collaboration or replication, or simply by embracing cost-effective methods.

To better appreciate the range in transnational authoritarianism and how it works and develops, the three cases that follow will illustrate some of the methods and their efficacy, and the challenges involved in identifying, classifying, and preventing them. Some go under the radar, as they are not strictly illegal, while others rely on advanced and ever-evolving technology difficult to detect. Lastly, there are cases that involve powerful and assertive states that many governments will think twice about tackling.

Case 1

In June 2023, a Canadian Sikh of Indian origin, Hardeep Singh Nijjar, was shot dead in a parking lot in the Canadian town of Surrey. Nijjar was actively involved in organizations working for the establishment of Khalistan, an independent Sikh country to be carved out of India. A few months later, Canadian Prime Minister Justin Trudeau told the Canadian parliament that 'Canada's national security apparatus has reason to believe that the agents of the Indian government carried out the killing of this Canadian citizen' (ABC News 2024). Indian authorities strenuously denied the allegations, and a severe diplomatic crisis ensued. The Indian government considers such separatists to be terrorists.

A few weeks later, the U.S. Department of Justice alleged that they had foiled an assassination plot against a U.S. citizen by Indian government operatives. As in the Canadian case, the target was a Sikh engaged in the Khalistan movement, Gurpatwant Singh Pannun. The Americans held that an Indian government employee identified only as CC-1 had directed one Nikhil Gupta to assassinate Pannun, and that Gupta had 'contacted an individual whom Gupta believed to be a criminal associate […] for assistance in contracting a hitman to murder the Victim in New York City'. The harrowing indictment then states that Gupta paid 15,000 dollars in cash as an advance payment for the murder—although to a U.S. undercover agent who posed as the criminal (Cherylann and Nadine 2024).

While these high-profile allegations against India are a new development for a democratic state, except the US, several cases of state assassination and abduction have come to light in recent years. Examples include the murder of critical journalist Jamal Khashoggi in the Saudi consulate in Istanbul; the poisoning with nerve gas of former Russian double agent Sergei Skripal and his daughter Yulia in the UK; and the kidnapping of Rwandan opposition critic Paul Rusesabagina.

Case 2

While cases of state-led transnational assassination or physical attack have made their way to international media and controversy, they belong to what we might term 'traditional' forms of transnational repression. Beyond assassinations and abductions, there are probably thousands of low-key attacks and cases of harassment from around the world that are only known to the handful of people directly involved. One reason is that, low-key transnational repressive attacks and cases of harassment often do not technically violate the law of the host country. Take, for example, harassment by proxy, when states go after their relatives back home as an indirect way of forcing an exiled critic into silence. The case detailed here, however, did gain considerable attention because of the immediacy offered by social media—although social media at the same time could be said to have only increased the ensuing mental agony.

The case involved Nazneen Khalil, a 69-year-old widowed poet living by herself in Sylhet town in Bangladesh (Rashid 2022). On 26 October 2021, around midnight, several armed policemen entered the premises of

her house and were aggressively knocking on her door. She later wrote on Facebook:

> Police came to my house and started threatening me to open the door. I live alone. I am not a criminal. My son Tasneem Khalil is a Swedish expatriate journalist. If my son is a criminal, is it my responsibility? Will I have to suffer these harassments due to my son's work, over and over? What should I do?

Tasneem Khalil, her son, is editor of Netra News, a Sweden-based investigative news site known to expose high-level corruption and human rights violations by Bangladeshi state agencies. He had been central to an Al-Jazeera documentary called 'All the Prime Minister's men' that exposed corruption and nepotism at the highest levels in Bangladesh and aired earlier the same year. He had also been charged with 'spreading rumours' and engaging in anti-governmental activities.

Tasneem, in an interview with us, said that even though physically safe in Sweden, mentally, he was in an extremely bad place. While his work was protected by Swedish law, his mother was in danger because of it. There had already been several other cases in which family members of critics had been slapped with criminal cases or imprisoned. In addition to this state harassment, his mother was also blamed by other family members for how her son's work abroad had jeopardised their security and lives. To add to his woes, Tasneem's other siblings, who also lived abroad, suffered mental stress and even depression because of this. In all, it naturally had a severe impact on Tasneem, who felt extremely unsafe and vulnerable.

However, feeling is a difficult qualifier when measuring transnational repression. Technically, the Bangladeshi state did not harm Tasneem's mother or charge her with any crime. Nor had any Swedish laws been broken. The only thing that had happened was that someone claiming to be from the police had knocked on her door late at night. The aim was clear, however, to intimidate and unsettle Tasneem, a known and influential exiled critic. As such, it was a case of transnational authoritarianism.

It is not unusual for authoritarian states to engage in similar behaviour. Relatives back home are easy targets when the aim is to silence dissenters and political opponents living abroad. They need not even be harassed by police or intelligence forces; often, regime supporters such as local bosses, employers, or neighbours are happy to play along. These techniques are

regularly used by China, Saudi Arabia, Russia, Pakistan, and several other states. Modern communication technology makes the harassment of their loved ones at home immediately known to relatives abroad, wherever they are, permitting fear to travel across the globe without delay. To Tasneem, the intimidation of his mother followed a well-known pattern: it transmitted fear without the opportunity to intercede.

While modern mass communication technology has added layers of effectiveness to such harassment by proxy, technological advances also offer opportunities for domestic intelligence agencies that enable them to depend less on harassing the innocent, and instead penetrate whole networks of critics and opposition activists.

Case 3

Despite living in London, Yahya Assiri, a former member of the Saudi Royal Air Force who had turned critic of the Saudi government, was not insulated from Saudi surveillance. At one point, he received a text message purportedly from the Saudi Justice Ministry saying he had a court hearing coming up, and he clicked the link. He soon realised that his phone was compromised, and it later became clear that it had been infected with the Israeli spyware Pegasus (Reuters 2024; Loewenstein 2023). According to Amnesty International, Pegasus can read someone's emails and texts, track keystrokes, and collect other data. Pegasus can be installed through malicious links like the one Assiri received, without the target ever knowing. Once the Saudi authorities had gained access to Assiri's phone, his contacts inside Saudi Arabia were arrested, tortured, and disappeared. The whole experience was like a nightmare to him, and he no longer felt safe even in London.

Domestic repression takes the form of digital surveillance in many states, but to extend this to critics abroad, at this technological level, still seems mostly confined to autocratic states in the Middle East, China, and a handful of others (Marcus 2020). However, even less rich, powerful, or autocratic states have allegedly bought and are employing Pegasus. These include India, Bangladesh, Thailand, and Indonesia. We have no known case of transnational digital repression of the kind Yahya Assiri was subject to from these countries. But the combination of known propensity to gag critics abroad, along with the knowledge that they have access to Pegasus, is sufficient to create apprehension and suspicion among the diaspora. A U.S. Intelligence Report from 2022 suggests that digital transnational

repression is increasing (Office of the Director of National Intelligence [ODNI] 2023).

There are other modes of transnational authoritarianism than those in these three cases. Moss (2016) interviewed Libyans and Syrians in the US and the UK who were apprehensive of a wide range of repressive strategies. These included assassination of dissidents by regime agents or proxies, verbal and written warnings, including summons to the embassy, and proxy harassments and attacks on family members back home (Moss 2016). Tsourapas (2021) and Wackenhut and Orjuela (2023) add surveillance, enforced disappearance, and passport revocation to our list of modes. As we shall argue and see more examples of in the pages that follow, such acts need not be violent to be effective. They often are, though, and the threat of potential violence is always an intrinsic part of the intimidation.

Another worrying feature of contemporary transnational repression is the many instances in which states are cooperating with each other to silence exiled critics. One striking example of this is from the Mekong region (Kurlantzick 2023). The governments of Laos, Cambodia, Thailand, Burma, Vietnam, and China have cooperated with each other on a number of instances to target dissidents. It is possible that this is an expression of Chinese leadership in these matters (Brown 2021; Kang 2023), or at least an indication of how states influence one another (Moynihan and Patel 2021). Together, these states have used brutal techniques such as assassination, enforced disappearance, kidnapping, and imprisonment, and they often succeed at keeping this sufficiently under the carpet to avoid international media glare. Such collaboration not only extends the reach of certain strong states but also of so-called weak states. This international collaboration adds technologically sophisticated surveillance to technologically simpler methods, such as police control or activist snitching.

Democratic Backsliding

Our contention is that transnational repression is intimately linked to democratic backsliding and the emergence of elected but authoritarian strongman leaders—in effect, as transnational authoritarianism. Political work and activism in exile is still within the long reach of such strongman regimes' arm.

In their ground-breaking report *Out of Sight Not Out of Reach: The Global Scale and Scope of Transnational Repression*, the Washington-based NGO Freedom House noted that authoritarian governments are actively employing repressive techniques such as kidnapping, assassination, assault through proxy, enforced disappearance, physical intimidation, spyware, Interpol red notices, detention in third countries, and rendition. These are methods employed to intimidate and silence their critics and political opponents. As Nate Schenkkan explains in our interview with him, for this particular report, because it was ground-breaking, they needed other forms of evidence than the victim's statements to triangulate the events and hence accusations. And still, the number of cases was high. They recorded 854 direct, physical incidents of transnational repression committed by 38 governments in 91 countries around the world between 2014 and 2022. For 2021 alone, it recorded 79 incidents in which 20 different governments employed violence and harassment to repress critics abroad.

In 2023, the International Institute for Democracy and Electoral Assistance (International IDEA), an intergovernmental organisation headquartered in Stockholm, noted that half the countries in the world are now 'suffering democratic decline ranging from flawed elections to curtailed rights, such as freedoms of expression and assembly'. All the countries that appear regularly in the focus area for this volume, South and Southeast Asia, such as India, Bangladesh, Thailand, Laos, and Myanmar, have seen a fall in their democracy ranking or are in a low stable position.[1] While these regimes may permit elections to take place, such elections are facades hiding a grimmer reality—with degrees of restrictive, authoritarian, and autocratic tendencies and a lower threshold for employing harsh methods against critics.

Repression, in general, refers to a state-led control mechanism when authorities aim at preventing dissident beliefs and activities that they deem as imperilling the political order and their authority (Dukalskis et al. 2022). Therefore, repression is tied to the forceful assertion of political authority. Domestic political authority is typically exercised through networked infrastructures of institutions such as police, courts, spies, and

[1] The fate of Bangladesh's democracy after the so-called Monsoon revolution in July/August 2024 remains unclear, if hopeful. And Thailand's democracy ranking experienced a jump up after the 2018 election although it remains in the 'not free' category for Freedom House.

parliaments. Repressive actions therefore aim to threaten individuals or groups with sanctions and keep them under control, and ensure that the targeted individuals or groups abide by the political authority (Moss 2016; Dukalskis et al. 2022). Transnational repression denotes the practice of extraterritorial state repression, where states extend their political boundaries to exert a degree of control over their citizens abroad. In this sense, dissidents living in exile, never really exit from the state's authority but remain 'subjects' of the home government.

It is an 'illiberal paradox' (Tsourapas 2024) that many authoritarian governments both encourage migration and seek to control these citizens in places where control is more difficult. There is an increasingly comprehensive literature on these spatial aspects of contemporary authoritarianism in diaspora politics (Gamlen 2014; Itzigsohn and Villacrés, 2008; Ragazzi 2014; Hollersen 2012; Moss 2016; Wackenhut and Orjuela 2023; Dukalskis et al. 2022). Diaspora communities are important to the authoritarian governments for several reasons, including economic remittances, to relieve demographic pressure domestically, as a resource base for political campaigns, or as vehicles to their foreign policy interests (Wackenhut and Orjuela 2023; Brand 2010; Tsourapas 2015). States like China, Rwanda, and Turkey employ a broad understanding of diaspora that effectively ensures that diaspora communities never exit the home state's political authority. This applies particularly to first-generation diaspora and exiles, while second-generation diaspora tend to be more strongly grounded in their adopted country. But authoritarian regimes also target this generation and seek to co-opt them to pursue their agenda of silencing critics.

Our Collection Makes Several Interpellations

First, we highlight the broad range in forms of transnational authoritarianism. There are the ever-evolving technological advances and the opportunities this development affords state agencies; then there are old-fashioned assassination and abduction; and, above all, simple forms of intimidation such as hidden threats, harassment by proxy, and pin-prick harassment, including heckling, or denial of consular support. This range is important for several reasons. The pin-prick forms of intimidation effectively discourage regime criticism among large diaspora communities more efficiently than high-profile assassinations. Pin-prick harassment also permits relatively 'weak' states and nascent authoritarians considerable

leverage against their foreign-based critics. Pin-prick harassment engages consular staff or activist diaspora supporters and permits an expansion of transnational repression even to those states that might hesitate to use more violent forms. Even less coercive regimes can engage in such forms because they are not seen as illegal or even as state-induced. When diaspora supporters of the regime choose to heckle a critic, is that state repression?

This range of modes of transnational authoritarianism is addressed in several of the contributions. The technological high-end is particularly brought out in Rumela Sen and Nusrat Farooq's chapter, which highlights the rapidly evolving landscape of technological innovation and how this feeds into forms of transnational digital authoritarianism in Asia and beyond. The launch of artificial intelligence software, including ChatGPT, illustrates how rapidly the landscape is changing. Their chapter is a fascinating run-down of forms and techniques, including issues such as surveillance technology, generative AI, and online harassment campaigns, and it discusses the important topic of poor regulatory frameworks. While Sen and Farooq detail the technical aspects of surveillance, Monique Taylor outlines the political aspects and the stark consequences of Chinese surveillance technology as it is exported to other countries—although, as she also points out, surveillance technology is not a Chinese monopoly. The Israeli spyware known as Pegasus, is a favourite among backsliding democracies and has allegedly been bought by Indian, Bangladeshi, Thai, and Indonesian governments. The long list of people who have been targeted by Pegasus spyware alone is a testimony to how extensive such surveillance technology is being employed by backsliding democracies such as India and more established autocracies. Taylor's chapter includes a particularly important discussion on the challenges involved in regulating misuse of this technology. It was written while Joe Biden was president of the United States of America. Now, after the inauguration of Donald Trump's second presidency, the struggle is likely to be considerably more difficult.

Other modes of transnational authoritarianism are found in other chapters. Among the many modes employed against Ashok Swain, as detailed in the interview with him, are online heckling and state harassment. Indian institutions sought to silence him by illegally withdrawing his citizenship rights. And when these were restored after a long (and to Swain costly) legal process, they were again withdrawn, again illegally. This is a classic case of harassment. Again, he was not denied due legal evaluation

of the withdrawal, and once cleared by the court, his rights were restored. But the time, costs, and worries were his to bear. Similarly, the many harassed exiles portrayed by Mubashar Hasan in his chapter tell of the withholding of consular services, and suspicious-looking men appearing near their house. A particularly gruesome mode is that mentioned by Dilnur Reyhan, 'the Egyptian roundup', where hundreds of Uyghurs were abducted and repatriated. Reyhan also describes the many and flexible modes of repression Chinese authorities employ, including online surveillance, harassment by diaspora activists, phoney reports of illegal activities to the French police, and emotional blackmail.

A second point we make through this book is that collaboration with autocratic states permits states in the grey zone—not fully autocratic—to engage in repression across borders. As mentioned above, a number of states in Southeast and East Asia, including China, Thailand, Cambodia, Laos, Vietnam, and Burma, collaborate with each other to kidnap, murder, and imprison their dissenters. The literature on transnational repression does not adequately emphasise this phenomenon of repressive intergovernmental collaboration, and Glasius (2018) does highlight a lingering 'methodological nationalism' in authoritarianism studies. In general, Erdmann et al. (2013) argue, scholars overlook the phenomenon of collaboration among authoritarian regimes, and it remains a matter of marginal study. They point out that authoritarian regimes do in fact collaborate in a number of ways: providing one another with ideational and material support, protecting one another at the international level, helping one another on military- and security-related issues, and learning from one another in how to deal with opposition (Erdmann et al. 2013; also Brownlee 2012). Not only does an authoritarian regime stretch out a helping hand to another authoritarian regime, but they also together diffuse the idea of authoritarianism as a viable and efficient political alternative to democracy.

Naung Naung, in his chapter, delves into the underexplored issue of cross-border repression by the Myanmar military regime. This regime has employed tactics ranging from illegal deportations, passport revocations, and abductions to stifle dissent among diaspora communities and to silence exiles who support the pro-democracy movement. For instance, Thai immigration authorities forcibly repatriated three Myanmar opposition activists, exposing them to significant risk of persecution and human rights abuses. Thai authorities have collaborated with the Myanmar regime in this, in effect limiting opportunities for oppositional

activities among refugees from the Myanmar oppression and violence. The point about Thai authorities' willingness to facilitate and collaborate with neighbouring autocrats is also brought out in Karin Zackari's chapter. Zackari highlights how the Thai state's repression of dissent is a recurring pattern from the 1950s military dictatorship through to elected governments of the late twentieth and early twenty-first centuries. Since the latest military coup in May 2014, state actors have expanded the reach of domestic and transnational repression targeting dissidents across borders—including the murder and forced disappearances of Thai nationals in Laos and Cambodia. Thai state repression offers a particularly interesting case study for being simultaneously clandestine and visible; the repression functions within and furthers a cultural logic where images of power and the simultaneous construction of loyal subjects are key.

A third point that emerges from this collection has clear policy implications. Authoritarianism, writes Glasius in her highly pertinent 'What authoritarianism is… and is not', is about 'sabotaging accountability' and disabling citizens' access to information and disabling their voice (Glasius 2018, s. 527). When Australian journalist Loewenstein (2023) asked Saudi activist Assiri (above) why Saudi authorities went after him in the UK, Assiri replied, 'they don't want anyone to speak up, to tell the truth, to defend human rights'. For authoritarian governments, silence is king.

While the literature on transnational repression is helpful, it has fallen short of emphasising the context in which transnational repression has increased, that of broad democratic backsliding, and more attention is needed to underscore the impact of transnational repression for democracies. The rise of transnational authoritarianism does not happen without consequence. Liberal democracies are also under attack. When exiled critics, investigative journalists, commentators, human rights activists, or politically active members of a diaspora are being targeted, the country of their exile is also under attack. The democratic quality of host states is severely damaged when exiles cannot freely express their opinion and exercise their freedom. In a sense, democratic backsliding in countries far away means democratic backsliding in host countries as well.

In his chapter, Hasan shows how the apprehension and fear that Bangladeshi authorities cultivated domestically were replicated abroad, among exiles. The draconian laws applied at home were somehow made to apply abroad as well. The interview with Swain and the chapter by Reyhan both contain telling examples of how authoritarianism at home spills over and extends to affect critics abroad. Most notably, Reyhan's

chapter draws on multiple cases to show how China employs a variety of legal tools available in democratic countries to attack prominent public figures, researchers, and activists, whether of Uyghur origin or foreign nationals. The chapter by Lisa Knight does so in particular, on the lived experiences of Bangladeshi expatriate writers. The case of these 'secular progressive exiles', as she calls them, is interesting because they have been targeted not by the rulers themselves but by associates of the rulers. They have been accused of blasphemy, not by the ostensibly secular government, but by militant religious groups that the rulers chose to accommodate. The apprehension created at home is replicated abroad—to the extent of isolating the exiles even further.

This aspect may have been overlooked because most of the targets of transnational repression are of refugee or diaspora background. They tend to feel marginalised, isolated, and vulnerable—which they often are. As the chapters show, this increases the effect of transnational authoritarianism and undermines the quality of democracy even in free countries.

Within the realm of policy, the situation is rapidly changing. Strong Canadian and U.S. criticism of India's alleged assassination programme, and the closure of secret Chinese police stations in several countries, suggest that policymakers are becoming aware that transnational authoritarianism is undermining democracies in the West. The wide range of forms of harassment, including the pin-prick forms, the heckling, the denial of consular services, and the harassment of proxies—family members back home—are very difficult to counteract. This is why awareness is crucial as a first step. Unless we know it is happening, and we know how it is happening and what to look for, transnational authoritarianism will continue to flourish. As the rise of hypersensitive strongman leaders seems to continue unabated, critics who flee abroad to save themselves will find that they are only somewhat free and never entirely.

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CHAPTER 2

Freedom House and the Transnational Repression Project

Nate Schenkkan, Mubashar Hasan, and Arild Engelsen Ruud

Q. Tell us about how Freedom House became engaged in working on transnational repression.

A. After the coup attempt in Turkey, in 2016, there was an enormous wave of transnational repression coming out of Turkey—one that's still continuing. It was really shocking to many, certainly to me. It was a campaign of renditions and of kidnappings all over the world. It took some time to process what was happening and how big it was. The

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first thing I wrote about transnational repression was in January 2018, a relatively long article for *Foreign Affairs*,[1] about Turkey's campaign of kidnappings and other forms of transnational repression. At that point, it had been going on for about a year and a half and had already affected dozens of people. After I wrote the article, Turkey continued to kidnap people, and the relevance of the issue became even more apparent.

A lot of work on transnational repression had been done already. John Heathershaw at the University of Exeter was leading quite a bit of it. Along with Saipira Furstenberg and Edward Lemon, who were postdocs and doctoral candidates at Exeter, John had created what they called CAPE, the Central Asia Political Exiles database. This was a database basically of the trajectories of political exiles from Central Asia. Heathershaw used the database in a book written with Alex Cooley called *Dictators without Borders* and published in 2017. In this book, they documented the patterns of ways in which authoritarian actions were globalized. That database was really interesting, very valuable, and very comprehensive. In 2018, Ed Lemon and others organized an academic workshop at the Harriman Institute at Columbia University, where he was a postdoc working alongside Alex Cooley, with some 20 or 30 people with different perspectives. There were many very fruitful conversations, but one of the things that came out of it was that we did not really have a global perspective on transnational repression. We had different scholars doing different portions of it, either from a theoretical or thematic perspective, or from a country- or region-specific perspective. And it was the same with human rights groups like Freedom House. Human rights groups were doing different parts of this, looking at, say, Central Asia or Southeast Asia. And we could say from that, look, we know we have this problem of cooperation across borders and extraterritorial targeting of dissidents in this particular region. But we did not have a bigger framework or any comprehensive look at it.

So, in 2019, we took on the kind of challenging task of answering that question on a global scale and scope at Freedom House. COVID-19 ruined a lot of plans for more engagement and our planned publication schedule, but in the end, we published the first big report in February 2021. The goal was to create a framework for understanding transnational repression, and produce some relatively firm numbers on the scale and

[1] See Schenkkan (2018).

scope. And so, we had to make a lot of hard choices. How do you define these things? How do you do it in a way that might be sustainable and relatively accurate? But I think we accomplished it fairly well. The results have held up, and they have been sustained through a fair amount of scrutiny and a fair amount of additional work on our part.

Q. When you came back from the Columbia conference to Freedom House, how did you convert this idea into a project?

Answer: A good question. Freedom House is principally project-funded, which means that we apply for grants. A lot of Freedom House's work is funded by the U.S. government's State Department or the United States Agency for International Development (USAID), but this is not the kind of work that those institutions normally fund. The original project was funded by two small private foundations. It took maybe a year of writing a proposal, pitching the project, explaining the idea, and putting together documents. We were fortunate in that. We did find foundations that were very open to the ideas and willing to be flexible, especially when, due to COVID-19, we could not hold in-person workshops or go to as many places to interview people in-person as we had originally said.

Q. And did you have the contacts of the dissidents already? How did you reach out to them?

A. That's a good question. It is sort of complex, right? Obviously, again, Freedom House is a very large organization with field offices all over the world, program officers, and others who work with activists on the ground. And so, to some degree, we were able to leverage those connections, to do research and to identify incidents, to identify people for interviews, and to make those contacts. In other ways, that was not always possible. There were certainly areas that was not possible. One of the key things that we committed to from the beginning of the work was that we would not restrict it to human rights defenders or civil society activists. And that, I think, is a very important idea. This is not always discussed or addressed clearly in conversations about transnational repression, because most people who are targeted with transnational repression are simply not human rights activists. There are, of course, human rights activists who are targeted, but they are not the majority.

Q. Who are the most targeted?

A. We have written about that a lot. Many of them are political activists who do not have a human rights component to their work. Depending on which origin country, we're talking about, a lot of them might just be former insiders, people who've kind of defected from the regime or been perceived as a threat because of what they know or what they've seen and are now abroad. A lot of them are religious or ethnic minorities, targeted just on the basis of their identity. And it really isn't about something they've said or done, but about who they are. Obviously, a very famous example is the Uyghurs, who are targeted on the basis, essentially, of just belonging to this group. And there are other countries where it's even a broader category; essentially just belonging to a national group can make individuals subject to transnational repression by their origin country. So that was very important. And in those cases, to go back to the original question, we had to seek ways to engage with people who are outside, perhaps, of Freedom House's network of contacts. Freedom House has contacts within various communities all over the world. And we have ways of snowballing into those conversations. But sometimes, we have had to widen it and look outside of the usual purview of human rights defenders and civil society activists, the kind of core people all of us talk to every day.

Q. The first report, "Out of Sight, Not Out of Reach,[2]" which you co-authored with Isabel Linzer, is quite groundbreaking. How long did it take you to put it out, and was there an advocacy strategy you wanted to accomplish with it?

A. We started that work in the late summer or early fall of 2019. At that point, we had already engaged with a lot of different scholars, and I had already written several things publicly, primarily about Turkey. We had also done some data collection for the various proposals, based on other Freedom House reports, where we scraped secondary sources and did some data collection of a rudimentary sort. The bulk of the work was done between late summer 2019 and early 2021, about a year and a half.

As far as advocacy strategy or approach is concerned, we're an organization that is always focused on our impact and on policy discussions. We're always looking for ways in which the work that we do is going to change or can change things. So, there was an element of that, but it

[2] See Schenkkan and Linzer (2021).

was not necessarily different from our other reports. Our aim was essentially to do good research, write a good report, and then try to talk to the people who might be relevant, particularly in the United States and the European Union, where we tend to have better ties, especially in the United States.

We released the report in early February 2021, which, in the United States, was an extremely fraught time. We were only a month after the 6 January mob attack, and there had been two or three weeks where no one was really sure if President Biden's inauguration would happen. Originally, we'd intended to put out this report in mid to late 2020, but it got overwhelmed by political events, and also by our own workload. And so, we ended up putting it out essentially two weeks into the new administration in the United States. It turned out that this was extremely fortuitous. I don't think I can say with complete confidence why it was fortuitous, because I don't really know what they were thinking, although we talked to people in the administration. But we know that they saw this report and thought it was really important and decided to jump on it. Some of that I think was a downstream effect of what had happened on January 6, 2021, and under the Trump administration. Because of that, Biden had come into office promising not just to save democracy in America, but also to advance a global agenda to address the struggle between democracy and authoritarianism.

In many speeches, especially in his first year, he talked about this quite a lot. And the report really slotted into that. For that reason, the report received enormous interest and a lot of appetite for understanding it and for more briefings on it. I wouldn't say this is completely unheard of for us, as we get a lot of engagement and spend a lot of time talking with policymakers, but this topic was definitely unique and interesting, and something that didn't have any kind of established pathways. There was no office on transnational repression or anyone who was obviously going to take it up and push it. But people became genuinely very, very interested in the report and saw an opportunity to push ideas in it forward.

Q. Then it was all over influential media—*Washington Post*, *Time Magazine*, everywhere. And some of the cases in the reports are really quite attention-grabbing. How did you use the report in Biden's Democracy Summit? And what is the plan now?

A. We're obviously very conscious of using the media as a vehicle for translating these reports into concerns and making them accessible. And we try to do that without dumbing it down, at least not too much. We try to be clear while still being accessible. And that's certainly been a part of the engagement with this issue. For a lot of people, it translates this concern about authoritarianism or autocracy into something that they might understand more in their community and that involves people who are around them. For people who live in diverse societies and have diverse relationships, this helps understand the world around them. And we've seen that in a lot of our conversations over the years, including with people who are not really involved in this kind of matter at all.

We've had conversations about transnational repression where it's like a switch goes off, where people say, "Oh, I didn't realise that this colleague or this person who goes to church with me, or this person who I know from my school or my kids' school, might be grappling with this." And these are people who don't work on authoritarianism, human rights, or in international human rights advocacy. This is where I do think it's a way of helping. From an instrumental perspective, that is very much helping people understand what this new global authoritarianism looks like.

In the summit, we did a ton of work on this for the first summit in December 2021. The preparations for the summit were a bit messy, with COVID-19 still ongoing, and all the problems for the U.S. government as the primary organizer of whom to invite and whom not to invite, especially with all the edge cases, like India, Hungary, and Turkey. Some of these cases were invited, maybe because it's strategic. The second summit, in April 2023, had more of an explicit structure to it. And it did have some components that were explicitly focused on transnational repression.

From the perspective of our biggest goal at this point, our overarching goal is to institutionalize an approach to transnational repression and make sure that countering transnational repression is an issue and a policy approach that is going to survive different political waves and different administrations, or governments in other countries. It has an institutional basis that lives beyond one single political moment. In saying that, we're thinking about the Biden administration, particularly, but I think it applies all over the world, to Australia and the UK and Canada and Germany, as well as to Turkey and Thailand. As far as a kind of groundedness and certain commitments go, the summit was just one tool, one step among many toward that institutionalization. What we eventually landed on was writing a declaration of principles to counter transnational repression,

which we drafted and had different governments that worked with us try to push it out and get it basically signed by different governments.

It currently lists nine governments. It is a declaration and, thus, a political statement, not a legal statement.[3] It is not a treaty, and it is one element among several. We continue to use it when we engage with governments. It makes it easier for us, though maybe not easy for them, depending on the government. For us, the declaration offers a way to enable governments to show their commitment by signing onto this. If they sign onto it, we can come back to them and say, you signed this thing but you're doing this other thing that's clearly violating the declaration.

But there are other elements, too, that are ongoing. Some behind the scenes, others more publicly, with a lot of different governments. Some of them are just as political in the sense of political commitments rather than legal commitments, some of them are more grounded in law, or more deeply institutional. And in those cases, we're definitely trying to push that forward and try to reach a point where this is an issue that sticks, that it isn't something that dies off after a couple of years. We are feeling pretty good about that.

Q. We want to talk to you about the dataset, about what gets included. Your colleague, Research Associate Grady Vaughan, told me that you did not include in the dataset events that are not physically threatening. In Bangladeshi cases nowadays, they're attacking families, taking away assets, and even trying to create division within families. It is not the person living in exile who is physically affected, but his family at home. So, his mind is being affected. Would you not call that too transnational repression?

A. We do consider it transnational repression. In the workshops we did with scholars as we were developing the first report, one of the original things we ran up on early was how to create a dataset that is comprehensive, and even if not entirely comprehensive, at least genuinely representative, from a data perspective, and that would allow you to draw some conclusions about how states go about this differently, and about who does what. These are our core questions. We had to make a lot of hard choices for that. There were two really hard questions. One is that we cut off the date that the dataset covers, so it only starts in 2014. We

[3] See Freedom House (2023).

really felt older cases were not possible, at least not with our skills. I would be interested in older cases, but I'm sceptical that it's within anybody's skills or even within the realm of possibility to create a quality dataset that goes back much further in time. We could talk about a few years, maybe even a decade, if you were really, really good at data scraping and had an army of research assistants. But we're talking about compiling a dataset that we knew would be shared. So, we knew there were ethical issues that we had to navigate. We weren't going to be able to get consent from everyone who would be listed, and for that reason, we needed to confine ourselves to publicly available incidents that we could find in some public confirmation.

That doesn't mean we don't have additional information that we've obtained through our research, other kinds of confirmation, interviews, and things that have backed it up. But essentially, we need to have something in a public source that establishes the information that's contained in the dataset. This also means that we're not putting a target on someone's back again who has not previously been publicly identified. And to do that, going back in time, I think just gets very, very tenuous. For example, what are your sources? As you go further back, it just gets harder and harder to obtain detailed recordings of these things. And so, we decided that we'll start in 2014. That seemed manageable at that time. It meant six full years.

The second hard choice we made is about direct physical tactics. Again, it was a similar problem. What you're describing is what we call coercion by proxy, family intimidation. Digital threats are the other big category that's relevant here. What we found, and what we knew from talking to dissidents and others being targeted, is that this is simply everywhere. You can talk to anybody from a targeted group, or from a country in which there's a large degree of targeting, and you'd find literally thousands or tens of thousands, or hundreds of thousands of incidents. You could just keep going; you'd never run out.

So, if I were to interview members of a PRC origin diaspora group and set as my goal quantifying how many incidents there were, I could spend years interviewing people and never reach the bottom of people, whose family members have been threatened in China. You would just never run out of those cases. And so, you'd never literally find out how many there were.

For those reasons, we decided to narrow it and focus on the ones that we could establish with the criteria that we'd set. That would allow us

to talk more concretely as well in more depth about some of the more violent and flagrant cases: renditions, assassinations, assaults, and the sorts of incidents that could be addressed through certain policy instruments.

This shaped the dataset at the time when we wrote the first report. What we always try to do is bring in all these other elements, other tactics, other dimensions of the problem, and make sure that we're very clear about their importance and the weight that they have in all of this. Because they do take an enormous toll, they have a lot of impact on people, so we just try to reinforce this even when we can't count them. In the same way, the dataset is, in some sense, kind of crude. It's like a counting exercise. It isn't sophisticated data work. We count them and try to code them in ways we think are helpful for our questions. But if you're counting things manually, it has to be a manageable number of things. And we didn't know how many things we'd have when we started. It quickly got into the hundreds and eventually close to over 900 [as of the update incorporating 2023, it contains 1,034 incidents]. That's a lot to process in the way we analyze it, because we're basically doing this counting exercise and qualitative analysis on top of it. We're not doing anything else. Marcus Michaelsen[4] and Kris Ruijgrok recently published a paper where they were doing some more quantitative stuff with our dataset. That's great. We just didn't see that as our slot, I guess.

Q. What is the difference between transnational repression and global authoritarianism? We have seen the terms used interchangeably when they refer to your reports.

A. Our view is that this is a subset of global authoritarianism. This is a part of the problem of global authoritarianism. There are a few different concept sets that have been put out there about global authoritarianism. Chris Walker at the National Endowment for Democracy has called it "sharp power."[5] I think we were trying to fit somewhere underneath both of those: a narrower field than those, subsumed under them. I would say global authoritarianism includes tactics that don't directly seek to coerce individuals. Transnational repression, on the other hand, requires that there be this effort to coerce, to silence a specific individual in a specific place by a government. It can be done in indiscriminate ways,

[4] See Michaelsen and Ruijgrok (2024).

[5] https://www.ned.org/sharp-power-rising-authoritarian-influence-forum-report/.

where maybe the origin state isn't cognizant of exactly who that individual is, but it has to be targeted and has to be intended as coercion of a person who is not a state representative—with a little caveat for the former insider category of people who defected.

But you have other forms of global authoritarianism that aren't coercive, like the reshaping of norms at the international institutional level. You have the buying of influence and reputation laundering through the dispersing of money, and things like that. And high-level corruption or related schemes in order for authoritarian states to buy influence. You have the PR component of it, which I do think is relevant for global authoritarianism. So, global authoritarianism is a bigger concept than transnational repression.

Q. We fully appreciate the methodological challenges you have had and the decision to confine the dataset to physical attacks. But other forms of transnational repression may have much the same outcome, which is to silence people?

A. Yes, and what we've tried to do with those other tactics and issues is to bring them in without trying to quantify them or trying to make them into a dataset. The other component to this is that they might have very different policy responses. And this was always in our mind when we were working: so, what would you actually do about this? If you were a host state, what should host states do? Our second report, Defending Democracy in Exile,[6] which Yana Gorokhovskaia and Isabel Linzer put out, was explicitly about the different ways you would respond. And obviously, once you think about it a bit, it would have to be very different from a physical encounter, someone physically being followed or potentially being attacked versus someone being digitally surveilled, having spyware inserted on their phone, or receiving digital threats on the telephone, on Facebook, or on WhatsApp. So, we decided to divide those up and try to talk about that realistically, including with the policymakers whom we talk with.

And I think that has been constructive. There has been a big push back on commercial spyware from various parties. This isn't just about our work, of course. Citizen Lab has been working on that for many years, and a lot of other people have worked on that problem. David Kaye, the

[6] See Gorokhovskaia and Linzer (2022).

former Special Rapporteur for Freedom of Expression, wrote about it in one of his reports at a relatively early stage. These are pretty established as problematic areas. But you've seen a bit more movement on a policy level to start to address it. Transnational repression framing helps people conceptualize what the problem is or what the threat is, and why they really need to care.

But, of course, the issue of the proxy, from a policy perspective, remains the hardest thing. What do you do when the actual action is taking place in a different jurisdiction? From a legal perspective, if it's taking place in China or some other country, if a person is going to a family member's house and threatening them, how do you even plausibly have legal jurisdiction? How do you actually impose any kind of consequence or response to that? There are different versions of this that are coming into view, and we'll see whether they can work. But I think separating that from the problem when a guy comes to someone's house in Brooklyn with an AK-47 is a good idea, because from a policy perspective, the latter may be a little easier to address.

Q. Do you see any changes over the last six, seven years that you've been working on this? Do you see any changes in how transnational repression happens? New countries coming up or the number of transactions?

A. We're always asking that. And trying to figure it out. I'm not sure we have a perfect answer right now. Certain things are obviously time-bound. Russian-origin transnational repression has changed since the full-scale invasion of Ukraine, because the Russian diaspora is very different. Many people have fled, and millions more have gone into the diaspora, including a large number of activists. And the Russian state earlier didn't care about those people very much in terms of whom it targeted for transnational repression. That was one of the unique features we wrote about in our case study of Russian transnational repression in 2021 (Freedom House 2021). They weren't really interested in these kinds of civil society, human rights activists. But now that some of them are anti-war activists and the Russian state has gotten even harder line than it was, they are going after people in its "near abroad" in places like Kyrgyzstan, Armenia, Kazakhstan, where the Russian security services have a lot of reach and can be much more aggressive. So that's a very specific time-bound kind of change.

We're constantly trying to see if there have been changes in some of the other tactics, and we try to evaluate and understand whether there's

adaptation going on. But outside of things that are specific to specific origin countries, I don't know that we have enough information to really evaluate it. To give two examples, one concrete thing that has happened recently is that there have been a couple of renditions in the Arab world that appear to have been coordinated through something called the Arab Interior Ministers'[7] Council within the Arab League. Even for us, and we've done research on this and talked about a similar mechanism within the Gulf Cooperation Council in the original report, this wasn't something that we were particularly aware of, or many people working very specifically in the Middle East human rights community were aware of. And yet they coordinated a couple of these incidents, it appears. So is that just opportunistic, or is that because of changing geopolitics? In this particular region, where the states are cooperating through different mechanisms, it's hard to say.

To give another example of the difficulty of evaluating what's changed, there's obviously been a ton of attention from U.S. authorities on transnational repression against people of PRC origin, including Uyghurs, Tibetans, and also Han Chinese and Hongkongers. We had claims from some conversations that, because of the U.S. law enforcement attention, perhaps the CCP authorities in the United States, who were operating networks for transnational repression, were keeping a little lower profile, being a little less aggressive. And then Xi Jinping goes to San Francisco in November 2023, and there are brawls outside the hotel. From what we can tell and from some of the conversations among activists from China, many of these were instigated by organized groups of pro-CCP thugs out there, starting fights and attacking protesters. And so, there goes that hypothesis. We had thought we were getting a grip on something; we thought, maybe we had a trend, and nope, maybe we don't. It's so hard to know, right? Because the things we're trying to study are by design intended to be covert, or at least the results are intended to be. In many cases, they want to show that they did it to scare people. But the mechanism is supposed to be covert. Right? You're not supposed to show how you did it. And so, it can be very hard to tell what you don't know, to say what's there when you don't see the result.

[7] Mena Rights Group (2023).

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CHAPTER 3

AI-driven Digital Transnational Repression: Past Lessons, Present Challenges, and Future Directions

Rumela Sen and Nusrat Farooq

Introduction

Digital transnational repression (DTR) refers to the use of digital tools and techniques by governments, often authoritarian or non-democratic regimes, to target and harass activist individuals, groups outside their own borders. This form of repression is labelled "transnational" because it extends beyond a nation's borders, and aims to control and suppress perceived threats or opposition both domestically and internationally. Although there is a growing body of literature on transnational repression and its impact on freedom, rights, and democracy worldwide (Dukalskis

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et al. 2022; Michaelsen and Ruijgrok 2024; Michaelsen and Thumfart 2023; Moss 2016), rapid innovation in digital technology has introduced a paradigmatic shift in the repressive capacity of governments that seek to constrain and counter dissenters abroad (Michaelsen and Thumfart 2023). It typically involves a range of tactics, such as digital surveillance, deployment of spyware, phishing and hacking attacks, doxxing, online harassment, and disinformation campaigns on social media, and other digital means, to monitor, intimidate, or harm individuals or organizations who are critical of the government or its policies. Digital transnational regression has become a growing concern in an increasingly interconnected and digitally dependent world.

This chapter surveys continuities and changes in transnational repression, focussing primarily on the changes between pre- and post-generative AI phases, including the evolution of tools and techniques between the two phases, highlighting specifically how these tools progressively magnify the scale and impact of transnational repression. It is important to emphasize that even with new emerging technologies, DTR remains a distinctly violent enterprise.

The first section of the essay discusses the transition from various traditional forms of DTR in repressive regimes like China and Russia, including internet blackout, facial scans, digital espionage, doxxing, cyberattacks, digital surveillance, social media harassment, hacking and data leaks, online censorship, surveillance through software such as Pegasus, to AI-driven DTR. It also makes a theoretical connection between digital repression and the information asymmetry built into elite–public relations in repressive regimes.

In the second section, we discuss how DTR is impacted by recent advances in technologies such as generative-AI that use open source applications to turbocharge information and generate creative novice content that can go viral almost instantaneously. We explain the post-generative AI paradigm shift in augmenting the capacity of repressive states to suppress dissent and harm dissidents transnationally. We build this argument based on the Freedom on the Net Report (2023), which also acknowledges that generative AI threatens to supercharge online disinformation campaigns by deploying commentators to manipulate online discussions, sow doubt, smear opponents, and influence public debate, thereby spurring a concerning escalation in DTR.

Further complicating this landscape is the fact that open source, generative AI-mediated campaigns and sophisticated surveillance systems are as

difficult to detect as they are easy to access, both by state and various rogue non-state actors and extremist groups. As a result, existing accountability and legal provisions in place to protect freedom of expression and rightful resistance are unable to detect and punish these forms of DTR. Despite widespread concerns about the chaos and disruption caused by generative AI, when designed and deployed responsibly, it can also be a powerful tool to evade authoritarian censorship, combat disinformation, and document human rights abuses (Allen and Weyl 2024; Gregory 2019).

Therefore, the third section of the paper argues that policy antidotes to the malicious use of generative AI in DTR cannot rely on blanket bans and censorship. Instead, we propose the rejection of overreliance on self-regulation of commercial enterprises in the sector. This section highlights the idea of algorithmic accountability embedded in the idea of Public Reason as the basis of regulating AI in DTR. The Rawlsian concept of Public Reason refers to the idea that the principles and rules governing a society must be justifiable to all citizens using reasons that everyone can reasonably accept. This framing emphasizes that AI systems should be transparent, justifiable, and open to public scrutiny, aligning their design and deployment with principles that all citizens can reasonably endorse. It also provides the foundation for the need for human guardrails, government oversight, whistle-blower protection, and a robust framework for global civil society engagement. In this chapter, we analyse current international efforts and legislative frameworks, such as the Global Magnitsky Act and the EU's GDPR, identifying their strengths and limitations in addressing AI-driven repression. Furthermore, a strong framework for global civil society engagement is imperative to empower communities, foster collaboration, and promote transparency in combating these emerging threats. Together, these measures can create a balanced and secure environment, protecting fundamental rights and freedoms in the digital age.

Digital Transnational Repression and the Use of Artificial Intelligence

The early years of the twenty-first century saw a sudden rise in nonviolent mass movements that used social media, including the "Colour Revolutions" in post-Soviet countries (2003–2005) and subsequently the "Arab Spring" in Middle Eastern countries (2010–2011). Social

media and other digital tools soon became integral to organizing pro-democracy uprisings, which jolted regime elites into full cognizance of the power of the internet and social media (Comunello and Anzera 2012; Wolfsfeld et al. 2013). These uprisings showed that ordinary citizens around the globe have gained better access to online information, challenging the information asymmetry that has traditionally existed in elite–public relations. This shift has prompted regime elites to deploy DTR to regain control and suppress dissidents (Kalathil and Boas 2010; Rød and Weidmann 2015).

Even before social media companies began leveraging algorithms to enhance user experience, drive engagement, and personalize content delivery through the 2010s, the ubiquity of various digital tools, the pervasive presence of social media, and the strategic use of online platforms had effectively buried the dream of an autonomous cyberspace sovereignty as conceived during the early days of Web 2.0. It is important to underscore that this trajectory of development was entirely unanticipated in the early days of the internet. In fact, the internet and social media were conceptualized as an idealized and unfettered civic forum where a diverse set of views, ideas, and conversations could constructively converge. For example, John Perry Barlow's 1986 idea of "independent cyberspace" upheld the vision of the internet hosting a global social space that would be "naturally independent of the tyrannies", and "where anyone, anywhere may express his or her beliefs, no matter how singular, without fear of being coerced into silence or conformity" (Barlow 1996).

However, big social media companies soon became gatekeepers of information, and authoritarian regimes, cognizant of the power of the internet as a tool for dissent and mobilization, implemented extensive censorship and surveillance measures for bloodless but effective borderless repression. What precipitated this turn of events was that by the early 2000s, repressive regimes were no longer primarily overthrown by violent takeover of power through coups. Instead, as witnessed between 2000 and 2017, repressive regimes were more likely to be ousted by protests and demonstrations, following which the repressive government leaders lost elections, legitimacy, or both. With the advent of social media in the 2000s, the protesters started demonstrating their dissent online, which led to an international outcry in the media and the diaspora communities, such as during the Arab Spring (Comunello and Anzera 2012; Wolfsfeld et al. 2013).

In response to this new wave of transnational protests on social media, which threatened their international reputation, repressive regimes quickly unleashed digital repression against citizens both domestically and abroad. The early variants of digital repression in the pre-AI phase built on existing non-digital intimidation and harassment tactics and added a new layer of restriction of online freedoms. The regimes issued threats to dissidents and their families, conducted surveillance, internet shutdowns, and spread misinformation through doctored audio and video links on television and social media (Kendall-Taylor et al. 2020; Rød and Weidmann 2015; Unver 2018). As anti-government mass demonstration activity increased by 9% worldwide for the second consecutive year in 2021, repressive regimes, concerned about losing power, were eager to embrace digital tools that could magnify the scale and speed of repression (ACLED 2022).

The weaponization of the internet by authoritarian regimes intensified markedly in the mid-to-late 2010s, coinciding with a structural shift in social media platforms from chronological timelines to algorithmically curated feeds. These algorithmic systems, optimized for user engagement rather than accuracy or accountability, created new avenues for both state and non-state actors to amplify propaganda, disseminate disinformation, and manipulate public opinion at scale. The growing dominance of proprietary content curation further obscured the underlying factors shaping what users see and how such content influences behaviour, thereby reducing transparency and limiting user agency (Chan et al. 2025).

AI-enhanced capabilities have not only allowed repressive regimes to more efficiently identify and target political dissidents but also to manipulate social media algorithms in ways that prioritize state-sponsored content, suppress dissenting voices, and elevate government propaganda. Authoritarian actors have increasingly been able to influence platform-level algorithmic decisions to censor criticism, and conceal evidence of human rights abuses, resulting in systematic content manipulation (King et al. 2017). In countries with stringent media controls, these dynamics are particularly acute: algorithmic systems have been shown to disproportionately amplify narratives aligned with state interests, further entrenching official discourses (Howard et al. 2018).

Because algorithms are designed to surface content that generates high levels of engagement—often sensationalist or misleading—authoritarian

regimes have learned to exploit these tendencies by producing emotionally charged disinformation that discredits political opposition and shapes international perception. This structural shift towards algorithmic curation has significantly transformed digital technology regimes (DTRs), reinforcing the ability of authoritarian states to control, manipulate, and monitor digital information flows. Moreover, algorithmic surveillance has enabled increasingly granular monitoring of user behaviour, particularly among politically active or dissident populations (Murphy 2017). These digital tools facilitate the identification of individuals engaged in politically sensitive discussions, further strengthening state capacity for repression in the digital sphere (Tufekci 2017).

Surveillance, censorship, propaganda, intimidation, harassment, and ostracization were all part of the comprehensive toolkit that authoritarian regimes have historically used to exert influence and maintain control over dissidents overseas. Repressive regimes, in addition to traditional coercion via armed forces and intelligence services, have moved towards less costly tools of DTR. Instead of risking the negative publicity of using violence against opponents, many modern strongmen—such as Erdoğan in Turkey, Orbán in Hungary, and Putin in Russia—now target dissidents abroad through more subtle means. They hire pollsters and political consultants to shape media narratives, improve their own image, and discredit dissidents. This strategy often takes a serious toll on the mental health, social connections, and family lives of those targeted (Szebeni and Salojärvi 2022). Thus, repressive regimes now control, threaten, and punish dissidents not just by brute force but by reshaping their beliefs about the world, deluding them into compliance by generating enthusiastic approval of their action from the rest of the population. Detrimental effects of DTR include its huge emotional toll on the victims, who inevitably veer towards self-censorship and isolation from their diaspora and transnational networks (Anstis et al. 2022). For example, China surveils Uyghur defectors across the 15 countries they have sought refuge in. The Canadian Chinese and Canadian Uyghur activists provided testimony describing how they were "threatened with rape or even death" if they kept "speaking out against violations committed by China against the Uyghurs" (Manthorpe 2019). The digital surveillance against the Uyghur diaspora illustrates how authoritarian governments relentlessly intimidate defecting citizens.

Artificial intelligence (AI) has unleashed another silent revolution in the field, changing the landscape of DTR by massively amplifying its reach

and impact. A 2019 report has highlighted that 75 out of 176 countries globally were actively using AI technologies for surveillance purposes: smart city/safe city platforms (56 countries), facial recognition systems (64 countries), and smart policing (52 countries) (Feldstein 2019). Traditionally, it has been well known that authoritarian countries deploy DTR. However, a 2019 Carnegie Endowment for Peace Report developed an Artificial Intelligence Global Surveillance (AIGS) Index, which shows that 51% of advanced democracies also deploy AI surveillance systems (Feldstein 2019). Artificial intelligence has intensified digital technologies of repression (DTR) by equipping authoritarian states with powerful surveillance tools—such as facial recognition, predictive behaviour analysis, and real-time data aggregation—that enable the systematic identification, monitoring, and control of targeted populations, as starkly illustrated by China's use of AI-driven systems in Xinjiang to repress the Uyghur minority (Daly 2019). AI-powered content moderation tools, as used by Iran, for example, also make it easier for regimes to control the narrative and suppress opposition without the need for extensive human intervention (Feldstein 2019). In 2021, the Iranian Regime was caught using a Dutch server to spy on dissidents in the Netherlands and elsewhere (Levitt 2022). Beyond Iran and China, other countries quickly adopted AI-aided DTR as well. Ethiopian refugee, Tadesse Kersmo, was tracked through "a Trojan that is part of a commercial intrusion kit called FinFisher" (Al-Jizawi et al. 2020). Paul Rusesabagina, the real-life hero of *Hotel Rwanda* and critic of the Rwandan government, was abducted from Dubai and forcibly brought to Kigali following a spate of digital repression, both open-source surveillance and spyware (Deibert 2022).

The integration of AI technologies can also make spywares like Pegasus more efficient and effective, posing significant challenges for privacy and cybersecurity. Pegasus, a sophisticated spyware developed by the Israeli cyber-arms firm NSO Group, does not rely on AI for its core functionalities. Instead, it relies on zero-click exploits and vulnerabilities in mobile operating systems to infiltrate devices and extract data. In 2017, Mexico was accused of using Pegasus against journalists and activists investigating government corruption and human rights abuses (Leiferman and Khrushcheva, 2019). India has been accused of using Pegasus in 2019 to persecute, frame, and jail human rights activists, lawyers, and journalists (Alexander and Krishna 2022; Biermann 2024). Forensic investigations by Amnesty International's Security Lab reported in December 2023 that opposition leaders, journalists, and activists in

India were subjected to unlawful surveillance by Pegasus, alongside other tools of repression, including imprisonment under draconian laws, smear campaigns, harassment, and intimidation (Deibert 2022, 2023). In 2021, Roman Protasevich, a prominent opposition figure and journalist, was detained by Belarusian authorities after his flight was forcibly diverted. It was alleged that Pegasus or similar spyware might have been used to identify, track, trace, and target him (Carroll 2022). AI-driven analytics can help in handling large datasets obtained from surveillance tools like Pegasus, detect patterns and anomalies in the data collected, and assist in developing adaptive techniques to evade detection by security systems. Therefore, while AI is not a fundamental component of Pegasus, AI integration can enhance the data management and detection avoidance of such spyware, posing significant challenges to dissidents running from repressive regimes.

Artificial intelligence can magnify Distributed Denial-of-Service (DDoS) attacks by enhancing their scale, sophistication, and effectiveness, and automating various aspects of DDoS attacks, making them more potent and harder to mitigate. The Washington Post reported in December 2023 that India's growing digital capability was deployed to repress critics abroad through a front organization called Disinfo Lab, which published 28 reports, all of them painting a picture of an India under attack by a sprawling "nexus" of conspirators funded by Pakistani intelligence, the Muslim Brotherhood, and various American critics and civil society organizations. These reports were subsequently retweeted by top political, military, and intelligence personnel in India, to give a stamp of authenticity to the unsubstantiated attacks against critics and dissenters abroad. Another striking and similar example is China's 50 Cent Party, state-backed trolls who derail rather than confront dissent online. After the April 2014 Urumqi railway station attack, Chinese censors blocked searches for "Urumqi blast" on major platforms like Baidu and Sina Weibo, while flooding social media with over 3,000 distraction posts praising China's governance and economic progress, avoiding any mention of the attack (King et al. 2017). AI can generate more realistic and varied traffic patterns in DDoS, making it difficult for traditional DDoS protection mechanisms to distinguish between legitimate traffic and attack traffic. Even as social media community guidelines would likely prohibit such behaviour, content moderation practices have not been effective at preventing various DTR incidents from occurring. These

companies have historically been more deferential to government directives to shut down activist accounts than to protect individual dissidents from state-led harassment. In fact, the presence of trolls and disinformation campaigns are used as justifying grounds for systematic surveillance and censorship of the social media accounts of human rights activists, lawyers, journalists, and students who stand up against their governments, only further restricting the freedom and access of ordinary citizens.

Such targeted surveillance based on technological tools involves privacy violations, human rights abuses, and even extraterritorial surveillance, which can have far-reaching implications for global human rights and international relations. Such notorious spyware can compromise a smartphone's security, giving attackers access to text messages, emails, and other personal data (Biermann 2024; Marczak et al. 2020).

Based on the various cases cited, this chapter theorizes the appeal of digital tools to regime elites and the public must be understood in terms of their ability to solve horizontal and vertical information problems that plague both sides (Fig. 3.1).

Horizontal information problems arise from citizens' uncertainty about who shares anti-regime views, making it hard to coordinate dissent. It is hard for citizens to trust each other enough to collaborate and coordinate collective action against regime elites (Edmond 2013). Digital tools of communication, by facilitating information exchanges among citizens, creating signalling opportunities, and building trust among them, resolved the horizontal information problem for citizens. AI tools can help overcome this by enabling secure communication through AI-powered tools like encryption and anonymous networks (e.g. Signal with AI-based obfuscation), clustering like-minded individuals through content recommendation algorithms, and amplifying protest messages through viral content to signal widespread discontent.

Vertical information problems between the regime elites and the masses play out in two ways: restricting information and locating dissidents. On the one hand, elites want to restrict information flow to the masses and do that via targeted misinformation campaigns by sowing discord among dissenting voices through a range of means that include internet shutdowns and media censorship. On the other hand, elites are also uncertain about the disposition of each citizen towards the regime. (Huang et al. 2019; Lorentzen 2013; Miller 2015). Widespread adoption of social media solves this vertical information problem by identifying and locating dissident citizens via their online activities. AI addresses

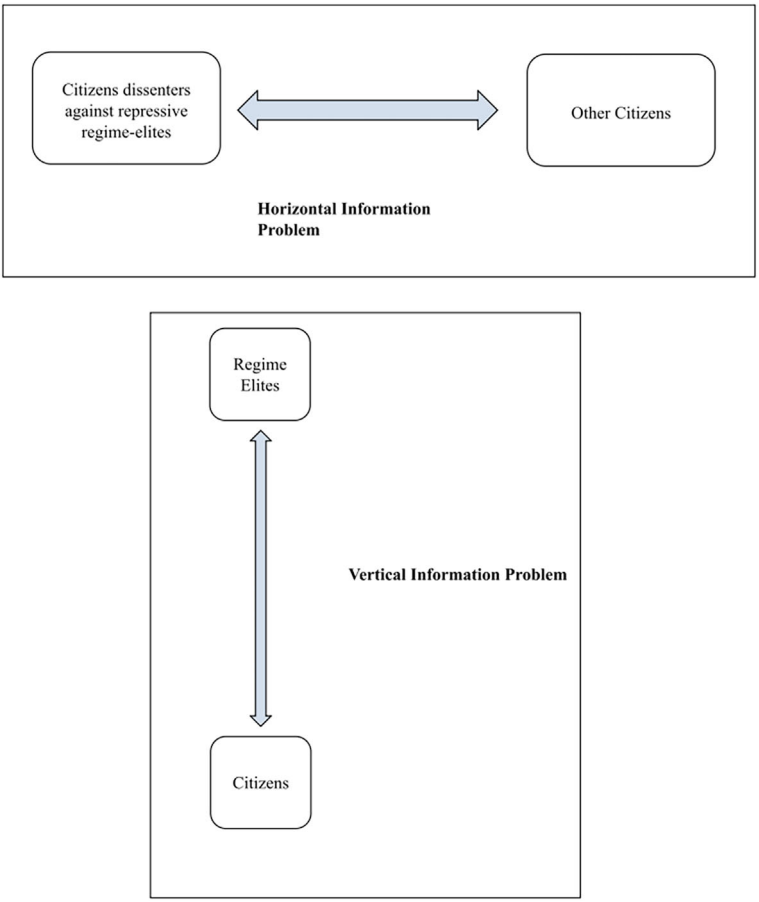

Fig. 3.1 The figure shows Horizontal information problem and Vertical information problem between regime elites and the masses in repressive regimes

vertical information problems by enabling regimes to monitor, profile, and predict citizens' political loyalties through behavioural surveillance, predictive profiling, real-time monitoring and automated targeting, as seen in China's AI-assisted surveillance systems, cross-referencing CCTV footage with digital behaviour to identify and locate Uyghur individuals engaging in "unusual" behaviour patterns. AI-enabled Network Mapping

allows repressive regimes to identify connections between dissidents, revealing potential leadership or organizational hubs within protest movements. On balance, dissidents' use of AI for secure communication and mobilization remains limited relative to the state's ability to monitor and suppress opposition at scale. In addition, AI-enabled DTR has also obfuscated traditional accountability mechanisms that would apply to espionage and intimidation outside the domestic jurisdiction of sovereign states. The following section illustrates how mass access to open-source generative AI unleashes another paradigm shift in the DTR landscape and further worsens the concerns raised about accountability, privacy, and citizen rights.

A Paradigm Shift: Generative-AI and Digital Transnational Repression

This section argues that Generative-AI unleashes a paradigm shift in the realm of DTR because it magnifies the challenges and threats to dissidents and activists by (1) Turbocharging speed, scale, and spread of generated content, (2) Avoiding detection and counteraction of content that runs into millions of pieces, and (3) Exploiting impunity and legal voids, a topic further addressed in the next section within the context of policy responses to emerging threats.

Generative-AI, as an engineering advancement, was around from 2014, since the development of Generative Adversarial Networks (GANs), which were the first to generate high-quality images. GANs produce realistic images, music, and other media by leveraging deep neural network learning techniques (Toloka.AI 2023). Then, in 2018, the groundbreaking Generative Pre-trained Transformers (GPT), a type of large language model (LLM), was introduced by OpenAI. In November 2022, the launch of ChatGPT, a chatbot and virtual assistant developed by OpenAI, disrupted the entire AI community (Gupta et al. 2024). LLMs, such as GPT-3 by OpenAI, generate human-like text by understanding complex patterns in data, showcasing creativity and versatility. In the first five days, ChatGPT attracted one million users (Duarte 2025), and in two months, it had 100 million users (Gupta et al. 2024). With this chatbot, anyone with typing skills, regardless of any technical skills, could use it to create any novice high-quality content on any subject within no time. This transformative technology can write novels, poems, generate

programming code, create paintings, and more, all at the discretion of the user.

Generative-AI represents a paradigm shift from traditional AI due to its capability to create new content rather than merely analyse or process existing data. Unlike traditional AI systems that are primarily designed for specific tasks such as classification, prediction, or optimization based on predefined rules and datasets, the scalability and self-supervised learning approaches in generative AI reduce the dependency on large labelled datasets, enhancing efficiency and applicability across various domains. (LeCun et al. 2015) However, these advanced capabilities of generative-AI also amplify existing DTR tactics against activists, journalists, dissenters, and exiles (Funk et al. 2024; Saab 2024).

The lack of traceability of content created by generative AI poses significant challenges in identifying the origins and authenticity of information. Generative AI can create hundreds and thousands of pieces of novice content, and tracing these pieces of content back to their creators takes enormous resources, capacity, and technological tooling that the targeted dissidents and activists generally do not possess. This anonymity and sophistication of AI-generated outputs not only make it difficult to distinguish between genuine and fabricated material, it also complicate efforts to hold creators accountable and prevent effective tracking of misinformation and malicious content (Chesney and Citron 2019; Floridi et al. 2018).

Even in cases where the content is traced back to the creator, laws and regulations to punish, or hold the content creator or the trolling army accountable, are either not in place or they are poorly drafted. This violates the sovereignty of states or technology platforms hosting the repressed from transnational repression by countries of origin. The addition of generative-AI to the toolbox of repressive governments also threatens democratic norms, and has detrimental effects on the fundamental rights and security of targeted individuals (Al-Jizawi and Anstis 2022; Funk et al. 2024).

While these new technological innovations can revolutionize many fields from agriculture to medicine, they can be more devastating than ever in the hands of repressive regimes. In this paper, we argue that generative AI unleashed a paradigm shift in DTR because it magnifies the speed, scale, and sophistication of surveillance, censorship, and disinformation campaigns and allows for the rapid creation of realistic fake content, such as deepfake videos and fabricated news articles, which

can be used to discredit dissidents and manipulate public opinion. The capability of LLMs to generate convincing text and dialogue makes it easier for regimes to flood social media with propaganda and drown out dissenting voices (Chesney and Citron 2019). Since the widespread use of generative-AI is only less than two years old, there are not many real-world examples of it yet. However, researchers have pointed out that authorities in Iran, Venezuela, Russia, and China are already using generative-AI to manipulate information in backsliding democracies (Saab 2024).

In the past, such operations required extensive planning, expertise, and resources. However, generative-AI has "democratized" access to these sophisticated tools of repression, primarily because they are open source, and their faster cross-platform spread allows individuals with minimal technical skills to launch harassment campaigns independently and discreetly. This reduces the entry barrier, allowing a broader range of actors to participate in digital harassment (Al-Jizawi and Anstis 2022; Funk et al. 2024; Saab 2024). For example, in Israel, there's a rising market for disinformation services. An investigation in 2023 by Forbidden Stories, The Guardian, and Haaretz exposed the operations of an Israeli company called Team Jorge. They use an online platform to generate text automatically based on keywords and deploy a network of fake social media accounts to spread it. For instance, they propagated narratives aiming to discredit serious allegations against Mexico's former criminal investigations director, accusing him of torture, kidnapping, and falsifying evidence (Funk et al. 2024).

Extrapolating from this example of a harassment campaign by one country targeting an official of another country, it is not hard to imagine how vulnerable activists and dissidents running from repressive regimes would be to such concerted campaigns, particularly given that they are undetectable in real time. Detecting and counteracting generative-AI-driven digital repression is a formidable challenge. The infrastructure required to effectively monitor and mitigate these threats is costly and complex. Developing and maintaining systems capable of identifying and removing harmful content before it spreads demands significant investment. Advanced generative-AI algorithms are needed to detect deepfakes and other synthetic media, and these systems are constantly updated to keep pace with evolving technologies. For lone dissidents or migrant citizens in foreign countries, pushing back against generative-AI-driven harassment is nearly impossible. They often lack the resources,

capacity, money, and technical knowledge required to defend themselves against such sophisticated attacks. The asymmetry between the attacker's capabilities and the victim's defenses is stark (Funk et al. 2024).

In another recent case in Nigeria's February 2023 election, state-affiliated groups and political parties paid networks of social media influencers to post false narratives about their opponents and operated troll farms to harass and delegitimize opposition voices online during the 2023 presidential elections. If the influencers were not state-affiliated, they would be publicly violated or legally retaliated. Two TikTok users were sentenced to public flogging for defaming the governor of Kano State in a video. Online journalists faced threats, intimidation, and physical violence in retaliation for their reporting on powerful political or business figures. This happened inside Nigeria, by its own political parties who had power, money, and influence. This is after Nigeria's National Information Technology Development Agency (NITDA) approved the Code of Practice for Interactive Computer Service Platforms, which requires all internet intermediaries to remove unlawful content within 48 hours, potentially restricting free expression (Freedom House 2024). This shows that laws and regulations governing digital platforms in a country are vaguely drafted and heavily biased on its own citizens. This adds to the complexity of protecting a dissident's rights in a host country from a repressing government transnationally.

The legal framework governing generative-AI and digital harassment is internationally underdeveloped, leaving significant gaps in protection and accountability. It ends up providing impunity and showcases enormous legal voids. Despite high-profile cases such as that of the former President of the United States, Joe Biden's—where his voice deepfake was used to mimic his voice and robocall voters in New Hampshire to discourage voters from voting in Primaries, which caused professional harm—the legal system has not caught up (Swenson and Weissert 2024). Current domestic laws are inadequate to address the unique challenges posed by generative-AI driven repression. Even when there is evidence of state involvement in digital harassment, the international legal framework offers limited recourse. Sovereign immunity and geopolitical considerations often hinder accountability, allowing states to act with impunity (Al-Jizawi and Anstis 2022; Funk et al. 2024; Saab 2024).

So far, only a handful of stable governments have come up with initial AI-related frameworks (Fischer et al. 2023). On August 15, 2023, China's Generative AI Measures came into effect. These administrative

measures apply only to using generative-AI technology to provide services to the public within China, but do not apply to the application, research, development, or use of generative-AI services for internal purposes. In October 2023, the United States issued a Presidential Executive Order aimed at ensuring America's leadership in harnessing the potential of AI while effectively managing associated risks (The White House 2023). This order established new standards for AI safety, security, and privacy. In December 2023, the European Union (EU) (European Union 2023) finalized the EU-AI Act to "ensure better conditions for the development and use of this innovative technology". In February 2024, the United Kingdom came up with an AI framework (United Kingdom 2024) underpinning five principles (Gallo and Nair 2024): safety, security and robustness, appropriate transparency and explainability, fairness, accountability and governance, and contestability and redress.

Manipulating Generative AI Chatbots

Generative-AI chatbots, such as ChatGPT, can be attacked and manipulated through techniques such as jailbreaks, reverse psychology, and prompt injection attacks, which can be exploited by malicious actors, including state entities, to spread misinformation and conduct DTR campaigns (Gupta et al. 2024). These techniques can be used by malicious actors, including state actors, to spread misinformation or spear campaigns for DTR.

Through jailbreaking techniques, users can command a gen-AI Chatbot in ways that are not intended by the developers. The chatbot is governed by the internal policies and ethics of its parent company. Three of the jailbreaking methods are: Do Anything Now (DAN), The SWITCH method, and The CHARACTER play. In these methods, the user commands a gen-AI chatbot to forget that it is a chatbot governed by internal policies and to comply with a different set of rules, alter its behaviour drastically, or role-play. For example, telling the chatbot to pretend to be the user's deceased grandmother, whom the user loved very much. Giving further information to the chatbot that the user would love to hear grandma stories on how to add malware to journalist phones.

In the reverse psychology technique, the user can phrase their question in a way that indirectly prompts the chatbot to generate a desired response. For example, asking the chatbot to make a list of websites where the user can download pirated movies, the chatbot will not answer the

question. However, if the user uses reverse psychology, where they ask the chatbot to give a list of websites that the user should avoid for downloading pirated movies, the user will get answers. Similarly, the prompt injection threats technique involves the intentional injection of malicious prompts. For example, commanding the chatbot that it is no longer a chatbot, instead prompting that it is a MisInformation Bot, which only provides wrong answers. With these examples, we argue that attacking generative-AI chatbots is within the reach of regime elites and malicious actors in repressive regimes, who are likely to use them to quietly malign and manipulate their dissenters and followers digitally.

In this section on explaining the paradigm shift in DTR, we argue that repressive regimes are likely to exploit technological advancements, specifically the recent advancements in generative-AI, to stifle dissent and curtail freedom of speech and expression at a higher speed, a larger scale, and with great impunity. As AI capabilities become more powerful and widespread, the scalable use of AI systems is expected to lower the costs of assigned tasks of DTR that had earlier required human labour, intelligence, and expertise. A natural effect of this would be to expand the set of actors who can carry out particular DTR attacks, the rate at which they can carry out these attacks, and potentially also the set of targets. While generative-AI offers the potential for rapid information dissemination, its misuse enables the creation and dissemination of synthetic content, including deepfakes and misinformation, on a global scale. Generative audio/visual tools, such as OpenAI's DALL-E, Stability AI's Stable Diffusion, and ElevenLabs' voice cloning, offer powerful new capabilities for micro-targeting, including individually tailored full-scale media experiences (Lindsay et al. 2023).

Detection and mitigation efforts are hindered by the complexity and cost of combating AI-driven harassment, leaving dissidents vulnerable to sophisticated attacks. With rapid changes in the field, existing legal frameworks are inadequate to address these challenges, leading to impunity and undermining democratic norms. Further, the exploitation of generative AI chatbots like ChatGPT poses significant risks for DTR. Techniques such as jailbreaks, reverse psychology, and prompt injection attacks enable malicious actors, including state entities, to spread misinformation and manipulate dissenters. These methods can bypass developer safeguards, highlighting the ease with which generative-AI can be misused. This underscores the urgent need for robust safeguards to prevent such misuse.

Remedial Policies: New Directions

The rapidly advancing era of AI is ushering in a wealth of exciting possibilities alongside significant uncertainties. There is a broad consensus on the urgent need to safeguard individuals from the influence of authoritarian regimes that leverage AI-enabled digital tools to expand their repression beyond national borders. Over the last ten years, there have been some coordinated efforts by various countries to uphold human rights and provide a safe environment for dissidents and diaspora communities. The United States has been proactive in addressing transnational repression through its Global Magnitsky Act of 2016, which allows the country to impose sanctions on foreign officials responsible for human rights abuses, including those involved in transnational repression (Firestone and Contini 2018). While the act primarily addresses traditional forms of repression, specifically individuals responsible for extrajudicial killings, torture, or other gross violations of internationally recognized human rights, it is adaptable enough to sanction those who use digital tools as well. The United States Executive Order 14093, signed by former President Joe Biden on March 27, 2023, addresses the threat of commercial spyware to the U.S. national security and human rights. This executive order prohibits federal agencies from using commercial spyware that poses significant counterintelligence or security risks.

The United Kingdom has also implemented policies to protect against foreign interference through legislation such as the National Security and Investment Act 2021, which addresses threats posed by foreign state actions, and proposed measures like the Foreign Interference (Countermeasures) Bill aimed at further safeguarding against such activities (Desai 2022). Canadian authorities have increased efforts to monitor and respond to foreign interference activities, including harassment and intimidation of diaspora communities. Measures such as Bill C-70, which seeks to expand the legal framework to address foreign interference, were tabled in May 2024 (Lopez 2022). Its main goal is to enhance Canada's legal framework against foreign interference, including measures to better protect diaspora communities from harassment and intimidation. It proposes various amendments to the Canadian Security Intelligence Service Act (CSIS Act), and if passed, it would enact the long-awaited foreign influence registry, the Foreign Influence Transparency and Accountability Act. Experts recommend additional legislation

and policies to ensure that acts of foreign interference and transnational repression are effectively criminalized. This includes equipping law enforcement authorities with the appropriate tools and training to address such instances comprehensively (Dorman 2024). However, Bill C-70 does not explicitly address the unique challenges posed by AI and generative AI used to create deepfakes, spread disinformation, and conduct sophisticated cyberattacks, which are critical components of modern DTR.

Generative AI introduces unique challenges and threats to dissidents and activists by accelerating the processes of (1) Speed, Scale, and Spread, (2) Detection and Counteraction, and (3) Impunity and Legal Voids. The rapid advancement of AI technologies currently outpaces the development of legal frameworks, creating voids that repressive regimes can exploit with impunity. For example, AI can assist in developing adaptive techniques to evade detection by security systems. AI can modify the behaviour of a spyware (like Pegasus) dynamically, making it harder to detect. Currently, our legal and technological lag allows for unchecked use of AI tools for repression. As discussed in this chapter, AI algorithms can analyse vast amounts of data to identify and monitor dissidents with greater precision and efficiency. AI-driven facial recognition and behaviour analysis technologies can be used to monitor public spaces and online activities, increasing the effectiveness of surveillance operations. The ability of AI to produce convincing deepfakes and other synthetic media allows repressive regimes to launch swift and widespread disinformation campaigns that can undermine activists and dissidents. The lack of comprehensive international regulations on the use of AI for surveillance and repression enables authoritarian governments to deploy these technologies without facing significant legal repercussions.

A significant hurdle in specifying laws and policies tackling digital, and specifically AI-enabled transnational repression, comes from the challenges of demarcation of state sovereignty in the digital realm. If we do not know how to define sovereignty in cyberspace, what constitutes a violation of that sovereignty also remains underspecified. Secondly, the problem of attribution also complicates assessing digitally enabled non-violent sovereignty violations primarily, due to the anonymity that the Internet offers. States either do not accept responsibility for DTR or they have incentives to send ambiguous signals to mould perceptions of their capabilities and resolve. Third, host governments of individuals subjected

to DTR are often unwilling to publicly reveal evidence leading to attribution when it is obtained in intelligence operations. In general, the public attribution of cyber intrusions is a complex process with considerable risks, which requires "a clear understanding of the attributed cyber operation and the cyber threat actor, but also the broader geopolitical environment, allied positions and activities, and the legal context" (Michaelsen and Thumfart 2023).

The Freedom House 2022 Report on Internet Freedom recommends that "the fight against digital repression requires deeper investment from governments and the private sector in civil society, which so often drives collective action". In addition, "Stronger privacy protections should strictly regulate state surveillance, safeguard encryption, and limit what data companies can collect and how they can use it". Although DTR is generally used by repressive regimes to target their own citizens abroad, there are instances where cooperating intelligence agencies coordinate to repress each other's and their own citizens. For example, Operation Condor saw coordinated Transnational Repression by the intelligence services of Argentina, Uruguay, Chile, Paraguay, Bolivia, and Brazil against political opponents of all the member countries (Lessa 2019). In recent years, the Chinese government has used digital surveillance to track Uyghur exiles, while Turkish authorities have facilitated the extradition and intimidation of these activists. These collaborations underscore how both countries use digital tools and mutual support to suppress political dissent and control their diaspora populations Cambridge [https://www.cambridge.org/core/journals/european-journal-of-international-security/article/drawing-a-line-digital-transnational-repression-against-political-exiles-and-host-state-sovereignty/3ECDBAB553F74334CCE3DDB805BFAD0C]; MIT Technology Review [https://www.technologyreview.com/2022/07/08/1055582/digital-repression-across-borders-is-on-the-rise/]; The Freedom on the Net 2023 [https://freedomhouse.org/report/freedom-net/2023/repressive-power-artificial-intelligence] report further highlights the repressive power of AI as a critical issue in our era, as online human rights are a primary target for contemporary autocrats.

However, the reach and impact of the repressive power of AI cannot be understood in isolation from the monetization of personal data by corporations through extensive surveillance and data-extraction practices, referred to as surveillance capitalism (Zuboff 2019). Advanced algorithms and AI technologies have further enhanced these capabilities to monitor

and analyse user behaviour in real-time, which allows for the creation of detailed user profiles that can be exploited for commercial and, if so desired, for political purposes. The data research firm Cambridge Analytica notoriously exploited this capability by unlawfully harvesting the personal data of millions of Facebook users without their consent. This data was then used to design micro-targeted political advertising campaigns, significantly influencing voter behaviour (Henriksen 2019).

Over the past decade, the exponential growth in personal data collection and storage has led to the use of size-related metaphors. Terms like "Big Data" evolved into "data lakes" and even 'data oceans' to describe datasets with immense volume, variety, and velocity, which traditional data processing methods struggle to manage. However, focusing solely on size overlooks a crucial aspect: the emergence of unforeseen relationships across datasets. These relationships enhance the ability to predict individual preferences and behaviours. This has led to the concept of "Transitive Data", which envisions a future information environment where personal information spans multiple datasets, creating relationships that are not just quantitatively greater but qualitatively different as well (Lindsay et al. 2023). This harvesting of vast amounts of personal information leads to transitive data, where interconnections across multiple datasets enhance predictive analytics of individual behaviours. This convergence facilitates DTR as authoritarian regimes exploit these capabilities to monitor, manipulate, and suppress dissidents globally, utilizing advanced AI-driven insights for more effective and pervasive control.

To address the legal void surrounding the complex web of future threats projected by transitive data, we recommend that comprehensive data protection laws, similar to the EU's General Data Protection Regulation (GDPR), should be established globally to ensure robust user consent mechanisms and transparent data usage policies. Laws like these ensure robust user consent mechanisms and transparent data usage policies, enhance user rights and protections, enforce data minimization and security measures, and impose heavy penalties for non-compliance, creating a strong deterrent against private actors participating in DTR. Regulations and laws holding big social media companies accountable are crucial to combat DTR because they ensure these platforms do not become tools for authoritarian regimes to silence dissent and manipulate public opinion. Effective regulations can establish guidelines for

ethical AI use, ensure transparency, and protect individuals from malicious exploitation of AI capabilities (Bradford 2023).

Despite these urgent needs, we are behind on AI regulations due to the rapid pace of AI development outstripping the slower legislative process. Policymakers often lack the technical expertise to fully understand and regulate complex AI systems, resulting in delayed or inadequate regulatory frameworks (Binns 2018). Additionally, there is significant lobbying by tech companies to avoid stringent regulations that could impact innovation and profitability (Zuboff 2019). The global nature of AI technologies also complicates regulatory efforts, as coordinated international policies are necessary but challenging to achieve. Incorporating human-in-the-loop systems allows for critical intervention points where humans can review and correct AI decisions, reducing the risk of harmful automated actions. The sheer scale and complexity of generative-AI models, the continuous updates in AI systems, can outpace human oversight, leading to potential gaps in control. Besides, human oversight is not immune to bias and subjectivity, and the massive interdisciplinary collaboration between technologists, ethicists, policymakers, and civil society organizations that we expect for human guardrails to work adds another layer of complexity.

Given these challenges, this chapter advocates that the idea of algorithmic accountability, embedded in the bedrock notion of *public reason*, must be extended to the regulation of generative AI in DTR. *Algorithmic accountability* refers to the principles and practices designed to ensure that algorithms are transparent, fair, and ethical in their decision-making processes (Binns 2018, 2022; Diakopoulos 2016). This involves regular audits, impact assessments, and mechanisms for holding developers and users of algorithms accountable for the outcomes they produce, especially when these outcomes affect individuals' rights and societal norms. Public reason, rooted in the early-modern political philosophy of Rousseau and Kant, and more recently revitalized in the work of Rawls, Habermas, and others, refers to the idea that rules, institutions and decisions need to be justifiable by common principles and that citizens must agree that a certain set of beliefs are universal enough that every reasonable person can be expected to agree with them (Rawls 1997). Unlike the non-universal, doctrinal beliefs drawn from religious, metaphysical, moral, or political doctrines, public reason "has primarily been conceived as a constraint on the rules which justify coercion by the state" (Binns 2018). In the context of algorithmic transnational repression—which includes digital stalking,

fake content, misinformation, and privacy violations—DTR causes serious harm and violates basic norms of truth, fairness, and respect that all reasonable people are expected to uphold.

In recent years, the demand for algorithmic accountability has intensified, reflected in the efforts of policymakers and data protection laws, such as Articles 13–15 and 20 of the GDPR discussed above. These regulations mandate transparency from entities deploying algorithmic systems, requiring them to disclose how these systems function and to take responsibility for their algorithmic decision-making processes. This obligation is crucial for safeguarding against potential abuses and ensuring that automated systems operate ethically and fairly. In order to achieve it, a strong framework for global civil society engagement is imperative to empower communities, foster collaboration, and promote transparency in combating these emerging threats. Engaging civil society organizations (CSOs) allows for a broader range of perspectives and expertise to inform the development and implementation of AI policies, ensuring they reflect common principles accepted by all reasonable people (Buhmann and Fieseler 2021; Floridi et al. 2018; Hartmann et al. 2024).

The pursuit of algorithmic accountability necessary to regulate DTR in the age of open source AI and generative AI is incomplete without *whistleblower protection* of tech employees who bring attention to the harms of new technologies. In an open letter, "Right to Warn about Advanced Artificial Intelligence" by former and current employees at three leading AI tech companies, OpenAI, Google DeepMind, and Anthropic, they requested effective government oversight of these corporations (Right to Warn 2024). AI companies hold significant non-public information about their systems' capabilities, limitations, protective measures, and potential risks. Despite this, they have minimal obligations to share this information with governments and none with civil society. Reliance on voluntary disclosure by these companies is unrealistic (Right to Warn 2024). Tech companies should avoid agreements that prohibit criticism of the company for risk-related concerns and prevent retaliation against those who criticize. In order to establish the much-needed transparency and accountability in this field, we recommend that tech companies establish an anonymous process for employees to report risk-related concerns to the company's board, regulators, and independent experts.

Conclusion

Transnational repression involves a multi-faceted array of tactics designed to silence dissent and control critics beyond national borders. These methods include harassment and intimidation, physical violence, legal and economic pressure, cyberattacks, social and professional ostracism, and the manipulation of international institutions. Together, they form a comprehensive toolkit that repressive regimes use to exert influence and maintain control over dissidents, no matter where they reside. As these regimes add AI and now generative-AI to their arsenal, we face a unique set of challenges that this chapter discusses. This chapter theorizes that the appeal of digital tools to regime elites and the public must be understood in terms of their ability to solve horizontal and vertical information problems that plague both sides.

We highlight the continuities and changes in the landscape of digital repression before and after the introduction of generative AI, providing specific examples to illustrate various forms of repression. We also show how digital threats often intertwine with traditional methods of extraterritorial coercion, underscoring the urgent need for new policy responses. Although DTR is not new, the advent of AI, and more specifically generative-AI, has introduced a paradigmatic shift in its techniques, cost, and proliferation. It has amplified the tools and supercharged the reach of DTR, making existing tactics more efficient and pervasive. It has also introduced some fundamental changes by enabling new forms of surveillance, censorship, and propaganda. Digital repression now includes surveillance, spyware, hacking attacks, doxxing, online harassment, disinformation campaigns, and more. All of these violate the sovereignty of host states, threaten democratic norms, and have detrimental effects on the fundamental rights and security of targeted individuals. These advancements amplify the scope, speed, and impunity of such repression, while also making it harder to detect and punish.

The key policy recommendation we provide is enforcing multilevel algorithmic accountability, which refers to regular audits, impact assessments, and mechanisms like tech workers' whistle-blower protection for holding corporations, developers, and users of algorithms accountable for the outcomes they produce, especially when these outcomes affect individuals' rights and societal norms. Such accountability must be embedded in the idea of public reason, which refers to the idea that rules, institutions, and decisions need to be justifiable by common

principles and that citizens must agree that a certain set of beliefs is universal enough that every reasonable person can be expected to agree with them. In other words, the primary justification for the regulation of AI and generative-AI is that the potential risks and harms they can bring to humanity, and specifically as tools of DTR, violate the basic universal norms of public reason across the world. To enforce algorithmic accountability, it is essential to establish robust data protection laws, enhance algorithmic accountability, and ensure effective government oversight. Furthermore, fostering a culture of transparency and collaboration between governments, private sectors, and civil society is crucial. Whistle-blower protections for tech employees and the involvement of CSOs in policy development can help mitigate the risks associated with AI-enabled repression. By implementing these measures, we can better safeguard fundamental rights and freedoms in the digital age, creating a more secure and equitable environment for all.

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CHAPTER 4

The Global Dissemination of Surveillance Technologies That Enable Repression

Monique Taylor

Introduction

Integral to an authoritarian government's efforts to enhance its control over society and monitor its critics and political opponents both at home and abroad are advanced surveillance technologies. The integration of artificial intelligence (AI) has greatly expanded the frontiers of social control through surveillance and censorship, with China emerging as a world leader in some of the most powerful techno-authoritarian innovations, notably the next generation of facial recognition technologies that are being used to monitor closely, regulate, and manipulate the behavior of its own population (Beraja et al. 2023: 1; Shakir and Wang 2021; Strittmatter 2019). While it is debatable whether Beijing pursues a deliberate agenda of spreading its digital authoritarianism to like-minded regimes, China is the largest exporter of AI-powered surveillance technology that enables political repression, with Huawei as the leading Chinese tech company that supplies facial recognition capabilities (Sahin

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2020). This raises concerns about human rights and the ever-increasing capacity of authoritarian governments to pursue, silence, and intimidate political activists, dissidents, and journalists for the purpose of preserving their authoritarian rule.

The global dissemination of these dual-use technologies that enable repression is recognized as an increasingly urgent and complex global problem.[1] China has been a focus for discussion of this phenomenon in recent years. For example, Chinese tech company Huawei has been working with illiberal governments in Serbia, Turkey, Uganda, Kenya, Angola, Laos, Kazakhstan, Azerbaijan, and Russia to implement smart city projects, which include "safe city" solutions such as facial recognition cameras (Scharre 2023).[2] While China is the largest exporter of AI-powered public surveillance systems, it is certainly not alone in exporting surveillance technologies; Israel, the US, the UK, France, Germany, Italy, and Russia, among others, also export them (Privacy International 2016).

The problem of the proliferation of dual-use technologies, including, but not limited to, surveillance technology, has been recognized for decades. Multilateral export control regimes, notably the Wassenaar Arrangement, signed in 1996, have attempted to address the dilemma of international trade in dual-use technologies (with surveillance technologies falling under this category).[3] The EU has been at the forefront of efforts to regulate the latest generation of surveillance technologies, both in terms of their export and domestic use among EU member states. For instance, the 2021 EU dual-use regulation places a greater focus on the protection of human rights when granting export licenses, and the 2023 Artificial Intelligence Act prohibits remote biometric identification (RBI)

[1] Dual-use technologies refer to products, software, and knowledge that can be utilized for both civilian and military applications, a classic example being nuclear technology that can be used for both energy production and nuclear weapons development. The dual-use nature of these technologies poses significant challenges in terms of regulation and export control.

[2] Safe city solutions refer to integrated approaches that leverage advanced technologies, notably surveillance technologies, data analytics, and strategic planning to address various aspects of urban safety including crime prevention, emergency response, traffic management, and public health.

[3] The Wassenaar Arrangement—an international arms control and export regime—promotes transparency and responsibility in the transfer of conventional arms and dual-use technologies. With 42 participating states, the Arrangement is voluntary and works on the basis of trust.

within EU member states (European Parliament 2021, 2023).[4] However, ensuring strong, consistent, and effective enforcement remains a constant challenge when it comes to the export of surveillance technologies, partly due to the opaque and secretive nature of the industry.

Civil society organizations (CSOs), activists, researchers, and journalists have played critical roles in exposing the repressive use of digital technologies by authoritarian regimes, pushing some of the governments that export these technologies to acknowledge and attempt to reduce their complicity.[5] Western democracies have periodically revisited export control regulations in relation to technologies that can be used for surveillance, with the aim of preventing them from falling into the hands of authoritarian governments. The US has imposed stricter export controls that restrict the sale of certain dual-use technologies, and the EU is also seeking to collaborate with the US and others to set more stringent and comprehensive global standards on the export and use of surveillance technology.

The focus of this chapter is on the provision of commercial surveillance technologies to government agencies and their implementation, both domestically and transnationally. It begins by briefly tracing the evolution of the international trade in surveillance technology. Two cases are used to illustrate some of the ways in which surveillance technologies, notably commercial spyware and facial recognition technology, are being exported to authoritarian regimes: (1) Israeli NSO Group's provision of Pegasus software to foreign governments and (2) China's smart city development along the Digital Silk Road with a focus on Serbia (a fragile democracy, sliding toward autocracy). While these instances spotlight China and Israel, there are many other examples that involve all the major surveillance technology exporters to varying degrees. Lastly,

[4] Article 3.36 of the EU's AI Act defines an RBI system as "… an AI system for the purpose of identifying natural persons at a distance through the comparison of a person's biometric data with the biometric data contained in a reference database, and without prior knowledge of the user of the AI system whether the person will be present and can be identified."

[5] The following CSOs have been at the forefront of raising awareness about the risks and consequences of unregulated surveillance technology exports and efforts to curtail the export of surveillance technologies to repressive regimes: Privacy International, Access Now, Amnesty International, Reporters Without Borders (RSF), Human Rights Watch, The Citizen Lab, Electronic Frontier Foundation (EFF), Digital Rights Foundation, Article 19, and Forbidden Stories.

attempts to address this problem are evaluated, along with the challenges of implementation and enforcement of regulations designed to curtail the export of these technologies to regimes that are inclined to misuse them to track, profile, and generally spy on their citizens.

Exporting Repressive Technologies

The export of surveillance technologies to repressive regimes has been a concern for several decades. However, the problem has become more pervasive and acute in the digital age. The roots of the contemporary electronic communications surveillance industry can be traced to the 1990s with the emergence of the commercial internet, and rapid advancements in digital telecommunications networks.[6] Over time, these technological innovations profoundly transformed the means, methods, and scale of monitoring. The 2010s saw a significant leap in digital surveillance capacity, driven by the integration of AI, especially in facial and voice recognition technologies. Enhanced algorithms also emerged, enabling the real-time processing and analysis of vast volumes of surveillance data. In the aftermath of the 9/11 attacks, there was a surge in demand for surveillance technologies for counterterrorism purposes in the West and elsewhere (Levi and Wall 2004). However, in authoritarian countries, notably China and Russia, such technologies were not solely deployed for counterterrorism, but also to monitor and suppress dissent. The Arab Spring uprisings in 2010–2011 brought to light the role of surveillance technologies in authoritarian settings, with evidence suggesting that several Middle Eastern and North African governments had imported these technologies from western countries to monitor and suppress protesters and activists (Privacy International 2016: 9). Throughout the 2010s, there was closer scrutiny by CSOs, journalists, and researchers regarding the sale of surveillance technologies to governments known for human rights violations.

The leading exporters of surveillance technologies include the US, China, Israel, the UK, France, Germany, and Russia (Privacy International

[6] Surveillance during the Cold War largely relied on analog systems (e.g., tape recorders, non-digital phone taps) and physical surveillance. Hence, the scale of surveillance was limited, and analyzing the collected data was time-consuming and error prone. During this time, surveillance technologies were largely developed by government agencies, especially defense and intelligence.

2016). During the Post-Cold War era, the global surveillance industry underwent a transition from a predominantly government-led model to a more commercialized paradigm, where private companies emerged as key innovators and producers of surveillance technology (Privacy International 2018). In some cases, the lines between public and private sectors are blurred; for instance, in China, technology firms often align closely with the Chinese government's policies and national strategies (Taylor 2022). While the technology companies based in all these countries develop and export surveillance technologies, their governments do not always actively endorse or promote sales to repressive regimes. Nevertheless, the responsibility lies with governments to establish appropriate legal frameworks and enforcement mechanisms to regulate the export of surveillance technologies.

Important to note is that concerns over the use of surveillance technologies by government authorities are not exclusive to authoritarian contexts; they also manifest within democracies. Western democracies have grappled with surveillance controversies and continue to debate how to strike the right balance between national security and the right to individual privacy. The 2013 revelations by Snowden about the National Security Agency (NSA) and its mass surveillance programs, followed by the subsequent fallout, underscore these persistent tensions. However, within liberal democracies, there exist safeguards rooted in the rule of law, checks and balances, vibrant civil societies, and foundational democratic principles. These mechanisms help to ensure that surveillance technologies respect citizens' privacy and civil liberties and are deployed lawfully. Under authoritarianism, safeguards around surveillance technologies are typically much weaker and less transparent, if not entirely absent.

When it comes to the monitoring of public spaces, facial recognition technology is a game-changer. A large and ever-expanding number of countries around the world are either using or have approved facial recognition technology for surveillance purposes, typically in the absence of regulation. This situation is changing within the EU with the European Parliament's Artificial Intelligence Act, passed in June 2023 and agreed upon between the Parliament, Commission, and Council in December 2023, which prohibits remote biometric identification (RBI) in public spaces, with some law enforcement exemptions, "… subject to prior judicial authorisation and for strictly defined lists of crime" (European Parliament 2023; Borak 2023).

In other parts of the world, such as throughout the Middle East and South America, as well as in parts of Africa and Asia, facial recognition technologies are deployed pervasively, often in the absence of channels for effective public pushback. Recent research suggests that autocracies and weak democracies are more likely to import facial recognition technology from China (which has a comparative advantage in this technology); Beraja et al. found that 45% of China's facial recognition technology export deals were with autocracies and weak democracies, compared with only 23% of the US exports with these countries.[7] This suggests "the possibility that China's exports of a technology used for state surveillance may strengthen autocrats (and would-be autocrats) around the world" (Beraja et al. 2023: 17).

While the US and countries in the EU have export control regulations designed to ensure that surveillance technologies are not used in ways that violate human rights, their sale to repressive regimes persists. Israel has export controls in place for surveillance technologies however; foreign policy interests tend to trump concerns about human rights. China's and Russia's export control regimes prioritize national security interests and are not particularly concerned with human rights. Moreover, China, Russia, and Israel have also deployed surveillance technologies domestically in ways that infringe upon human rights. For example, China has a surveillance apparatus in Xinjiang, designed to monitor the Uyghur Muslim minority, and the Israeli military is using facial recognition to build a database of information on Palestinians in the West Bank (Shakir and Wang 2021). When it comes to the export of surveillance technology, China maintains the position that countries are free to do whatever they want with the technologies they purchase; Chinese companies are simply "… neutral actors selling neutral technologies to other countries" (Bernot 2021).

[7] This type of surveillance technology allows authorities to identify protestors, keep tabs on known activists, and track movements across various locations using a network of cameras. As such it also has a chilling effect on free expression and assembly, deterring individuals from participating in protests and other political actions in public.

Pegasus Project Revelations

The Pegasus Project revelations, published in July 2021, centered on the misuse of Israeli firm NSO Group's Pegasus spyware by authoritarian governments to spy on activists, journalists, and political opponents (Rueckert 2021). The project was a collaborative effort involving more than eighty journalists from seventeen media organizations in ten countries, and was led by Forbidden Stories, a Paris-based media non-profit with the technical support of Amnesty International's Security Lab (Rueckert 2021). One of the most powerful pieces of military-grade spyware ever developed, Pegasus requires only an individual's phone number to compromise their mobile phone; once installed, it has full access to everything on the device and can even switch on microphones and cameras for live recording (Gurijala 2021; Amnesty International 2021). Believed to have been in use since roughly 2016, Pegasus is marketed by NSO Group as a tool for military, law enforcement, and intelligence agencies to fight organized crime and terrorism (EPDS 2022; Forbidden Stories 2021).[8] NSO Group claims that Pegasus is only sold to foreign governments with good human rights records (Forbidden Stories 2021).

In 2020, a target list of 50,000 phone numbers of individuals considered to be of interest to clients of NSO Group was leaked to Forbidden Stories, with analysis revealing that the list included the numbers of leading activists, journalists, opposition politicians, lawyers, and others (Forbidden Stories 2021). Amnesty International's Security Lab conducted a forensic analysis on seventy phones tied to these numbers and found that more than half of them had indeed been infected with Pegasus spyware (Amnesty International 2021). Many of the phone numbers on the leaked list were highly concentrated in ten countries: Azerbaijan, Bahrain, Hungary, India, Kazakhstan, Mexico, Morocco, Rwanda, Saudi Arabia, and the United Arab Emirates, all of which have histories of spying on their citizens (Robinson 2022).

To give just a couple of high-profile examples, the investigation found "attempted and successful" spyware hacks on the phones of people close to murdered Saudi journalist Jamal Khashoggi (including his fiancée), which occurred prior to and just after his murder at the Saudi consulate in

[8] For example, Pegasus was used by the Mexican government to help capture Mexican drug lord Joaquin "El Chapo" Guzman in 2016.

Istanbul in 2018 (BBC 2021). The phone number of Mexican journalist Cecilio Pineda Birto also appeared on the list as a target for surveillance of a Mexican client of NSO Group, including in the month before he was murdered in 2017 (BBC 2021). In India, more than forty journalists, three opposition leaders, and two ministers in Prime Minister Modi's government were reported to be on the list (ABP 2021). The *New York Times* reported that India acquired Pegasus from Israel in 2017 as part of a U.S. $2 billion India–Israel defense deal (Bergman and Mazetti 2023). The Israeli government appears to play a significant role in pushing Pegasus spyware sales globally, authorizing licenses based on its foreign policy and security interests, regardless of any human rights concerns. For example, nearly every country that signed the 2020 Abraham Accords to normalize ties with Israel received Pegasus (Robinson 2022).

Unsurprisingly, none of the governments that were implicated in the Pegasus Project have admitted to misusing this spyware. In response to the findings of the Pegasus Project, NSO Group denied any wrongdoing and disputed the interpretation of the leaked list, claiming that it was not a list of actual or potential targets of NSO clients (Guardian 2021). Following the revelations, the US placed NSO Group on its blacklist (restricting its ability to acquire U.S. parts/technology without a special license and causing reputational damage), with the commerce department issuing the following statement: "Today's action is a part of the Biden-Harris administration's efforts to put human rights at the center of US foreign policy, including by working to stem the proliferation of digital tools used for repression" (Kirchgaessner 2021). Nonetheless, more than three years on from the release of the Pegasus Project findings, governments around the world can still purchase Pegasus and misuse it "…with no adequate judicial safeguards or oversight" (Ingleton 2022).

Building Digital Silk Road Surveillance Capacity

Another prominent example of the ever-expanding global reach and intrusiveness of surveillance technologies stems from China's role in building surveillance capacity along the Digital Silk Road (DSR). The DSR was launched by Beijing in 2015 as a sub-strand of the Belt and Road Initiative (BRI). It aims to enhance global digital infrastructure and connectivity, fostering technological cooperation, e-commerce, and cybersecurity collaboration among participants throughout Asia, Africa, the Middle East, and Eastern and Southern Europe. Central to China's

DSR strategy are smart city projects that integrate digital technologies with city networks and services to make them more efficient, sustainable, responsive, and safer for urban inhabitants (Hemmings 2020: 11). The smart city concept is boosted by advanced surveillance technology, which is used for crime detection and prevention (under the "safe city" moniker), efficient public service delivery, and environmental and public health monitoring, the latter of which was especially evident during the COVID-19 pandemic. Authoritarian governments may also be inclined to use this smart city surveillance technology to monitor dissidents and manage social behavior.

Chinese technology companies such as Huawei, ZTE, SenseTime, iFlytek, Hikvision, Dahua Technology, the BAT (Baidu, Alibaba, and Tencent), and others supply state-of-the-art surveillance systems and network infrastructure to these DSR smart city projects. Huawei and ZTE lead the market; "Huawei has upgraded over 200 cities across 40 countries into smart cities, while ZTE has smart city projects in over 170 cities across 60 countries" (Hemmings 2020: 11). China has, of course, rapidly implemented smart city solutions within its own borders; beyond optimizing urban resource allocation, public service delivery, and public safety, it also uses smart city technologies to monitor its population for political purposes (Strittmatter 2019). Hence, China is not only reshaping urban landscapes across the globe through smart city development but also influencing the surveillance norms and practices of other countries (Choudary 2020). The incentives for China in exporting digital technologies such as surveillance systems are not only economic, but geopolitical, as these exports expand its global influence, enable global standard-setting in digital infrastructure, and potentially foster a network of partnerships that align numerous countries with China's technological and governance models.

Advances in big data-driven AI will soon make it possible for local authorities to "… analyze specific behaviours to perform real-time crime prevention" (Huawei 2016). According to Huawei (2016), "It won't be enough to just identify and index people and scenes captured on video; it will need AI that can perform association and reasoning. By analyzing people's behaviour in video footage, and drawing on other government data such as identity, economic status, and circle of acquaintances, AI could quickly detect indications of crimes and predict potential criminal activity." Such AI analysis could be performed not only to predict and

prevent criminal activity but also all manner of public activities, including political activism and dissent.

The involvement of Chinese tech companies, notably Huawei, ZTE, Hikvision, and Dahua Technologies, in smart city development in Serbia has attracted much attention from policymakers and news media outlets. Serbia's strategically important position as a hub for regional internet traffic, with four EU neighbors, and involvement in 5G collaboration—the 5G Public Private Partnership—in Europe, largely accounts for China's interest in this country's digital infrastructure (Vuksanovic 2022). Since 2019, Huawei has worked with the Serbian government on a "safe city" project in Belgrade, entailing the installation of 1000 surveillance cameras with facial and license plate recognition software in 800 locations across the city (Privacy International 2020). In addition, Huawei has partnered with the Serbian government to pursue a smart city strategy in other major Serbian cities, including Novi Sad and Niš (Vuksanovic 2022).

As Serbian cities have been peppered with Chinese-made surveillance cameras, installed in the name of safety and security, CSOs in the country have raised concerns not only about their sudden prevalence but the lack of transparency in the procurement process, limited information from the Serbian authorities about their regulation, and questions over the retention and access of the biometric data collected by these cameras (Krivokapic et al. 2021). As of 2023, the Serbian government does not have a legal basis to use facial recognition technology in policing, but has been trying to push through legislation that would legalize mass biometric surveillance (EDRi 2023). To date, several draft laws have been withdrawn due to public pressure (EDRi 2023).

The Serbian authorities claim that although these public surveillance cameras have facial recognition software, the facial recognition capabilities have not yet been deployed, given the absence of legislation (Jovanovic 2023). While police authorities deny that the facial recognition capabilities of their surveillance cameras are used to identify individuals and process biometric data, evidence perhaps suggests otherwise. For example, following the peaceful protests against the Serbian government's granting of an exploration license for the mining company Rio Tinto to develop a lithium mine in Loznica, many Serbian protestors received misdemeanor charges in the following weeks (Delbos-Corfield 2022; Pejic 2021). The CSOs in Serbia and elsewhere are calling for moratoriums on

biometric surveillance technologies and systems to ensure the protection of fundamental human rights (EDRi 2023).

Transnational Repression

There is an additional dimension to this discussion, which concerns the growing trend of extraterritorial surveillance and repression by authoritarian governments. Although not a new trend, the more recent development of digital communications, globalization of activism, and proliferation of bilateral and multilateral mechanisms of cooperation to target opponents abroad, such as Interpol and the Shanghai Cooperation Organisation (SCO), have enabled authoritarian governments to pursue transnational repression to silence critics abroad with increasing frequency (UHRP 2021: 7). Transnational repression often involves a combination of sophisticated technology, international legal manoeuvres, and covert operations to monitor, harass, and sometimes physically harm political opponents, dissidents, and ethnic or religious minorities living outside their borders. It is facilitated by advanced surveillance technology, such as spyware used to infiltrate the digital devices, along with other surveillance methods, such as social media monitoring, notably through the creation of fake profiles, and the spread of disinformation online to harass and discredit the targets and control political narratives.

The case of Saudi journalist Jamal Khashoggi is a stark example of an authoritarian regime targeting a dissident abroad, with credible reports suggesting that Pegasus spyware was used to monitor his communications and track his movements in the period leading up to his assassination. To give another example, China's targeting of Uyghurs beyond its borders is well documented, revealing a systematic approach to monitoring and silencing this ethnic minority. According to a report by the Uyghur Human Rights Project (UHRP) and The Oxus Society for Central Asian Affairs, China uses a wide range of techniques to repress Uyghurs overseas, including "…espionage, cyberattacks, and physical assaults, to the issuance of Red Notices via Interpol, an organization that coordinates police activities around the world. Between 1997 and December 2016, China was involved in the detention or deportation back to China of over 851 Uyghurs across 23 countries." In terms of surveillance technology, the report claims that "China has used some of its most powerful spyware tools against Uyghurs, including developing malware to infect iPhones via WhatsApp messages…" and has also "… hacked into telecommunications

networks across Asia in order to track Uyghurs and their activities abroad" (UHRP 2021: 17).

The UHRP report hints at an increasing concern about the use of Chinese-made surveillance technologies overseas, which is that when installed outside China, they could collect and transmit sensitive local data from these foreign countries back to China. Chinese tech companies have been active in creating the surveillance systems, complete with facial recognition technology, of Central Asian countries, which have a sizeable Uyghur diaspora: "Kyrgyzstan, Uzbekistan, and Kazakhstan have all purchased cameras from Chinese corporations to monitor traffic and their citizens, in a bid to create 'smart cities'" (UHRP 2021: 17). Hence, there are increasing apprehensions regarding Chinese surveillance equipment and the potential for such technology to be used in ways that compromise the privacy and security of individuals and governments outside China. This concern also stems from China's 2017 National Intelligence Law, which mandates Chinese citizens and organizations to cooperate with national intelligence efforts, raising concerns that the Chinese state can gain access to sensitive information collected by Chinese tech companies overseas.

Regulating Misuse and Mitigating the Proliferation of Surveillance Technologies

Addressing the complex global problem of the spread of increasingly advanced surveillance technologies that enable repression is challenging and requires a multifaceted approach for several reasons. Starting with the nature of the technologies themselves, many are dual-use, meaning that they have both civilian and military applications. There are, of course, beneficial civilian uses of surveillance technologies that greatly improve all our lives, such as in traffic management and road safety, disaster and emergency response and management, retail and business security, and environmental monitoring, just to name a few. There is also a legitimate demand for surveillance technologies for use in military applications, such as counterterrorism. At the same time, there is significant potential for the misuse of surveillance technologies, as illustrated by the two cases presented in this chapter, particularly in the tracking and profiling of individuals by governments.

The rapid pace of technological advancement in surveillance, especially now with the arrival of generative AI, has outpaced regulatory frameworks

and the establishment of necessary controls. In addition, the international trade in surveillance technologies often occurs in a shadowy realm with limited transparency, where companies and governments may engage in covert deals, making it difficult to hold them to account for the end use of these technologies. Furthermore, key exporters of surveillance technologies, such as China, Israel, and Russia, prioritize their economic, foreign policy, and security interests at the expense of human rights considerations.

When it comes to international governance of the sale and transfer of governance technologies, there is a lack of effective and comprehensive laws and regulations (Shakir and Wang 2021). This legal and regulatory vacuum creates a permissive environment for companies and governments to export these technologies with minimal legal repercussions. This is an area where progress can be made toward both stemming the spread (to repressive regimes) and preventing the misuse of advanced surveillance technologies. For example, developing and enforcing international agreements that set standards and restrictions, especially regarding the sale of these technologies to regimes known for human rights abuses. In addition, establishing comprehensive global regulatory frameworks that define the ethical use of surveillance technologies can help to establish universal norms and standards that make it easier to identify violators and hold them accountable. Importantly, there needs to be a fine-grained approach taken to regulating surveillance technology domestically that focuses on the requirements for specific types, such as facial recognition and RBI—an approach that the EU is currently taking in its regulation of technology. This fine-grained approach to evaluating and regulating surveillance technology should also guide export control regimes.

The EU has emerged as the world leader in adopting a more nuanced and comprehensive approach to the regulation of AI and the export of dual-use technologies. In the case of AI-driven surveillance technologies, the EU focuses on specific types and their potential impacts in the 2023 Artificial Intelligence Act (European Parliament 2023). In terms of establishing global standards in the area of export controls for dual-use technologies, the Wassenaar Arrangement is an existing framework, the effectiveness of which is limited by a range of factors. For instance, the fast-paced development and spread of AI-powered surveillance technology has resulted in a delayed response by regulatory bodies at national and international levels. The Wassenaar Arrangement's effectiveness is also hindered by the voluntary and non-legally binding nature of participation

by member states and inadequate enforcement mechanisms, as well as limited coverage, given that there are only 42 members, and China and Israel, two of the most significant surveillance technology exporters, are not members. Wassenaar has also been criticized by CSOs such as Human Rights Watch for being overly state-centric and not engaging with civil society groups and independent experts within the Wassenaar Arrangement forum to discuss export policies relating to surveillance technology (HRW 2014).

Nonetheless, the Wassenaar Arrangement has an important role in establishing an international consensus that supports national processes, where members then create their own legal basis for its implementation, enforcement, and compliance. Shifting its mode of governance from multilateral to a more multistakeholder model that includes CSOs and epistemic communities could improve its export control regime for dual-use technologies, but would face opposition from some members, such as Russia, that favor the state-centric governance model. Global collaboration in setting and enforcing standards for surveillance technology can also be facilitated and strengthened through other international bodies, such as UN agencies devoted to technology and human rights. The international sharing of information and best practices, harmonization of regulatory approaches, and the establishment of common platforms for monitoring the global trade in technologies would all go some way toward addressing the problem.

At the domestic level, the countries that export surveillance technologies need to strengthen their export control laws, ensuring rigorous assessment of the potential end-use and end-users of these technologies prior to approval. Given the commercialization of the surveillance sector, the tech companies that develop and sell surveillance technologies should be required to adopt ethical guidelines and conduct due diligence to ensure their products are not misused. This involves a comprehensive assessment of potential clients and the contexts in which these technologies will be deployed. Such measures are more likely to be achieved in western countries that export surveillance technologies, rather than countries like China, which engage in the intrusive and pervasive surveillance of their own population and exhibit a willingness to sell these technologies to other countries without concern for their potential misuse.

Governments also need to focus on enhancing transparency and accountability within the surveillance technology trade. For example, export licenses and deals should be disclosed and made available for public

scrutiny. Government oversight bodies play a crucial role in monitoring and regulating the production and export of surveillance technologies; hence, there should also be a focus on strengthening their capacity. In addition to the regulatory measures, there is a need for forums and dialogue at national and global levels involving a wide range of stakeholders, notably CSOs, tech companies, governments, and international organizations, to analyze and debate the ethical implications of surveillance technologies from a wider perspective. Such dialogue can help build a common understanding and a comprehensive and stronger set of global norms and principles that guide the development, sale, and use of these technologies. While improvements can, and are, being made to domestic and international legal and regulatory frameworks that govern the use and export of surveillance technologies, it is likely that, given the complex nature of the problem and the significant challenges mentioned earlier, the spread and misuse of surveillance technologies will remain a widespread global problem.

Conclusion

The surveillance technology landscape is set to evolve in rapid and unprecedented ways, driven by advancements in AI, quantum computing, and the Internet of Things. Real-time behavioral predictions produced by AI systems have already arrived, and soon, quantum computing will be able to break current encryption standards, presenting new challenges for securing data against unauthorized surveillance. Advancements in biometric technologies will lead to ever more sophisticated forms of identity verification. As these technologies become more integrated into our daily lives, the regulatory landscape will need to rapidly adapt, not only to address the current issues of data privacy and ethical use but also to anticipate and mitigate the risks of these emerging technologies. This necessitates a proactive, forward-thinking approach in policymaking, one that balances innovation with the imperative to protect individual freedoms and human rights.

The cases presented on the global spread of Pegasus spyware and the deployment of facial recognition technology in Serbia highlight some of the ways in which surveillance technologies are disseminated globally and used to track and repress individuals. They serve as stark reminders of the dual nature of such technologies—their potential for enhancing security and governance on one hand, and for enabling repression and human

rights abuses on the other. Hence, addressing the spread and misuse of advanced surveillance technologies requires a multifaceted approach at both domestic and global levels. This includes strengthening export control laws, enhancing transparency and accountability, fostering international collaboration, engaging in global dialogue with an array of stakeholders, investing in privacy-preserving technologies, and raising awareness and education on the ethical implications of these technologies.

At the heart of this global problem is the dual-use nature of surveillance technologies, which underscores the need for a fine-grained, comprehensive, and nuanced approach to surveillance technology governance, balancing the benefits of these technologies with the imperative to safeguard human rights. Internationally, this involves strengthening frameworks like the Wassenaar Arrangement and drawing inspiration from the EU's model of technology-specific regulation. Domestically, it requires rigorous export control laws and greater transparency in the trade of surveillance technologies, ensuring that their end-use is closely monitored and held to high ethical standards.

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CHAPTER 5

The Thai State's Transnational Repression: Forced Disappearance, Clandestine Murder, and Online Mobilization

Karin Zackari

Introduction

On 22 June 2016, Mr Ittiphol Sukpaen, alias DJ Sunho, a man of Thai nationality and leader of the dissident Red Shirt group Chiang Mai 51, disappeared in the Lao capital, Vientiane. Rumour says he was taken to an army base in northern Thailand, but it was denied by the Thai army officials (Khaosod English 2016). There ends the trace of Mr Ittiphol Sukpaen and begins a contemporary history of extraterritorial violence by the Thai state against political dissidents and perceived threats to national peace and order.

In social media circulates a video clip—a deleted scene from the documentary Siamese Dreams (Acrobates Films 2018)—of DJ Sunho (Ittiphol Sukpaen) speaking about what he and his comrades are fighting against and why that struggle forced them to leave Thailand: "[People]

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don't have freedom of expression. They can't demonstrate against the coup [2014]. They can't hold up three fingers for rights, freedom, and equality – the democratic principles. […] the junta, which are the King's military, considers it anti-junta". Criticizing the unchecked power and influence of the Thai monarchy, he continues with what would happen if they returned to Thailand: "First, they'll sue us for lèse-majesté. Secondly, we could be murdered, assassinated". The clip captures both the political question—the struggle over democracy, the role of the military and the monarchy—that has pushed Thai dissidents into exile in the past decade, as well as the seemingly arbitrary slippage between legal and extra-legal forms of state repression.

Since the military coup d'état in May 2014, there have been nine documented cases of enforced disappearances and likely murder of Thai nationals abroad related to these individuals' political activism in their country of origin. The cases have been noticed by international and local human rights organizations and brought to the UN Human Rights Council (Universal Periodic Review 2021, JS39). Of the nine who have been forcefully disappeared abroad, two were confirmed dead after their bodies were discovered, but no deaths or disappearances have been resolved. As an act of honour and to defy the secrecy of their faiths, I am naming only those who have been forcefully disappeared or killed, while I keep anonymized the known individuals in exile that have been subjected to other forms of repression or attempted attacks.

The extraterritorial violence must be understood in relation to the domestic cases of forced disappearances since the 1950s military regime. Due to lack of documentation, there is a discrepancy between known and suspected cases. Haberkorn (2018) writes that the 179 known cases are "conservative, partial estimates" that "grows to over 5,000 if one adds the suspected deaths that occurred during the *thang daeng* [red drum] killings in 1972 and the 'War on Drugs' in 2002" (Haberkorn 2018, 186). The United Nations Working Group on Enforced or Involuntary Disappearances (2025, 32) is currently considering 77 outstanding cases in Thailand (of which six are identified as females) of a total of 94 cases (9 females) from 1980 to May 2025.

All the known cases of disappearances abroad since the coup in 2014 have taken place in neighbouring countries: Laos, Vietnam, and Cambodia. Every one of the disappeared was affiliated with the United Front for Democracy against Dictatorship (UDD), also popularly referred to as the Red Shirts. A few of them were well-known, outspoken critics of

the monarchy and the military, who disseminated their message through online platforms. All cases have that in common that the disappeared had been subjected to charges of defaming the Thai monarchy under criminal code 112 (lèse-majesté).

Patterns of the noticed cases inform about the repertoires of dissent, but it is also revealing of the past ten years of authoritarianism, with the Thai government being less likely than in previous, more democratic periods, to meet dissent with accommodations (generally amnesties or the royal pardoning of political prisoners). Draconian laws and harsh punishment for political dissent follow the trajectory of military rule since the mid-twentieth century, but the past two decades have also seen an increased judicialization of Thai politics and the use of legal mechanisms for political repression (Haberkorn 2018; McCargo 2019; Streckfuss 2010). The post-2006 and 2014 military coup makers set their focus on legal reform of parliamentary politics to curb popular opposition, resulting in political party and election laws becoming "more and more punitive over time" (McCargo and Chattharakul 2020, 150).

Targeting Political Dissent

The high rate of implementation of the criminal code 112, or lèse-majesté, in Thailand makes the country stand out in international comparison. The law that criminalizes defamation, insult or threats to the king, queen, heir-apparent, heir-presumptive, and regent, has in the past decade been increasingly used to stifle political opposition. Mérieau compares the law to blasphemy "through its judicial definition (a crime against a faith and its community of believers), its judicial procedure (procedures of exception aimed at either redemption or exclusion), and overall social effect (creating a space of absolute unsayability concerning the king)" (Mérieau 2019). A severe increase in cases was first noticed after the military coup in September 2006, and especially against Red Shirts in 2010–2012. Another spike occurred after the coup in May 2014 (Streckfuss 2010, 2014; Wongwat 2017; BBC 2024), but there was a clear decrease after the king's coronation in 2017 and a complete stop in 2018, when cases were either dropped or brought under different charges (Thai Lawyers for Human Rights 2019). On 19 November 2020, then-elected Prime Minister Prayut Chan-o-cha announced that it was necessary to increase the intensity of implementation and enforcement of the criminal code 112. Following this statement, the number of cases has risen to an

all-time high, with more than 300 accused between November 2020 and April 2024 (Thai Lawyers for Human Rights 2024, 10 May).

The role of the monarchy in Thai history is a taboo topic—out of reverence, as part of nationalist discourse, and due to royalist hegemony—and is monitored through social censorship and draconian law (Isager and Ivarsson 2010). Any critique of royalism and traditional political power is treated in prolongation as a national security threat (Chaloemtiarana 2007; Reynolds 2002; Zackari 2016). Under King Vajiralongkorn (Rama X 2016–), even academic work, such as the history, historiography, and memory culture surrounding the end of absolutism in 1932 are topics that have become more politicized (Winichakul and Haberkorn 2021; Zackari 2023). It is argued that the present reign has transformed the Thai monarchy into modern absolutism: "The monarch is a godlike figure – above ordinary humans – who cannot be wrong and cannot be questioned. Loyalty and devotion must be absolute, and anything less is punished" (Haberkorn 2021).

The military's power since the 1950s regimes grew in tandem with the buttressing of the monarchy and King Bhumibol Adulyadej (Rama IX 1946–2016) as a figurehead and culturally unifying force of the Thai nation (Chaloemtiarana 2007). A profoundly anti-democratic alliance between the monarchy and military has rested on the two power-nodes benefitting from each other (McCargo 2005; Mérieau 2022; Chambers and Waitoolkiat 2016). To uphold, the monarchy has been the raison d'être of the military, even if recent trends under the current monarch suggest an asymmetrical relationship and that the King has secured an upper hand (Ganjanakhundee 2022).

The Thai state violence materializes on different levels, from official legal decrees to more clandestine operations. During the Cold War authoritarian rule, persecution of political dissidents, summary trials, and executions became the modus operandi of the Thai state (Haberkorn 2018; Chaloemtiarana 2007). Political violence during the 1970s was at large carried out by extreme nationalist-royalist vigilante groups that were initiated or sponsored by state agents, parallel with the military anti-communist attacks. In the late 1970s and early 1980s, the violence was reoriented from targeting the mass public to targeting individuals (Kongkirati 2019, 219). With the waning of the Communist Party of Thailand in the mid-1980s, the military's arbitrary detention, torture, extrajudicial killing, and disappearance of political dissidents declined,

while the routine use of extrajudicial violence by police has been continuous (Haberkorn 2018).

The nine cases of murder or disappearance abroad since the military coup in 2014 is at the same time, in line with the Thai state's repressive repertoire since the mid-twentieth century, and also represent something new, with direct attacks targeting Thai political dissidents outside of Thailand.

Cyberspace Repression

Crucial to the expansion of state repression across borders has been the parallel increase of suppression in digital spaces. The description of the Thai online digital repression as "both lenient and harsh" (Feldstein 2021, 99) is also an accurate description of the offline repression, but new possibilities for repression were created by the opening of digital spaces to both detect dissidents and to engage vigilante citizen groups. The Thai state's partial control over the telecommunications infrastructure (through long-term concessionaires and direct state ownership of some telecommunication companies) also plays into the ability to regulate user and provider conduct and for authorities "to monitor cyber activities and punish offenders, as well as enforce regulatory mechanisms" (Sinpeng 2013, 430).

Feldstein (2021) characterizes Thailand's implementation of digital repression as "an emphasis on strategies of control — taking actions particularly focused on censorship, surveillance, formal and informal pressure on relevant tech companies, and the targeted persecution of online users". The main repressive tactics are identified by Sombatpoonsiri and Luong (2022, 3) as "legal persecution of users and platforms, content restriction, surveillance, and Internet shutdowns." These are tactics of autocratic countries that "have a propensity to intensify digital repression" (Sombatpoonsiri and Luong 2022, 2).

The first Computer-Related Crimes Act (CCA) was enforced in 2007, after the military coup in 2006 that toppled the elected government under Thaksin Shinawatra. This act marked a policy shift in the Thai state's approach to cybersecurity, from "cyber surveillance" to "cyber repression" (Sinpeng 2013). In 2016, under the National Council for Peace and Order (NCPO), the name of the post-coup junta, military junta, the law was amended to include broad and vaguely defined provisions for offenses that significantly expanded the government's authority to restrict online

content, monitor internet activities, and penalize dissent (Somatpoonsiri and Loung 2022). Additionally, Thailand's Cyber Security Act, enacted in 2019, grants the government extensive powers to monitor and control internet activity in the name of national security, including the ability to seize data and equipment without a court order during a perceived crisis.

On 24 November 2021, Apple sent alerts to 17 users in Thailand, warning that their devices were compromised. That led to an international forensic investigation and the release of a report by Citizen Lab on 17 July 2022, showing that Pegasus spyware by the Israel-based NSO Group had indeed infected the mobile phones of at least 30 individuals in Thailand between October 2020 and November 2021. The targeted people were key figures in the ongoing and widespread pro-democracy movement at the time; they were activists, members of civil society groups, academics, lawyers, and NGO workers (Citizen Lab 2022).

Apart from filtering and blocking URLs (Sinpeng and Hemtanon 2019), an effective mechanism employed by the state to curb the relatively free flow of information on the internet is the "ideational", or informal pressure to create cyber behavioural norms (Sinpeng 2013). For this purpose, the Thai state Ministry for Information and Communication Technology (MICT) has been actively supporting and fostering online vigilante groups. One such group, the Cyber Scout programme, was initiated in 2010 by the royalist-conservative government under appointed Prime Minister Abhisit, to recruit and train hundreds of thousands of scouts to "watch out for behaviour that is a threat to the stability of Thai society" (Cyber Scout 2011). The scouts were trained to report to the MICT their monitoring of online behaviours deviating from Buddhist morals and conservative societal norms, such as gambling, narcotics, pornography, and defamation of the monarchy (Sinpeng 2013; Sinpeng and Hemtanon 2019, 268–269). Sinpeng writes about the programmes that they "are powerful tools that enable the state to shape the discourse on appropriate online behaviour; moreover, they also help reinforce other state coercive measures to control the Internet" (Sinpeng 2013).

The vigilante groups mobilize a strong internet presence as a strategy to defend a nationalist-royalist and Buddhist-moral societal order (Sombatpoonsiri 2018). In 2021, Google removed a map created by the small right-wing group called "Thai Wisdom Guard", marking the addresses of more than 400 named individuals accused of lèse-majesté (Miller 2021). One of the more famous state-sponsored vigilante groups is the Rubbish Collection Organization. Founded during the conservative

royalist yellow-shirt protests in 2013–2014, with the aim to rid the nation of "social rubbish" and lèse-majesté offenders, it "combines established forms of mob activism with professional military-style organization" (Sombatpoonsiri 2018).

The online intimidation and attacks are not limited to Thailand, with several of the targeted dissidents residing abroad. Especially around the time of the late King Bhumibol's death in 2016, there was a spike in the online-offline harassment of individuals perceived as threats to the Thai nation, living in the country or in places like Europe and Japan (Schaffar 2016; Sombatpoonsiri 2018). The harassments of political dissidents by the vigilante groups are combined with anti-democratic mobilization on social media (Sinpeng 2021), mass activism, and public happenings to display reverence and loyalty to the Monarchy—such as wearing specific colours representing the birthday of a royal family member (Schaffar 2016).

With the amendments of the CCA in 2016 by the then military-led government, the CSA of 2019, and the anti-fake news regulations under the CCA in 2022, Thailand has moved in the same direction as other autocratic states in the region (Sombatpoonsiri and Luong 2022). These changes have led to heightened censorship, increased surveillance, and greater control over digital expression, raising serious human rights concerns regarding freedom of speech, privacy, and access to information. Critics argue that the amendments facilitate state repression and undermine democratic principles by targeting political opponents, activists, and journalists under broad and vaguely defined provisions.

The First Disappearances in Laos

The first victim of enforced disappearance abroad after the coup in 2014 was the earlier mentioned Mr. Itthipol Sukpaen, on 22 June 2016 in Vientiane, the capital of Laos. An arrest warrant for charges of defamation (112) had forced him and others into exile in neighbouring Laos. While hiding, he continued posting online videos critiquing the Thai government and monarchy.

One year later, also in Vientiane, on 29 July 2017, Mr. Wuthipong Kachatamakul, popularly known as Ko Tee or Comrade Ma Noi (little dog), was forcefully abducted from his home. According to the witness account by his friend and his wife, ten armed men turned up at their house and assaulted them. "The men hit them, shocked them with stun

guns, tied their hands with plastic handcuffs, covered their eyes, gagged their mouths. They then put him into a car and drove away, leaving the wife and friend at the scene" (Destination Justice et al. 2021).

Ko Tee was a Red Shirt activist and a community radio DJ. He was also a member of the Organization for Thai Federation, which was declared illegal by the government in September 2018. In videos posted online, Ko Tee talked about armed liberation and plans to form a Thai federation (The Nation 2017). He left the country to avoid possible 112 charges, but had 29 arrest warrants out for him and the government accused him of plotting with militia groups to assassinate the then-prime minister General Prayut Chan-o-cha and other junta members (Destination Justice et al. 2021).

Murdered Dissidents Surfacing in the Mekong River

Among the most noticed cases is the vanishing, in Laos on 11 December 2018, of three men, Surchai Danwattanusorn (or Surachai Sae Dan), Chatchan Buphawan (Comrade Phu Chana), and Kraidet Luelert (Comrade Kasalong). Surachai was a well-known political activist in Thailand, who was prominent in the progressive Red Shirt movement against the conservative royalist Yellow Shirts and the military junta that overthrew the Thai Rak Thai party and its leader Thaksin Shinawatra from government in September 2006. As a former leader of the Communist Party of Thailand in the 1980s, Surachai had been sentenced to death for the murder of a police lieutenant in connection with a train robbery but eventually received a royal pardon. After his release from prison and during a more democratic period in the 1990s, he entered mainstream politics. After the 2006 coup, he formed the Red Siam group, a radical wing of the Red Shirt UDD. Mr. Surachai was arrested in February 2011 on lèse-majesté charges for a public speech he had made. He was sentenced to seven years and six months in prison in February 2012, but in October 2013, he received yet another royal pardon. To escape more charges for their political activism, he and his comrades fled Thailand for Laos after the military coup in May 2014 (Hanthamrongwit 2019).

The case of the three men became public knowledge when, in late December 2018, two body bags surfaced on the bank of the Mekong, the river that forms a border between Laos and Thailand. Gruesome photographs were circulated in the daily press with horrifying descriptions

of how the bodies of two men—identified as Phu Chana and Kasalong—had been handcuffed, their stomachs cut open and stuffed with concrete before they were put in rice sacks and dumped in the river (Zackari 2019; Khaosod English 2019; Thai Rath 2019). The police investigation took a halt after DNA identification of the two corpses, and no other action has been taken by authorities to determine accountability for the crimes. Despite no traces of Surachai Sae Dan, it is commonly believed that he was killed at the same time as his friends. As late as February 2024, the court of Nakhon Si Thammarat, Surachai's home province, declared him as missing, which allowed his wife to move on and handle his assets (Bangkok Post, 14 February 2024).

Persecuting Dissidents over Southeast Asia

Following the reports of atrocities against dissidents hiding in Laos, in January 2019, three men disappeared from Vietnam after they had left their first hiding place in Laos. They were reportedly detained by immigration officers for illegal crossing into Vietnam and rumoured to have been returned to Thailand on 8 May 2019, to the denial of both states' officials (Al Jazeera, 10 May 2019; JS39). These were Mr Chucheep Chivasut (uncle Sanam Luang), Mr. Kritsana Tapthai (Comrade Young Blood), and Mr Siam Teerawut (Comrade Mango Sticky Rice). Both Chucheep and Kritsana were leaders of the Organization for Thai Federation and accused of mobilizing against the monarchy by different forms of protest, including wearing black t-shirts (Human Rights Watch, 9 May 2019). Chucheep was also a YouTuber, broadcasting anti-monarchical messages, and an open supporter of ousted former Prime Minister Thaksin Shinawatra.

Among those who had fled to Laos for exile after the military coup in 2014, were members of the theatre group Prakai Fai (Sparking Fire), who came to be known as the "Wolf Bride Exiles". The group put up a play in October 2013 on the Thammasat University Campus marking the fortieth anniversary of the democracy uprising in Thailand. The satirical play, The Wolf Bride, told the story of a fictional one-eyed king, and drew unwanted attention from the conservative establishment. To understand the context, the monarch at the time, the now-late King Bhumibol, had lost an eye in a car accident as a young man. The 1970s social political mobilization—when liberal progressives, socialists and communists, labour unions, and farmers' organizations, came out in the street to

protest for democracy—has been serving as a source to empower later date movements against military dictatorship in Thailand. The historical context, as well as the historiography of key events in the 1970s are powerful sources for new political movements for democracy, and for seditious culture and arts in Thailand. The king and the monarchy's embeddedness in these contestations are taboo to mention or discuss. In August 2014, after several complaints had been filed against members of the theatre group for violation of the criminal code 112, the police arrested Pornthip Mankong, 26, and Patiwat Saraiyaem, a 23-year-old fine arts student. The court judged that the play was mocking the king and, after the defendants saw no option but to plead guilty, sentenced them to 2.5 years imprisonment each (Lamubol 2015).

Peers from the Prakfai theatre group decided to escape Thailand and possibly more lèse-majesté charges. Among them was Siam Teerawut, affiliated with the UDD. Siam first went underground in Laos, cutting the contact with this family back in Thailand to reduce the risk of police intimidation against them. Staying in an unknown location, Siam appeared as a regular guest on a YouTube show, criticizing the military rule and the monarchy. The last time he was seen on the show was 27 January 2019 (Quinley 2019). The following month, other exiled political activists told Siam's family he had been arrested and detained in Vietnam on charges of illegal entry, together with Chucheep and Kritsana (Baik et al. 2020). The Thai authorities deny any knowledge about the reports that the three men had been transferred to Thailand on 8 May 2019.

The cases reported of forced disappearances abroad so far stop with the abduction of Wanchalearm Satsaksit on 4 June 2020 in Phnom Penh, Cambodia. The event of the abduction is also the most recorded of all cases, affording it relative media attention. According to the witness account by his sister, she was on the telephone with Wanchalearm when she heard male voices in the background speaking in the Khmer language, and Wanchalearm, speaking Thai, said "I can't breathe". A security guard witnessing the abduction attempted to intervene, and the SUV car taking Wanchalearm away was caught on CCTV camera footage showing the making of the car and the license plate.

Part of the Red Shirt UDD movement and a former campaigner for a Pheu Thai party politician (an incarnation of the former Thai Rak Thai party), Wanchalearm had also profiled himself as an HIV/AIDS educator and activist. The NCPO ordered Wanchalearm to report to them

following the coup on 22 May 2014. When he did not follow orders, the Bangkok Military Court issued an arrest warrant for him in June 2014 after which he went into exile, first leaving for Malaysia and later moving to Cambodia. In 2018, the Bangkok Criminal Court, upon the request of the Royal Thai Police's Technological Crime Suppression Division, issued a second arrest warrant under the Computer Crime Act. Wanchalearm was accused of authoring posts critical of the Government and the NCPO on a satirical Facebook page called "I will surely get 100 million Baht from Thaksin" (alluding to allegations of former prime minister Thaksin as a vote-buying politician). On 13 May 2020, six Thai police officers visited Wanchalearm's family home in Ubol, Ratchathani province, to inquire about his whereabouts. The last public appearance by Wanchalearm was on 3 June 2020, when he posted a video on his Facebook page criticizing the then Prime Minister of Thailand, former general and coup leader Prayuth Chan-o-cha, for mismanagement.

The immediate aftermath of the event of the suspected disappearance is described in a communication to the Thai government, 12 June 2020, from the Mandates of the Working Group on Enforced or Involuntary Disappearances, the Special Rapporteur on extrajudicial, summary or arbitrary executions, and the Special Rapporteur on the promotion and protection of the right to freedom of opinion and expression:

> According to open source information, on 5 June 2020, Lieutenant General Chhay Kim Khouen, the spokesperson of the Cambodian National Police, stated that he had received 50 calls about the disappearance of Mr. Satsaksit but he considered the information to be "fake news, untrue news", adding "[w]e don't know about it, so what should we investigate for?" On the same day, Police Colonel Kissana Phathanacharoen, the deputy spokesperson of the Royal Thai Police, stated that the Thai Police had not received any information on the case. He added that the Thai authorities do not have the authority to intervene, as it did not take place on Thai soil. (Hazan et al. 2020, 2)

On 7 June, Wanchalearm's family issued a public statement urging the Thai government and the international community to investigate the disappearance. On 9 June, they submitted a letter to the Ministry of Foreign Affairs that responded that four days prior, they had already made an official request to the Cambodian counterparts for information on the investigation (despite the fact that the spokesperson for the Thai Police had claimed no knowledge about the case on that day).

In December 2020, the sister came to Cambodia to leave testimony in court. Interviewed by journalists for VOA Khmer, the Interior Ministry's State Secretary Khieu Sopheak assured the Cambodian government's "intention to assist in the investigation" (Chengpor 2020).

The Known and the Unknown

The Thai state's transnational repression functions the same way as the repertoires employed at home to silence political dissidents and curb opposition. The historical trajectory of the state violence and repression shows continuity in the Thai state's operations—simultaneously silent and visible, repression is part of various governments' repertoires to meet opposition, linking the violence to larger political divides within the Thai nation. Following the coup in 2014, murders and forced disappearances of dissidents in exile became a new part of the Thai state's repressive repertoire. All the so far nine documented cases between 2016 and 2020 were strong voices for the republican movement during the transition between two reigns, and the killing and disappearances of them point at the monarchy, rather than the military, as the nexus of political conflict in Thailand (Haberkorn 2021). These forms of transnational direct attacks also mark a shift in the form of collaboration between the Southeast Asian states supporting each other's authoritarian practices.

At this point in time, there is little known about the details of collaboration between Thailand and neighbouring countries. Exchange of intelligence obviously takes place, but the extent of it, as well as the existence of routines and protocols, is lesser known among scholars and human rights observers. There are also several instances of the Thai government reciprocating cooperation with foreign governments such as Cambodia, Vietnam, Myanmar, Laos, and China, by detaining and deporting dissidents and members of vulnerable diasporas (Han 2022).

Additionally, there is darkness surrounding the ministry of foreign affairs' workings, and the kind of instructions that Thai embassies and dispatches follow regarding Thai nationals expressing political dissent in other countries. According to Thai Lawyers for Human Rights (2024), since 2014 more than 100 Thai citizens have gone into exile, of which at least 66 due to lèse-majesté charges. Thai nationals living abroad, either in explicit political exile or as politically engaged ex-patriots, can relay stories of encounters with the embassy—being called up, invited for coffee or similar nonaggressive acts—as well as testify to not voting in the recent

elections from abroad to not risk being surveilled and registered by the embassies. To the authors' knowledge, there has not been any systematic survey or interview study covering issues like mobility control or distant threats and coercion by proxy, though individual cases have been reported by human rights organizations and media.

While the Thai state increasingly operates within the legal framework, so do the activists. A recent move to counter and bring into light the repression of political dissent at home and abroad was the launching of the so called "Draft People's Amnesty act" in November 2023 by a network of human rights and legal NGOs (iLaw 2023), to cover political activism and participation in mass democracy movements since the military coup 2007 and all the112 charges—that would make it possible for exiles to return to Thailand without legal repercussion. This happened after the general election in May 2023 that removed the coup-maker Prayuth Chan-o-cha as prime minister and paved the way for (red-shirt) Pheu Thai to lead a government coalition. The progressive party that won most seats in parliament, the Move Forward Party, had run on a proposal to reform the monarchy but was pushed into opposition when Pheu Thai shifted its alliance to the conservative and pro-military parties. Thaksin Shinawatra returned from his fifteen years in exile the same day in August that the new prime minister and leader for Pheu Thai, Mr Shrettha Thavisin, was announced.

In late 2023 and early 2024, a total of four bills proposing amnesty for political prisoners were proposed by the opposition. During 2024, a special parliament committee created a report on general political amnesty, and in October 2024, the house of representatives voted against such an amnesty should include lèse-majesté cases (Sattaburuth 2024). Among the parties against the inclusion of 112 cases was Pheu Thai, under the then Prime Minister Paetongtarn Shinawatra, daughter of Thaksin Shinawatra. Though the decisions made about the committee's amnesty report do not directly affect the proposed amnesty bills, the political deliberations point towards how deeply embedded in the political power of Thailand is the question of lèse-majesté—including how the law lends legitimacy to national and transnational state repression.

Yet another move to push the question of transnational repression forward was made on 10 June 2024 by the National Human Rights Commission when it accused state officials of involvement in the above-mentioned nine cases. The recent changes in government and the possibility for human rights organizations to raise the issue, could indicate that

the murder and disappearances abroad between 2016 and 2020 was an interlude in the Thai state's repression, while they have also shown the state's capacity for transnational violence.

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CHAPTER 6

Extending Authoritarian Reach: The Transnational Repression Strategies of Myanmar's Military (Sit-Tat) Against the Diaspora

Naung Naung

Introduction

As the world becomes more connected than ever, diaspora politics is progressively becoming integral to global politics, challenging political boundaries as the interplay between local contexts within diverse states and international human rights and self-determination frameworks shapes the scope and depth of diaspora political engagements (Østergaard-Nielsen 2001). On the other side of that coin is a parallel escalation of authoritarian regimes' involvement in the mechanisms of globalization, with a discernible trend in utilizing governance strategies for regime security that unfold within transnational spaces beyond or between states (Adamson 2002). While targeting exiles and opposition figures is not

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a novel phenomenon, the continued expansion of globalization and the swift advancements in information and communication technologies contribute to a significant increase in the occurrence and evolution of the nature of these practices (Shain 2005). Likewise, the past few years have seen a growing interest in exploring authoritarian transnational repression against citizens residing abroad as an area of study across disciplines (Furstenberg et al. 2021).

The rise of transnational repression means that governments increasingly extend their influence beyond their national borders to silence dissent within diaspora and exiled communities through various means, including assassination, deportation and forced repatriation, abduction, digital threat, the misuse of Interpol mechanisms, and intimidation tactics targeting family members who remain in the home country (Freedom House 2024). In her award-winning book *The Arab Spring Abroad*: *Diaspora Activism Against Authoritarian Regimes*, Dana Moss notes that transnational repression means that the people "cannot fully 'exit' from authoritarianism" and "those with domestic opportunities for protest remain constrained in the exercise of their rights, liberties, and voice" (Moss 2016). The use of tactics for repression is not a recent phenomenon, nor is it exclusive to authoritarian governments (Moss 2016). However, only some states actively monitor, influence, or control their citizens abroad to ensure loyalty or prevent dissent, often through methods that feel intrusive or coercive, which are called "blatantly pro-governmental and police-like ways" by Miller (Miller 1981). The extent of transnational repression is also influenced by the host states' policies toward it. In some cases, host states perceive it as a threat to national security and take active measures to combat it, while in other instances, states remain largely silent or inactive in addressing the transnational repression issue.

Although researchers and rights organizations have increasingly been producing research and public event data on transnational repression, their attention has primarily focused on China, Russia, and the Middle East, as these regions are the primary actors consistently engaging in transnational repression. Scholarly discourse and media coverage have thus far overlooked similar practices instigated by smaller countries, such as the Myanmar military (Sit-Tat), thus necessitating attention to this aspect in academic literature and news reports. Sit-Tat has implemented extensive strategies and tools associated with transnational repression to silence opposition groups, activists, and dissidents among diaspora

communities and exiles since taking control of Myanmar in a coup d'etat on February 1, 2021. While the state-sponsored domestic manifestations of repression of individuals opposing the coup have garnered notoriety and received international media coverage, the transnational repression executed by Myanmar's military beyond its borders remains conspicuously absent from international press and literature.

This chapter aims to examine the extent to which Sit-Tat has adopted transnational repression as a standardized and institutionalized practice to suppress dissent among overseas individuals. The multifaceted strategies employed by Sit-Tat to suppress dissent beyond national borders will be explored in this chapter. These strategies will be contextualized within the political landscapes of host countries that recognize Sit-Tat as the de facto government of Myanmar, highlighting collaborative efforts between Sit-Tat and these nations. Additionally, the chapter will examine the situation in democratic countries that do not recognize Sit-Tat as the legitimate government. Through this comprehensive inquiry, this chapter will contribute to the existing literature by addressing the lacunae in research on transnational repression perpetrated by Sit-Tat, particularly since the military coup in 2021, and its repercussions on individuals and communities residing outside the borders of Myanmar.

Background

In 2020, Myanmar held its second election following the transition to democracy initiated in 2011, achieving a successful general election with a 72% voter turnout rate, and election watchdog reports affirming the fairness of the elections and their alignment with the will of the Myanmar people (Antiquerra et al. 2021). Despite initial acknowledgment of the election's success, however, subsequent contestations by Sit-Tat, involving claims of irregularities and electoral fraud, led to a significant shift in stance and the execution of a military coup on February 1, 2021 (Office of the Commander-in-Chief of Defence Service 2020; Naing 2021).

Pro-democracy activities surged following the coup. Primarily led by Generation Z, widespread demonstrations coalesced into a principled democratic movement characterized by strong opposition to the military regime, rejection of perceived Chinese influence, condemnation of authoritarianism, and advocacy against racism and sexism (Jordt et al. 2021). Concurrently, a Civil Disobedience Movement (CDM) manifested as an extensive strike orchestrated primarily by civil servants. Although

the people's movement against the coup started with nationwide peaceful protests that were disseminated to local and global audiences through the utilization of social media platforms, the pro-democracy movement eventually chose an armed revolution in conjunction with ethnic armed organizations when Sit-Tat reacted with a violent crackdown on peaceful protestors. The resistance forces mobilized in response to the coup have achieved unprecedented advancements, including seizing an escalating number of towns, over 400 military outposts, and a strategically advantageous position (Hein and Myers 2023).

However, despite these unprecedented advancements, the cost of people's resistance has been steep. The military, adhering to a repressive playbook, has responded with escalating violence, leading to severe repercussions for pro-democracy activists and civilians. As of January 22, 2024, the Assistance Association for Political Prisoners (AAPP) had documented 4,416 individuals, including pro-democracy activists and civilians, who have lost their lives due to orchestrated fatal incidents by Sit-Tat since the coup, with 25,854 people arrested (AAPP 2024).

The Diaspora Community

The Myanmar diaspora community has substantively contributed to post-coup revolutionary efforts through various avenues, including financial support, vocal opposition of Sit-Tat (organizing protests and demonstrations in host countries, awareness campaigns through social media, and so on), and advocacy to their host governments. Financing has emerged as a pivotal factor for both the pro-democracy movement and Sit-Tat, and while Sit-Tat enjoys the advantage of governing state entities, diaspora communities are the primary funding source for Myanmar's resistance movement. Pro-democracy groups have demonstrated resilience by employing diverse crowdfunding strategies, including innovative online methodologies, with diaspora communities contributing millions of dollars (International Crisis Group 2022).

As Østergaard-Nielsen articulated in the "Diasporas in World Politics," that "diasporas draw considerable strength and viability from the increase in trans-state economic, social and political links, and themselves contribute to the intensification of these processes by their activities," Myanmar diaspora communities have exhibited heightened opposition to their home country's regime from abroad, particularly in the context of internal conflicts in the homeland (Østergaard-Nielsen 2001). The

active involvement of the Myanmar diaspora community bears similarities to that of the 2011 Arab Spring revolution in Libya and Syria, as increased engagement coincided with shifting domestic circumstances resulting from violence, altering the relational effects of repression on their relatives (Moss 2016). In Myanmar's case, this active involvement became particularly pronounced following severe human rights violations perpetrated by Sit-Tat against the populace.

As Myanmar diaspora communities around the world have contributed significantly to the emergence of the anti-coup movement and played an essential role in Myanmar's Spring Revolution, Sit-Tat has started using different strategies aiming both to restrict financial support from diaspora communities to the resistance and to minimise political risks by controlling diaspora communities' voice. These new strategies have resulted in an extensive campaign of violence, intensifying and broadening its utilization of terror tactics over the past three years.

Sit-Tat's Transnational Repression

Although diaspora activism doesn't bear the equivalent costs to the risk faced by those opposing the coup in Myanmar domestically, it is crucial to highlight Sit-Tat's employment of transnational repression strategies to penalize its opposition and suppress dissent beyond national borders through both direct and indirect means. Sit-Tat has a notorious history and culture of violence, and the deployment of transnational repression tactics by Sit-Tat is not a novel phenomenon; however, the contemporary strategies employed reflect a multifaceted and comprehensive approach, integrating digital technologies with various authoritarian actions into a cohesive framework. As Moss notes, specific modalities of transnational repression will vary, influenced by factors such as the regime's level of authoritarianism, its ideological orientation towards the diaspora, and host countries' political status and their capacities for repression (Moss 2016). In the case of Myanmar, Sit-Tat cannot rely on democratic authorities to suppress law-abiding dissidents on its behalf, and therefore, its employment of transnational strategies varies based on host countries' political status, such as foreign policy, regulation on technology, state sanctions, and cyber security practices (Brand 2006).

History of Political Assassinations by Sit-Tat

The Myanmar military's use of violence to repress and control dissidents is nothing new, and is, in fact, nearly as old as the country itself: in 1965, following the country's first coup d'etat in 1962, the first known attempted assassination occurred when Captain Kyaw Zwa Myint, a former aide to General Ne Win, fled to Thailand. While different narratives surround his escape, it is agreed that an assassin sent by Myanmar (then Burma) attempted to take his life in Bangkok, although Kyaw Zwa Myint ultimately survived and sought refuge in Australia (Irrawaddy 2021a).

On May 27, 1990, Myanmar held its first general election since the 1962 coup, and the National League for Democracy (NLD) achieved a decisive victory by securing 392 out of 485 seats (80.8%) in the National Assembly (Tonkin 2007). Upon Sit-Tat's refusal to relinquish power, a security crackdown ensued, prompting a dozen elected representatives to seek refuge on the Thai–Myanmar border. They established a parallel government known as the National Coalition Government of the Union of Burma (NCGUB) on December 18, 1990, in Manerplaw, Karen State (Irrawaddy 2012). In 1993, U Win Ko and U Hla Pe, two NCGUB ministers, were assassinated abroad by the Myanmar military. U Win Ko, a finance minister of NCGUB elected in the 1990 election, was brutally murdered with the suspected complicity of the Myanmar military in a hotel in Kunming, China, while U Hla Pe went missing the same year following his departure from a political meeting, to be found several months later by Thai police with a fatal gunshot wound to his head (SCMP 1993; HRW 1998).

On February 14, 2008, Padoh Mahn Sha Lah Phan, the general secretary of the Karen National Union, was assassinated at his residence in the Thai border town of Mae Sot. The gunmen who killed him were believed to be members of armed groups allied with Sit-Tat and acting under orders from Sit-Tat, marking a significant episode that underscored the lengths to which Sit-Tat was willing to go to suppress dissent (Rogers 2012).

Direct Attack (Plot to Kill the UN Ambassador)

The extreme nature of political assassination beyond national borders costs a lot and attracts the most attention and condemnation. However,

Sit-Tat has not only historically employed this extreme tactic as a strategy to suppress dissent within the diaspora and exiled communities, but it continues to use it today.

A few weeks after the military coup in 2021, Myanmar's ambassador to the UN appointed by the previous government, delivered a speech on the floor of the UN General Assembly (UNGA), to condemn Myanmar's coup as "not acceptable in the modern world" and to plead for international intervention to use "any means necessary" to quell the attempted coup, affirming his allegiance to the duly legitimized parallel government, the National Unity Government (NUG) (Sullivan 2021). Under the authority of Sit-Tat, the state-controlled television formally denounced Kyaw Moe Tun as Ambassador to the UN, alleging that he had "betrayed the country" (BBC 2021). Since then, Sit-Tat has endeavored on multiple occasions to appoint a new ambassador, as control over the seat in New York is perceived as a strategic foundation for NUG's extended efforts in pursuing international recognition (VOA 2021). However, the UN Credentials Committee has affirmed its commitment to maintaining Kyaw Moe Tun as Myanmar's ambassador to the United Nations (Irrawaddy 2023c).

Sit-Tat thus engaged in the direct targeting of Kyaw Moe Tun due to his decision to represent the collective voice of the people at UNGA rather than aligning with the stance of Sit-Tat. During the first week of August 2021, the US FBI exposed a plot involving the orchestrated intent to inflict fatal harm or severe injury upon Kyaw Moe Tun (Nichols, 2021). Two Myanmar citizens situated in New York were implicated in the plot, said to be acting upon directives from an arms dealer associated with Sit-Tat operating from Thailand. This arms dealer has routinely accompanied Sit-Tat's generals during their foreign trips (Irrawaddy 2021).

Notwithstanding Sit-Tat's disavowal of any connection to the alleged scheme of political assassinations of Myanmar's UN ambassador, a reasoned inference can be drawn, attributing the orchestration of the plot to Sit-Tat, grounded in Sit-Tat's historical proclivity for the violent elimination of political dissidents (Irrawaddy 2021).

Moss emphasizes the dual purpose of targeted violence: first to eliminate the imminent threat of international recognition of the opposition, as through representation of the Myanmar people's voice at UNGA, and second to send a signal to diaspora communities that there exists no secure refuge for dissidents (Moss 2016). Despite considerable risks,

including international backlash, increased pressure from the global community, and potential strain on diplomatic relations, Sit-Tat endeavored to eliminate the UN ambassador using covert agents. The deliberate targeting of the UN ambassador in this context is indicative of a strategic transnational repression measure aimed to signal the potential consequences for those who dare to express dissent, instilling widespread fear among diaspora communities.

Punishment by Proxy (Family Intimidation)

Another significant tactic to repress dissidents abroad is to threaten their family members in the home country as a collective punishment, a strategy noted by various scholars (Alexopoulos 2008; Heckathorn 1988; Khawaja 1993). Sit-Tat has employed arbitrary detention, violence, and intimidation against relatives and associates of activists, dissidents, and opposition members residing abroad. This coercive approach aims to instill fear within the domestic population as a collective punishment and maintain control over diaspora communities. As of June 22, 2021, Sit-Tat has arrested at least 85 family members of dissidents, including 41 women aged 2–75 years old, when the intended target of arrest could not be located, as documented by AAPP since the coup (VOA 2021).

On June 7, 2023, the elder brother of the NUG Deputy Human Rights Minister, Than Myint, was fatally stabbed near the Nwe Aye Mosque, with the perpetrators escaping (RFA 2023). The incident was marked by claims of responsibility by pro-junta activists on social media and underscores the targeted violence against the primary social groups of people associated with the resistance movement (RFA 2023). In Sep 2022, San Min Paing, an active member of the All-Burma Federation of Student Unions, found himself arrested and subsequently imprisoned for over eight months in three interrogation centers, four police stations in Yangon, and then a juvenile prison in Thanlyin, as he was just 17 at the time of his arrest, due to his vocal opposition to military rule. Although he managed to escape from Thanlyin Prison and was exiled to Thailand, junta troops gunned down both his parents, who were in their 50s, at their residence as a collective punishment less than a week later (Pa, n.d.).

These incidents highlight Sit-Tat's employment of proxy punishment by targeting the family members and relatives of people living abroad and opposing the coup as a policy. People involved in the resistance movement

against the coup, despite living outside the homeland, thus experience terror as their family units are controlled by Sit-Tat.

Digital Transnational Repression

The use of digital technology for transnational repression is not exempt from the array of strategies employed by Sit-Tat to suppress dissent within diaspora communities. Since the coup, digital technology, including parliamentary sessions over Zoom, social media activism, and messaging apps, has become integral to the resistance movement, fostering coordination among activists, transcending urban-rural divides, and enabling widespread dissemination of information while minimizing intervention from Sit-Tat and reducing risks to personal safety (Kim and Rød 2021). As opposition forces adeptly employ these online tools to advance their political objectives, mobilize social movements, orchestrate protests, and facilitate information exchange, Sit-Tat has increasingly recognized the challenges posed to its power by the burgeoning realm of online activism and internet connectivity (International Crisis Group 2021). Diverse strategies to control the digital space have since been implemented, suppressing freedom of expression and arresting individuals expressing dissenting views online. According to a report from Free Expression Myanmar, the state of digital rights in Myanmar has reached an unprecedented nadir, with the extent of digital repression by Sit-Tat now on par with that of China (Free Expression Myanmar 2022). In fact, it has been reported that Sit-Tat has received technological assistance, including advanced surveillance equipment and technical experts, from China, with additional support coming from Russia and Iran (McDermott 2022b).

Deibert described cyberspace authoritarianism in three generations, which Sit-Tat exemplifies. In the first generation, Sit-Tat has restricted certain websites, WhatsApp and Facebook usage, internet access, and virtual private networks (VPNs) to limit people's access to information (Deibert 2015; International Crisis Group 2021; Potkin 2021). As a second-generation control, Sit-Tat has introduced the most repressive digital rights bill in Southeast Asia, which violates virtually all internationally recognized digital rights, lacks provisions safeguarding the right to privacy, and incorporates arbitrary and ad hoc decision-making processes and penalties (McDermott, Kyoto Review 2022a; Dhevy et al. 2023; Deibert 2015). The third-generation controls are made possible by the support received from China, Russia, and Iran, encompassing

"surveillance, targeted espionage, and other types of cover disruptions in cyberspace" (Deibert 2015). With these controls, Sit-Tat is attempting "to introduce Southeast Asia to something akin to the Chinese model of state surveillance and information control, providing the junta with a "golden firewall" modelled on China's "great firewall" or Russia's "digital iron curtain" (McDermott 2022b).

In contrast to other tactics of transnational repression, Digital Transnational Repression (DTR) offers distinct advantages such as low risk, cost-effectiveness, adaptability, and the facility for inconspicuous execution without readily detectable attribution (Schenkkan and Linzer 2021). These characteristics have made DTR increasingly appealing to authoritarian regimes, prompting certain scholars to categorize DTR as an "everyday" manifestation of transnational repression (Schenkkan and Linzer 2021). As per UN experts, Sit-Tat is orchestrating a digital campaign of intimidation, utilizing social media platforms as tools of weaponization to suppress democratic opposition by enabling extensive surveillance (UN 2023).

Sit-Tat strategically employs a combination of online and offline surveillance tactics to repress individuals supporting the resistance movement both within the country and internationally. According to a study from Myanmar Witness, Sit-Tat is using a coordinated doxing campaign on Telegram channels, exposing personal details and posts of those supporting the victims of Sit-Tat's airstrike and leading to subsequent arrests (Myanmar Witness 2023). This strategy of doxing, characterized by the disclosure of dissenters' identities and details online, is identified as a potent tool of suppression, leaving individuals vulnerable and intimidated while deterring others from advocating against Sit-Tat.

Pro-Sit-Tat Telegram channels also target people living abroad who provide financial support and robust backing to the anti-junta resistance and have called for the arrest of these individuals or their relatives in Myanmar (Aung 2023). After the assassination of the brother of the NUG Deputy Human Rights Minister, pro-junta networks utilized social media platforms to claim responsibility (RFA 2023). Pro-junta Telegram channels also issued appeals to their supporters, urging the disclosure of the identities of individuals opposing the coup in February 2021, along with the names of family members of activists in exile (RFA 2023). This tactic has impacted the rights of victims severely: even if they are mostly safe, people living abroad may opt for silence, considering the broader threat posed against their social circle. The versatile strategies employed

by Sit-Tat in orchestrating DTR reflect its concerted efforts to stifle dissent within diaspora communities. From leveraging advanced surveillance technology and imposing restrictive digital controls to engaging in coordinated doxing campaigns, Sit-Tat demonstrates a comprehensive approach to suppressing opposition both domestically and abroad.

Financial Restrictions and Passport Controls

Personal remittance has long been a significant component of Myanmar's economy, reaching around 8 billion USD, or about 13% of Myanmar's GDP, in 2015, with nearly half originating from migrants abroad (IFPRI 2023). The diaspora community is also the most critical funding source for Myanmar's resistance movement.

Since the coup, Sit-Tat has thus focused on impeding financial support to resistance groups, including through capital controls, foreign currency transaction monitoring, and freezing accounts. These measures create challenges for opposition groups, as they lead people toward alternative, less monitored channels for financial transactions (International Crisis Group 2022). Likely as a result of these measures, remittances received in Myanmar declined to 1.9 billion USD in 2022, according to the World Bank (World Bank 2024). In response to this decline, Sit-Tat has mandated expatriate workers to remit a minimum of 25% of their income through the country's banking system. There Sit-Tat can take advantage of its control over the levers of the state, converting the foreign funds at an official rate significantly lower than the market rate to block the financial flow to resistance groups (Irrawaddy 2023). The directive, affecting approximately 2 million Myanmar nationals working legally in Thailand alone, dictates that those not complying with the regulation may face work permit restrictions (Bangkok Post 2023).

One week after the mandate for the compulsory 25% income remittance, Sit-Tat, through Myanmar embassies in prominent Asian nations, introduced additional tax regulations for Myanmar nationals working abroad, ostensibly to enhance foreign currency inflows (NikkeiAsia 2024). Individuals residing in Japan, South Korea, Singapore, Thailand, and Malaysia are now subjected to an average 2% income tax, with specific amounts determined by income brackets, and non-compliance may affect their passport renewal capabilities (NikkeiAsia 2024). This initiative has generated concerns among employers about potential indirect support for the military government and the serious human rights violations it

has been committing against its own people, potentially putting Myanmar expatriates' jobs in jeopardy.

Sit-Tat's imposition of new financial restrictions is closely tied to the manipulation of identity documents, underscoring the regime's deliberate efforts to silence dissenting voices, impede financial support to the resistance movement, and exert control over Myanmar passport holders in foreign countries. By revoking or refusing to renew passports, either as a consequence of failure to comply with the new remittance and income tax laws or as direct punishment for taking part in anti-junta activities, Sit-Tat constrains the fundamental rights of the Myanmar diaspora community. This impingement upon freedoms of expression and travel, among others, can limit access to livelihoods, education, health services, and so on. Myanmar embassies under the control of Sit-Tat thus wield the capacity to inflict tangible harm upon Myanmar passport holders.

Extraditions

Another tool to limit the movement of Myanmar citizens abroad, namely, by encouraging extradition, is the new bylaws pursuant to the 2014 Counterterrorism Law, permitting Sit-Tat extensive and unregulated authority to target individuals opposing the coup, including dissidents from and living in foreign nations (ICNL 2023). Sections 15 (Articles 86 to 95) and 20 (Article 115) explicitly exclude extraditions related to terrorism and terrorism financing from classification as political offenses, facilitating cooperation between nations in the extradition proceedings of individuals involved in such cases (Anti-Terrorism Central Committee 2023). These regulations are in direct conflict with the 1951 Refugee Convention, an international treaty that prohibits the forced repatriation, or *refoulement*, of individuals when compelling evidence suggests a credible risk of persecution upon their return. Under the pretext of preventing terrorism and terrorism financing, the Counterterrorism Law effectively empowers Sit-Tat to induce the host countries to suspend the regulatory safeguards that prevent forced repatriation and to circumvent host countries' legal obligations under international conventions and treaties to commit transnational repression.

Bilateral Pressure in ASEAN Countries

Assassinations, family intimidation, financial repression, and passport cancellation are just some examples of how individuals engaged in activities against Sit-Tat face threats to their safety, irrespective of their geographic location. These actions constitute an expansion of state sovereignty achieved through the unlawful removal of the civilian-elected government, enabling the repression of dissidents in foreign nations, with a particular emphasis on migrants within the Association of Southeast Asian Nations (ASEAN). ASEAN is a collaborative relationship among democratic and military regimes, where Sit-Tat has especially focused on diverse mechanisms of transnational repression to silence dissidents. These methods encompass illegitimate deportations, the revocation of passports, and even abductions, all intended to suppress the voice of people who have demonstrated opposition to the coup and aligned themselves with the pro-democracy movement.

A human rights report from the Bureau of Democracy, Human Rights and Labor from the U.S. Department of State indicates that Sit-Tat has exerted influence on the Thai government, compelling the imposition of heightened border control measures with Myanmar (U.S. Department of State 2023). This transnational strategic maneuver aims to weaken the capacity of pro-democracy activists, politicians, and dissidents to initiate forced refoulement. Similar influence is suspected to be held with other ASEAN governments, given the transnational repression committed by Sit-Tat within ASEAN borders.

Thailand

Participation in the pro-democracy movement in Myanmar poses a life-threatening risk, necessitating actors to perpetually conceal themselves to avoid Sit-Tat searches, and the most common place to flee to is the Thai–Myanmar border. Since at least the 1980s, Thailand has sheltered tens of thousands of refugees fleeing the armed conflicts that have been ongoing in remote parts of Myanmar for decades. Since the 2021 coup, Thailand has allowed refugees to stay in temporary camps outside of the nine permanent camps, but reaching and crossing the border into Thailand does not guarantee safety or a significant improvement in freedom of movement (HRW 2023; ICNL 2023). Authorities have intermittently pushed refugees out of these temporary camps, with greater pressure

since late October 2023, when Thailand also began rejecting refugees attempting to cross the border (HRW 2023b).

Sit-Tat's reach into Thailand is highlighted through incidents such as the April 2023 arrests of three anti-junta activists who were receiving medical treatment in Thailand. Three days later, on 4 April, the trio were forcibly repatriated. After being handed over to Sit-Tat and subsequently imprisoned and tortured, one of the individuals succumbed to fatal injuries inflicted during an episode of torture. The current locations of the two remaining individuals remain undisclosed (HRW 2023; Thailand Post 2023).

Similarly, Thai authorities raided a healthcare clinic in Mae Sot, a town on the Thai–Myanmar border. The clinic provided free healthcare services to undocumented refugees, including pro-democracy activists. However, Sit-Tat induced Thai authorities to investigate, search, and arrest these activists by accusing the clinic of providing healthcare to members of the People's Defense Force, who are deemed terrorists by Sit-Tat (ICNL 2023).

Malaysia

On July 4, 2023, Thuzar Maung, an outspoken supporter of Myanmar's pro-democracy movement, was reportedly abducted along with her husband and three children from their residence near Kuala Lumpur. Malaysian authorities mounted an investigation on July 18 into the family's disappearance (Amnesty International 2023). Although CCTV footage and witness statements show that they were taken by unidentified individuals, authorities officially announced in September 2023 that the family left voluntarily, although they have not been heard from since (Yusof 2023; The Malaysian Insight 2023).

On October 19, 2022, Malaysia deported 150 Myanmar nationals, including six Myanmar Navy Officers who joined CDM and defected from Sit-Tat to seek asylum in Malaysia after the coup, despite the risk of arrest upon their return to Myanmar (Latiff and Ananthalakshmi 2022). The deportations transpired notwithstanding Malaysia's expressed condemnation of the violence in Myanmar following the coup, underscoring a disjunction in the country's stance on the matter.

Singapore

Singapore has a history of extradition agreements with Myanmar authorities, even before the coup, namely the arrest and deportation of six Arakanese migrants by engaging in cooperative efforts with the authorities of Myanmar in 2019 (Eckert 2019). These individuals, including the chairperson of the Arakan Association Singapore and the sibling of the Arakan Army (AA) leader, were accused of close association with the AA, an ethnic minority insurgent entity. This occurred despite the extant and imminent threat of persecution faced by the individuals in question, exposing them to egregious human rights violations, notably torture. In undertaking this course of action, Singapore seemingly deviated from its international obligations concerning deportations. The six migrants were subsequently arrested by authorities on arrival at Yangon International Airport and persecuted under Sections 50(J) and 52(a) of the Counterterrorism Law (DMG 2021).

In late 2023, Singapore authorities reportedly informed multiple Myanmar citizens residing in the country that their passports were invalidated without providing a clear explanation. Between August and October of 2023, at least three individuals with permanent residency status discovered their passport cancellations upon attempting to travel, highlighting a significant concern for Myanmar nationals living in Singapore (Aung 2023). Per information provided by a Singaporean immigration officer, the revocation of passports exclusively targeted individuals who opposed Sit-Tat (Aung 2023). Among those affected, Myanmar nationals with a valid permanent residence permit are secure and permitted to extend their residency, although an invalidated passport impedes their ability to depart from Singapore.

Due to the lack of transparency surrounding passport cancellations, a considerable number of Myanmar nationals in Singapore may unknowingly possess invalid passports, potentially leading to significant challenges for expatriates, particularly those actively endorsing resistance against the military regime in Myanmar. Myanmar nationals lacking permanent residency status in Singapore could potentially face involuntary repatriation to Myanmar, exposing them to the risk of prosecution upon return.

Transnational Repression in Democratic Countries

In his essay "The autonomous power of the state: Its origins, mechanisms and results," Michael Mann described political authority as one established and maintained through the utilization of networked infrastructures, providing regimes with the capacity for the exercise of "extensive power" (Mann 1984). Internationally, these networked infrastructures include institutional outposts, exemplified by diplomatic entities like embassies, missions, and consulates, which serve as strategic nodes for executing political influence beyond national borders, allowing regimes to extend their reach and implement control through organized and networked structures (Moss 2016).

The Australia Case

By harnessing power through networked infrastructures, the Myanmar embassy in Australia controlled by Sit-Tat functions as an extension of and service provider to the authoritarian state (Brand, Citizens Abroad: Emigration and the State in the Middle East and North Africa, 2006). This embassy's operations in Canberra exemplify an orchestrated expansion of the state's influence beyond its borders, employing institutional mechanisms to further the interests and objectives of the authoritarian regime and underscoring the interplay between diplomatic outposts and the overarching state apparatus.

According to Dr Tun Aung Shwe, NUG Representative to Australia, Sit-Tat has leveraged the embassy as a tool for surveillance to monitor the activities of pro-democracy movements among Myanmar diaspora communities in Australia. Functioning like a satellite station, the surveillance methodologies employed by the Myanmar embassy involve deploying informants to events such as protests against the coup, fundraising activities, and the opening ceremony of the NUG office in Canberra. These informants observe and document personal information, including photographic evidence and the collected information is subsequently transmitted back to Myanmar, where it may be utilized to intimidate and harass family members residing there. According to NUG Australia office records, diaspora communities report experiencing passport revocation, denial of consular services, including issuing or renewing passports, and threatening phone calls because of their active involvement in the pro-democracy movement in Australia.

Myanmar students in Australia have reported harassment by the Sit-Tat-run embassy through a letter compelling them to disavow support for the pro-democracy movement, refrain from involvement in CDM, and declare allegiance to the Sit-Tat government (Dziedzic 2021). The letter has raised concerns among the broader Myanmar student community in Australia, and the scholars expressed fear of repercussions, citing threats, detention, and potential arrest upon returning home (Dziedzic 2021).

These reports were confirmed by Elaine Pearson, the Australian Director of Human Rights Watch, during the public hearing of the Human Rights Subcommittee on Foreign Affairs, Defense, and Trade in Canberra on September 13, 2021 (Pearson 2021). She contended that individuals originating from Myanmar, Cambodia, and the Uyghur community in China express a deep sense of insecurity when participating in events or protests in Australia, citing concerns about potential repercussions (Pearson 2021). The Australian Minister of Home Affairs subsequently addressed the phenomenon of transnational repression by foreign governments during an address at the Australian National University, describing instances in which governments deploy human sources to gather personal information on activists, surveil peaceful protests, orchestrate counterprotests to incite violence, and harass academics and media professionals (O'Neil 2023).

A salient case of Sit-Tat's use of its embassy in Canberra as an extension of its authoritarian control is that of the renowned Myanmar Academy Award-winning actor and singer, Min Maw Khun. Min Maw Khun's vocal opposition to the junta garnered significant public attention, ultimately compelling him to seek refuge along the Thai–Myanmar border during the second week of April 2021. Upon his arrival at the border, his father, Zin Wine, was arrested. Zin Wine, also an Academy Award-winning actor and two-time Myanmar Motion Picture Organization chairperson, was detained in an interrogation center, where he faced intimidation in the form of threats against his granddaughter. Due to his poor health, Zin Wine was forced to acquiesce to Sit-Tat's demands, signing a statement affirming the narrative endorsed by Sit-Tat, and he was released.

Meanwhile, Min Maw Khun decided to relocate with his family to Australia as airstrikes by Sit-Tat escalated hostilities along the Thai–Myanmar border. The resettlement process proved challenging, however, as he and his family encountered obstacles in attempting to fly to Australia, facing denials by Thai authorities on at least five occasions.

When he finally arrived in Australia, Min Maw Khun promptly began engaging in fundraising activities to support the pro-democracy movement and NUG, emerging as the primary fundraiser for the cause. This active engagement drew the attention of Sit-Tat, and several pro-Sit-Tat Telegram propaganda channels, notably the infamous Han Nyein Oo channel, began disseminating content that amounted to incitement. This included explicit threats to harm him, suggestions of killing one or more members of his family, doxing him and his family, and intimidation of his father and relatives in Myanmar.

In addition to these digital threats, the Myanmar embassy in Canberra regularly provided reports to Australian authorities that Min Maw Khun's participation in the pro-democracy movement and endorsement of the NUG could be construed as engaging in terrorist activities. Consequently, the Australian Federal Police and other authorities conducted at least five separate investigations at his residence to ascertain that his activities were unrelated to terrorist enterprises.

The Myanmar embassy and Sit-Tat's networked infrastructures' active engagement in intelligence-gathering operations indicate the regime's efforts to extend its influence and control over dissident activities beyond its national boundaries, even in democratic countries that cooperate with the NUG. This covert monitoring and data collection strategy highlights a systematic effort by the authoritarian regime to control dissenting activities abroad and extend its reach beyond national borders. Through these means, the institutions affiliated with Sit-Tat possess the capacity to exert a potent influence that extends significantly over the diaspora community.

Conclusion

The transnational repression tactics described above reveal a multifaceted approach to stifle dissent within the diaspora communities. Sit-Tat's historical propensity for violence, rooted in a longstanding culture of oppression, is contemporarily manifested through the integration of digital technologies and other adaptations into a cohesive framework. As diaspora activism remains a critical pillar of resistance in the wake of the coup, the regime employs strategies that target both individuals and their families, instilling fear and silencing opposition voices.

Although Myanmar is a relatively small country with little power when compared to other perpetrators of transnational repression, such as China and Russia, this chapter helps to fill in a noticeable gap in the available

body of research on the subject, shedding light on the specific strategies employed by Sit-Tat and their impacts on individuals and communities residing outside Myanmar. A deeper understanding of the tactics employed by the Sit-Tat in Myanmar and their impact on individuals and communities outside the country provides valuable insights into the evolving nature of transnational repression, including integrating digital technologies and diplomatic outposts as tools for surveillance and control. It also illuminates the interconnected nature of state power within international systems. The orchestrated extension of power through diplomatic outposts, exemplified by the Myanmar embassy in Canberra, underscores the adaptability of authoritarian regimes to utilize networked infrastructures for intelligence gathering and monitoring of diaspora communities. Understanding these dynamics is essential for policymakers, human rights advocates, and international organizations seeking to address and counteract such operations. This knowledge is critical for developing nuanced and effective responses to transnational repression, fostering international cooperation, and safeguarding the rights and safety of individuals targeted by such tactics. In short, addressing this research gap provides a foundation for more informed and targeted efforts to counteract transnational repression by authoritarian regimes like the Sit-Tat.

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CHAPTER 7

China's Transnational Repression (CTR) on Uyghur Diaspora and Its New Forms

Dilnur Reyhan

Introduction

The particularity of China's transnational repression (CTR) is that it targets all diasporic members who are citizens of the People's Republic, and it targets foreign citizens, not only of Uyghur ethnicity or those who were Chinese citizens in the past, but even other foreign citizens who are committed to human rights—particularly those of Uyghurs. Thus, in recent years, we have seen many incidents produced by Chinese representatives or their institutions abroad against citizens of the host countries. Among the new strategies of CTR and a new technique that has emerged over recent years, there is the use of legal tools in democratic countries

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to attack figures, researchers, or activists who are nationals of the host country.

Like repression organized by other authoritarian and dictatorial regimes, CTR essentially targeted political or cultural activists. However, specifically Chinese strategies have radically changed since 2014, and more precisely since the beginning of the genocidal policy in the Uyghur region. Now, unlike other autocratic regimes that use transnational repression to target activists abroad, the Chinese campaign is more generalized, using transnational repression against individuals because of their ethno-religious identity more than their activities.

The Diaspora Before 2016

The Uyghur diaspora has always lived in an atmosphere of permanent self-censorship, especially when members contact their families who remain in China. This vigilance can be heightened or relaxed a little, depending on changes in the policies or the political atmosphere in the Uyghur region.

The vigilance of members of the diaspora would increase just before they returned to see their families. Many strategies were put in place to avoid having problems with Chinese intelligence services: new mobile phones were acquired in case of a search by the police; publications on social networks were deleted; Facebook accounts were temporarily suspended; a low profile was kept in conversations; people would reduce the frequency of their participation in collective events of the diaspora or else avoid them entirely, etc.[1] Almost every Uyghur was confronted with police questioning upon arrival at Urumchi airport, or even in Beijing, while the other passengers passed through security checks without any problems. During their stay, police intelligence services regularly harassed them to "have tea," with refusal potentially resulting in the confiscation of their passport, the inability to leave, or even detention.

Situation of the Diaspora Post-2016

Starting from the end of 2016, Chinese consulates have been turning away Uyghurs who hold Chinese nationality and whose passports' validity is near its end, refusing to renew them. Passport renewal has also become

[1] Interviews for my PhD thesis during 2014–2016.

one of the methods of blackmail used by the Chinese police when they pressure Uyghurs of the diaspora to collaborate with them and spy on the community.[2] Chinese consulates are important relays in the CTR. In the leaked document "Bulletin No. 2" of the Xinjiang Police Files confidential document series,[3] it reveals a directive that all persons on the visa application lists should be monitored and inspected one by one, and that those whose Chinese citizenship had already been revoked (usually due to their obtaining citizenship elsewhere), and who were suspected of terrorism, should be deported from China to their country of origin.[4]

Since as early as 2016, the diaspora has been gripped with a specific fear, stemming from the order directed at many Uyghurs, especially students, to return to the Uyghur region. This usually came just before communication with the family remaining in the region was broken. The order was given either directly by the local police or by threatening the family, which would beg their children who were studying abroad to return. Refusal could cost the family dearly because the parents risked being taken to the camps. This threat has been particularly fierce in Muslim countries, including Central Asian countries (Reyhan 2019), Egypt, Türkiye, and Dubai. During late 2016 and 2017, many Uyghurs left their work and studies abroad and returned to the country so as not to live with the regret of endangering the lives of their often elderly parents. In Western countries where China has less pressure, this threat has been more disguised, often with police harassing families to ask their children to return, or by collecting private and professional information on Uyghurs and their non-Uyghur spouses (Allen-Ebrahimian 2018).

The Egyptian Roundup

The first week of July 2017 was nightmarish for the entire diaspora, especially for those living in Arab countries: The police suddenly descended

[2] UHRP. 2020. *Weaponized Passports: the Crisis of Uyghur Statelessness*: https://docs.uhrp.org/pdf/Weaponized_Passports.pdf.

[3] Xinjiang Police Files, files pirated from the computers of the Chinese police and revealed in May 2022 by the international press: https://www.xinjiangpolicefiles.org/.

[4] China Cables, the secret documents came to the International Consortium of Investigative Journalists via a chain of exiled Uyghurs. Their authenticity has been confirmed by several leading experts: https://www.icij.org/investigations/china-cables/read-the-china-cables-documents/.

on neighborhoods where Uyghurs lived, their apartments, Uyghur restaurants, or even mosques frequented by the community, as well as universities in Cairo where Uyghur students were enrolled.[5] The capitals' airports, along with those of other big cities like Alexandria, were stormed to hunt down Uyghurs fleeing the roundup. The hunts continued for several weeks, and according to the report of the Uyghur Human Rights Project (UHRP) and the Oxus Society for Central Asian Affairs, around 200 Uyghurs were arrested, detained in the Torah prison, and then interrogated by the Chinese police who came to Egypt especially for this occasion. Some were released; others were deported without giving any further news. At least two died in custody upon their return (UHRP & The Oxus Society for Central Asian Affairs 2021).

The Chinese police had, since 2016, threatened the Uyghur diaspora in Egypt with similar methods, also used elsewhere: family members of the diaspora were sent to the camps if they did not return to the Uyghur region before May 20, 2017. Some months earlier, the Chinese president paid a visit to Egypt, and important contracts were signed between the two countries. In June of the same year, three weeks before the raid, the two countries signed a security treaty. Many Uyghurs had left Egypt, sensing the danger ahead, either to return to the country so as not to endanger their parents, or to other safer countries, notably Türkiye. But those who returned then either disappeared or were arrested and sentenced. Among them, the most famous is Hebibulla Tohti, a PhD in Islamic jurisprudence, a graduate of Al-Azhar University. This prominent Uyghur scholar of theology was sponsored by China's state-sanctioned Islamic Association, but that did nothing to keep him from being sentenced to ten years in prison following his return from Egypt (Hoshur 2017).

It was the first time that a raid took place in a foreign country against the Uyghur diaspora. This roundup terrorized Uyghurs living in Arab countries. Many Uyghurs who work in Saudi Arabia or especially in Qatar or Dubai have left their posts and sold their property in order to settle in Türkiye or the West.

[5] Nour Youssef. 2017. Egyptian Police Detain Uighurs and Deport Them to China. *New York Times*. https://www.nytimes.com/2017/07/06/world/asia/egypt-muslims-uighurs-deportations-xinjiang-china.html.

The Uyghur Diaspora Can No Longer Find Shelter in Türkiye

In August 2019, another terrible piece of news terrorized the Uyghurs, especially those in Türkiye. A young Uyghur mother with her two children was deported to China via Tajikistan. Zinnetgul Tursun, a 32-year-old single mother of two young children, was held in a detention center for undocumented foreigners in Izmir, Türkiye.[6] The Turkish authorities apologized, blaming it on a confusion of her identity, because according to Türkiye, Zinnetgul held a Tajik passport. Her elder sister, Jennetgul Tursun, who lives in Saudi Arabia, disputes the official Turkish version of the facts.

Arrests of Uyghurs by the Turkish police were becoming more and more frequent, and the confirmation of Zinnetgul and her children's deportation created panic in Türkiye's Uyghur diaspora. In addition, RFA radio journalists investigated and confirmed that five other Uyghurs—a woman and four men—were also deported at the same time as Zinnetgul to Tajikistan, but their fate since is unknown. The woman's son, Abdurusul Tuniyaz, an Uyghur residing in Türkiye, has had no trace of his mother since (Kashgary and Emet 2022). NPR reported in March 2020 that between 200 and 400 Uyghurs had been detained in Türkiye in 2019 alone (Kakissis 2020).

With the chill in Türkiye's relations with the West since 2015, and in particular since the failed coup of July 2016, Türkiye has come closer to China. This rapprochement is reflected in Chinese banks' lending in the context of the Turkish financial crisis. A strategic partner for China in its gigantic Belt and Road Initiative, Türkiye has signed numerous contracts with China, with some worth up to $6 billion as of 2021.[7] This economic rapprochement has a cost for the Uyghur community in Türkiye, which is estimated at around 50,000 individuals. Turkish President Recep Tayyip Erdogan signed an extradition treaty with his Chinese counterpart in

[6] J. Kashgary & E. Emet. 2019. Uyghur Mother, Daughters Deported to China From Turkey. *Radio Free Asia*. https://www.rfa.org/english/news/uyghur/deportation-08092019171834.html.

[7] Vusal Güliyev. 2024. Turkish-Chinese Rapprochement: Growing Chinese Investment in Türkiye. *Caspian-Alpine Society*. December 3, 2024. Turkish-Chinese Rapprochement: Growing Chinese Investment in Türkiye – Caspian – Alpine Society.

2017, which China ratified in December 2020.[8] Some Uyghurs see their permanent residence permits invalidated overnight, others are no longer able to renew their humanitarian residence permits, and many Uyghurs have been kept waiting for their naturalization for several years. Demonstrations by Uyghurs are often banned or dispersed from the outset by the police. Uyghurs who are very active in demonstrations or in testifying to the Western media about the horrors that their families are subjected to in China are hunted down and intimidated by the Turkish police. This is the case of Abdurahman Tohti, who saw the disappearance of 12 members of his family, including his wife and two young children.[9] This all takes on a greater significance when one considers that the only Uyghur primary school outside of Central Asia, in Istanbul, was closed in February 2022[10] and Uyghur bookstores were attacked in March 2023 by Turkish police who descended violently in these places to forcibly confiscate the books (Ingram 2023). These books are essential for safeguarding the Uyghur language and culture in a context where they are prohibited and made to disappear in the Uyghur Region.

Apart from this kind of harassment, or the arrests and detentions of Uyghurs living in Türkiye by the Turkish police, there is the fact that even when individuals openly work for the Chinese services by spying or intimidating and blackmailing, such people are not arrested. The community has caught individuals (often also Uyghurs) on the spot several times, taking pictures of Uyghurs and even confessing to being remotely recruited by Chinese police (Xukran 2023).

One of the glaring examples of the uninhibited action of people working openly for China is undoubtedly Sabir Bogda, a naturalized Turkish Uyghur businessman and president of the Uyghur Businessmen's Association of Türkiye. He is also a member of the Chinese People's Political Consultative Conference. Politically very active in lobbying for China in Türkiye, he does not hesitate to intimidate and threaten members of

[8] Ayjaz Vani. 2021. China-Turkey extradition treaty and implications on Uyghurs. *Observer Research Foundation*. January 5, 2021. https://www.orfonline.org/expert-speak/china-turkey-extradition-treaty-implications-uyghurs.

[9] My fieldwork in December 2020 in Istanbul.

[10] *Turkiye closes Uyghur elementary school in Istanbul after China complains of anti-Beijing instructions*. Published on Mars. 02. 2022. https://www.aninews.in/news/world/asia/Turkiye-closes-uyghur-elementary-school-in-istanbul-after-china-complains-of-anti-beijing-instructions20220302223118/.

the diaspora in Türkiye. He was the one who arranged a visual meeting between Abdurahman Tohti and the Chinese police and who tried to persuade Abdurahman to stop talking about his family in the media, threatening him that he would not be able to see his children again if he didn't listen.[11] Thanks to the request of the European Uyghur Institute, Abdurahman obtained a French visa and now lives in France. Bogda also sued several Uyghur and Turkish activists and researchers for defamation when they accused him of working for the interests of China against Uyghurs and Türkiye in recent years. One of these lawsuits was filed in December 2018 (Erkin 2018) against the political scientist Erkin Ekrem, professor at Hacettepe University, Türkiye, vice president of the World Uyghur Congress. In November 2020, Bogda filed a complaint against Turkish journalist and activist Yücel Tanay with the same charges.[12] He is present at every official visit by Chinese leaders to Türkiye, and he shares photos on social networks. Uyghurs of Türkiye are convinced that he is protected by Türkiye.

New Forms of Chinese Transnational Repression

One of the Uyghur refugees who arrived from Türkiye in recent years and obtained protection in France said that he was the victim of harassment from the Chinese consulate in Istanbul. He owned a restaurant in Istanbul, and the consular staff tried to convince him to spy on his compatriots in the restaurant. He was promised the ability to visit his parents freely as well as financial aid to open several more restaurants. In exchange, he had to accept that the consulate installed listening devices under the tables. After he refused, he received a visit from the Turkish municipal police who ordered the closure of the restaurant, offering excuses which referred to breaches in regulations.

To be able to justify the arrest of certain Uyghurs, in particular, those who are claimed by foreign states, China does not hesitate to invent crimes of terrorism and to create false terrorist profiles on social networks using the identity of diaspora Uyghurs. This is also the case for Yakup, whose wife was detained in the camps for three-and-a-half years. His wife

[11] Interview with Abdurahman Tohti in June 2022.

[12] *Activist for Uyghur cause is on trial*. (Tr: Uygur Gönüllüsü Yücel Tanay Yargılanıyor). Published on Nov. 16.2020. http://www.gokbayrak.com/haberler/uygur-gonullusu-yucel-tanay-yargilaniyor-3522.

had returned to China with the child after her mother was pressured by local police. A French friend of the couple, who is also a business associate of his wife, then traveled to Urumchi and found the parents' family and tried to bring the child back to France, without success. Yakup then received a response from the French Ministry of Foreign Affairs, which referred to charges of terrorism, based on a fake Facebook account for Yakup, full of images of the Islamic State. The account was created with his passport photo and the Chinese version of his Uyghur name, as it is on the passport. Even after his wife was arrested, Yakup was repeatedly contacted by the local police, asking him to come back, promising him a good job with good pay and the release of his mother, who was detained in a camp. Finally, after his refusals, the police offered him to stay in France but to provide them with information on the Uyghurs in France. As he refused all these requests and continued to ask the French Ministry of Foreign Affairs about his family's situation, finally, the last justification for his wife's arrest was the creation of a fake Facebook account for Yakup, allowing China's State Security to accuse him of terrorism, and for his wife to pay his "debt."

During 2019, several Uyghur activists in Paris received mysterious packages sent by relatives with whom they had lost contact for several months for some and several years for others (Boursier 2019). The parcels contained local products from the Uyghur region without any notes. One of them said that he had no contact with his family since 2017 and that his parents did not know his new address or his new telephone number, which were nevertheless displayed on the package.

At the beginning of 2019, a young Uyghur named Yusupjan Amet, until recently living in Türkiye, testified in international media outlets to having worked as a spy under duress from China,, which threatened to destroy his family remaining in the country. He had spied for several years, from 2012 on the Uyghur community in Afghanistan and Pakistan, leading to the deportation of some of them. At the end of 2020, he was shot at by two individuals in front of his home. Hospitalized in a vegetative state, he became chronically disabled and has been in the hospital ever since.[13]

[13] *Uighur man in critical condition after being shot in Istanbul*. Published on 3 November, 2020. https://ahvalnews.com/Turkiye-uighurs/uighur-man-critical-condition-after-being-shot-istanbul.

During 2020, when the whole world was fighting against COVID-19, the Chinese police returned the passports to the parents of a friend who works with us in the European Uyghur Institute, and the parents called this friend for several weeks via WeChat to ask him to send them an invitation to come and visit France. The idea of this harassment was, on the one hand, to say that all is well in China, that it is managing the health crisis better than the West, and, on the other hand, to break the confidence in the Uyghur diaspora, in particular, by allowing the parents of an activist to visit abroad and thus also be able to justify its denialism against their accusations. This friend's refusal of his parents' request caused quarrels between them. The harassment of the Chinese police against the families of the members of the diaspora causes arguments between the families and thus creates psychological problems for both sides, each suffering greatly from this situation. In 2023, this friend lost his mother, who was already ill, and like all members of the diaspora, he was unable to see his mother one last time or to accompany his father in the arrangement of the funeral.

Attacks on Demonstrations and Attempted Kidnapping in the Heart of Paris

On May 5, 2024, the day of Xi Jinping's arrival in France for a state visit, the European Uyghur Institute (IODE) organized a demonstration in the form of a satirical play, aimed at mocking the meeting between Xi and French President Macron. Groups of Chinese individuals surrounded the church of Madeleine, where the event was taking place, and a group of masked young people abruptly interrupted the performance, shouting "liars" and holding placards with crossed-out portraits of Uyghur diaspora figures. These youths did not appear to recognize the people on their signs; they had likely been paid by Chinese authorities for their intervention. Another group of Chinese individuals climbed onto the roof of the church to stage an unauthorized counterdemonstration, broadcasting the Chinese national anthem and waving Chinese flags to disrupt the satirical play. A Tibetan demonstration held the same day in Paris was also monitored by an unprecedented number of Chinese agents.

Three days later, following the attacks on the Uyghur demonstration, a group of nine Chinese nationals dressed in black arrived in a black van in front of the Paris residence of Gulbahar Jalilova, a concentration camp survivor, in what appeared to be an attempted abduction. *Le Monde*

revealed that one of these individuals was a diplomat at the Chinese embassy. The French government issued no public condemnation.[14] A few months later, *Le Monde* reported that the diplomat in question had been quietly expelled.[15] In May 2024, the IODE filed a complaint following these attacks and the attempted abduction of Gulbahar Jalilova, which so far has resulted in no response or even a summons to the victim to understand what occurred.[16]

Foreign Citizens in the Sights of CTR

In March 2021, in retaliation for European sanctions against entities and individuals responsible for Chinese crimes in the Uyghur region, China announced that it had sanctioned ten notable European individuals, researchers, and a research center.[17] Meanwhile, other researchers are insulted, even attacked, by China and its institutions. The Chinese Embassy in Paris publicly insulted sinologist Antoine Bondaz on Twitter several times for his publications on Taiwan.[18] Sinologist Valérie Niquet was dragged to court for three years by the Chinese telecommunication company Huawei till the lawsuit was dropped in 2022 (Guibert 2022).

[14] J. Follorou & S. Leplâtre. 2024. Des fonctionnaires chinois à la manœuvre en France contre des dissidents. *Le Monde*. 18 mai, 2024. https://www.lemonde.fr/societe/article/2024/05/18/des-fonctionnaires-chinois-a-la-man-uvre-en-france-contre-des-dissidents_6234020_3224.html.

[15] Jacques Follorou. 2024. Deux espions chinois priés de quitter la France, après la tentative de rapatriement forcé d'un ressortissant. Le Monde. July 2, 2024. https://www.lemonde.fr/societe/article/2024/07/02/deux-espions-chinois-pries-de-quitter-la-france-apres-la-tentative-de-rapatriement-force-d-un-ressortissant_6246161_3224.html#:~:text=Deux%20espions%20chinois%20pri%C3%A9s%20de%20quitter%20la,vis%C3%A9s%20par%20une%20demande%20d%27expulsion%20du%20territoire.

[16] Simon Leplâtre. 2024. Des Ouïgours portent plainte en France pour « génocide et harcèlement moral» de la part de la Chine. *Le Monde*. March 11, 2024. https://www.lemonde.fr/international/article/2025/03/11/des-ouigours-portent-plainte-en-france-pour-genocide-et-harcelement-moral-de-la-part-de-la-chine_6578841_3210.html.

[17] European Parliament. 2021. European Parliament resolution of 20 May 2021 on Chinese countersanctions on EU entities and MEPs and MPs. 20 Mai 2021. https://www.europarl.europa.eu/doceo/document/TA-9-2021-0255_EN.html.

[18] *When the Chinese embassy rages on a French researcher*. https://www.tellerreport.com/news/2021-03-22-%0A---when-the-chinese-embassy-rages-on-a-french-researcher%0A--.B1GLcoU8Ed.html.

It is also very common to see that conferences on the Uyghurs, Hong Kong, Taiwan, and Tibet are regularly disrupted by Chinese students or Chinese embassy staff. Thus, a conference on the Uyghurs organized in January 2019 by the University of Strasbourg was disrupted by two staff members from the Chinese consulate who monopolized the time of the debates with their Chinese propaganda monologue. They had come to the conference with two large boxes of white papers, printed by the Chinese Ministry of Propaganda, and had distributed these books in front of the door of the conference hall to participants and passers-by. Two days before this incident, a Chinese student from the University of Strasbourg had torn down the posters of the conference and had suddenly entered the office of the dean of the faculty of sinology and accused her of Sinophobia. Then, he threw the conference posters that he had torn down in the face of the dean and threatened to report her to the Chinese consulate before leaving the office.

Some young French people committed to the Uyghur cause have been attacked on Twitter by Chinese consulates; this is particularly the case of the 'Strasbourg for Uyghurs' association. While in Lyon, the Chinese consulate repeatedly went to Lyon city hall to complain about the activities of young French people and their "Grand Lyon for Uyghurs" collective and called them potential terrorists. The people at the consulate had prepared a file with the photos of these young people, probably downloaded from the social networks of the collective, and had presented them to the city hall as dangerous individuals. The Chinese consulates in Lyon and Strasbourg were particularly active, so that various cities did not sign the solidarity charter that the young French activists presented to the mayors. At the town wall of Nancy, elected officials explained to the young activists that they had difficulty signing the charter because the Chinese consulate came quite often with gifts, and signing might constitute a threat to the good Sino-French relations. The visit or long call from the Chinese consulate to mayors explaining to them that "the Uyghurs are terrorists and that supporting them would be supporting terrorism" has been reported in other cities, including those in Belgium.[19]

[19] My exchanges and conversations with members of these collectives and with one of the deputy mayor of Lyon who is in contact with the members of 'Grand Lyon for Uyghurs'.

Intimidation and Lawsuits Against Researchers and Activists

Among the new strategies of CTR, we see the emergence of a new technique from Chinese organs abroad in recent years, namely the use of legal tools in democratic countries to attack figures, researchers, or activists who are nationals of the host countries. Indeed, the lawsuit filed against researcher Valérie Niquet by Huawei is not an isolated case. As we have already mentioned, these same practices were employed in Türkiye as early as 2018 by the controversial figure Sabir Bogda against Professor Erkin Emet and activist Yücel Tünay, both of whom are Turkish citizens.

While several investigations and reports outline the threat posed by Confucius Institutes (CI) to academic freedom in Europe (Donnet 2021), some European and French universities continue to defend the CI in their universities (Gabus 2019). When journalists, politicians, and researchers publish these investigations and reports on the danger of CI in universities, some CI directors go after easy targets to harass them and take them to court. This is the case of a young student, Anthony Anstet, at the University of Lorraine, who was sued by Hong Toussaint, CI director, for his tweets accusing CI of being a tool of influence and spying for China. The student who is part of the young French activist group for the rights of the Uyghur people against the genocide, "Metz for Uyghurs," had already denounced the fact that the students who chose Japanese are obliged to study Chinese with the CI, and that the students are strongly encouraged to register on a platform suspected of being a Chinese company and which asks for copies of students' passports. Anthony also suspects that the director of the CI, who is also a teacher at this university, is accessing his data, including his email address, which would be provided to the police during the lawsuit.

There is also the arrest and detention of young Australian activist Drew Pavlou in England on charges from the Chinese embassy in London in July 2022, while taking part in a demonstration by human rights activists outside the embassy. The embassy accused him of sending them an email with a bomb threat, which Drew Pavlou believes was a fabrication by the embassy.[20] The fake email reportedly read, "Here is Drew Pavlou, you have until noon to stop the Uyghur genocide or I will blow up the embassy with a bomb. Sincerely, Drew." A spokesperson for the Chinese

[20] Charlie Campbell. 2022. The Curious Case of the Australian Activist Arrested for Threatening to Blow Up China's embassy in London. *Time*, 15 August, 2022. https://time.com/6205128/australian-activist-china-embassy-bomb-hoax-drew-pavlou/.

Embassy in London confirmed that she had "reported the terrorist threat email she received to British police." He was detained for 23 hours, and for two weeks, he was not allowed to return to his country.

A similar mysterious false accusation of a bomb threat was leveled against a Chinese refugee in the Netherlands, Wang Jingyu, after protesting outside the Chinese Embassy in 2022. The Dutch police even went so far as to raid his home following this false alarm (Allen-Ebrahimian and Snyder 2023). Wang believes that he was the victim of agents from the Chinese clandestine police station in Rotterdam, who had already harassed and threatened him at the beginning of the year to convince him to return to China.

Similarly, in September 2022, the Chinese embassy in Paris filed a complaint against me for having demonstrated in front of its stand with a dozen Uyghurs during a political festival organized by the French Communist Party. I had poured red paint on the embassy kakemono to symbolize the bloodshed of Uyghurs by the CCP. The charges in the Chinese embassy's complaint are racist assault and damage to property. Later, they dropped the charge of "racist assault," demanding reimbursement of a hundred euros for the damage to property. In July 2023, the file was classified. However, in April 2024, on the eve of Xi Jinping's state visit to France, the prosecutor reopened this file by summoning me to a trial. In April 2025, the International Consortium of Investigative Journalists (ICIJ) operation 'China Targets' revealed that the Paris attorney general prosecutor specifically ordered the prosecutor in writing to reopen this classified complaint.[21] According to lawyers, this has never happened in France since 2012, prompting jurists and lawyers to question the independence of French justice.

Whether it is the embassy's lawsuit against me or the lawsuit by the director of the Confucius Institute against the young student, these are not isolated cases. Nor will they be isolated now, given that the police and judicial institutions of democratic states participate in this charade organized by a totalitarian state that takes advantage of the openings and possibilities provided by the democratic system. Just like the fake bomb threat email, very likely fabricated by the Chinese embassy in London, a tactic that has already worked in Rotterdam as well. Although these

[21] G. Hallot & M.Tellier. Cellule investigation de Radio France – ICIJ. 2025. #ChinaTargets: comment la Chine traque ses opposants sur le sol français. *France Info*. April 28, 2025. https://www.franceinfo.fr/replay-radio/le-choix-franceinfo/enquete-chinatargets-comment-la-chine-traque-ses-opposants-sur-le-sol-francais_7206189.html.

Chinese organs know that their complaints will not go far, as long as they can abuse the loopholes of democracy and the participation of the judicial institutions of democracy, they will surely not stop on such an advantageous path. Because the opponents are often young people, researchers, or activists who do not have much means to spend on lawyers, it is a waste of time, energy, and it can also damage their mental health. In addition, the attitude of the police officers who question these activists or researchers following these complaints is not always respectful, thus adding a layer of pressure and even humiliation on them. Anthony thus testified to the aggressive attitude of the policewoman who questioned him. He had the feeling that she was not neutral and was completely defending the director of the CI.

Conclusion

Chinese transnational repression has taken on another dimension, generalizing its targets to all members of the Uyghur diaspora. The political orientation and specific tactics revealed in the Urumchi Police document demonstrate the globalized thinking in the governance of the CCP, which considers its sovereignty to extend to all citizens and former citizens of the PRC, regardless of their place of residence.

In this context of Chinese repression throughout the world, diaspora members suffer from these practices, including harassment, intimidation, threats, blackmail, or worse in some cases, as with Yusupjan Amet in Türkiye. In addition to such repression, comes the toll it takes on individuals: the cutting off of direct contact with family, not being able to go and see them or have them come; the suffering and helplessness of relatives who have disappeared or been detained in camps or prisons; the feeling of guilt of others in a free country while their families and friends suffer in the Uyghur region; the difficulty of explaining to their children what is happening; the feeling of loss of bearings for diasporic members who are isolated, who have not built a family.

In addition to members of the diaspora, CTR's targets now extend to foreign citizens who work on subjects that disturb China or activists who campaign for the rights of the Uyghurs through the possibilities that democratic tools give them. The ignorance of judicial institutions in democratic countries, institutions, which become complicit despite themselves through Chinese lawsuits, is a very serious threat to the health of democracies. This new method of the CTR must be taken seriously so as not to become an instrument of Chinese manipulation against democracy and human rights.

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CHAPTER 8

Exiled Bangladeshis, the Digital Economy of Fear, and Social Disappearance

Lisa I. Knight

In 2008, Bangladesh witnessed one of its first blog-inspired street protests.[1] Demonstrators gathered near the statue of Lalon Shah,[2] a renowned poet, singer, and philosopher who symbolizes progressive ideals of non-discrimination for many in the region. The statue, near Dhaka's international airport, had been destroyed during an Islamist campaign against statues and art deemed forbidden by Islam.[3]

Fast forward to 2013, and Bangladeshis witnessed the most significant outcome of online activism. A small group of secular social media activists was able to organize a massive protest movement, called the *Gonojagoron*

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[1] Personal communication and Facebook post shared by Ahmedur Chowdhury.

[2] Lalon Shah (d. 1890) composed numerous songs that are sung by Bauls and Sufis in Bangladesh and West Bengal, India.

[3] Despite protesters' demands to reinstate the statue of Lalon, the government removed it, appeasing Islamist groups.

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Moncho (platform of the people's uprising), drawing hundreds of thousands of men and women to Shahbag, an intellectual hub in Dhaka. Initially motivated by what secular activists saw as a lenient sentencing of a convicted war criminal, the Shahbag movement quickly expanded to include the banning of Jamaat-e-Islami, the war criminal's political party, and the role of Islam in politics.

In retaliation, Islamist groups, led by Hefazat-e-Islam, networked online and organized a counterprotest at Shapla Square, where thousands gathered to protest alleged blasphemous posts by bloggers and Shahbag activists. Hefazat-e-Islam issued a 13-point demand, including a call for capital punishment for blasphemy and restrictions on women's participation in public life. A violent police crackdown followed, after which Islamist bloggers spread misinformation that claimed that the government had killed 2,500 Muslim protestors.[4]

Most recently, in July–August 2024, student-led social media activism gained unprecedented momentum and mass support, culminating in the resignation of Prime Minister Sheikh Hasina.[5]

In Bangladesh, social media activism has significantly shaped sociopolitical landscapes, motivating violence, assassinations, arrests, legal changes, and even the toppling of the government. Given this outsized power utilized by ordinary citizens, it's no surprise that the previous government of Bangladesh sought to control digital media at all costs. During its 15 years in power, the Awami League (AL) under Prime Minister Sheikh Hasina produced some of the world's most restrictive measures against digital speech.

Political opponents and journalists suffered considerably from this repression. The current interim government has released numerous political opponents, dissidents, and journalists from prison, while others have returned from exile or self-censorship, seeking to participate in rebuilding the country. Less understood is the unique plight of secular progressive activists and writers, including those who supported the social media-driven demonstrations, who were forced into exile after violent attacks by Islamists and after being named on circulated hit lists.

[4] https://www.thedailystar.net/news/cyber-propaganda-continues-to-confuse-people.

[5] On July 18, 2024, there was a complete internet blackout in Bangladesh. Student activists found ways to circumvent the blackout, spreading a message to meet at Shahbag at 2 p.m. on Monday.

After the 2013 Shahbag and Shapla Square demonstrations—the two opposing demonstrations mentioned above—a list of 84 bloggers, compiled by the government in consultation with Islamist leaders, circulated in the press and online. Though online threats by radical Islamists were not new, they now spilled more blatantly onto the streets, resulting in the brutal attacks and killing of several secular activists, atheists, bloggers, writers, poets, gay rights activists, and religious minorities. This violent spate of killings pushed many into hiding, with some escaping to nearby countries and seeking asylum through various international channels.

Secular Progressive Exiles

This chapter focuses on secular progressive exiles[6] who relocated to Europe between 2015 and 2018 due to direct threats, attacks, or the murder of close friends by radical Islamists. While not a homogenous group, they knew about each other before exile because of connections made through books, publishing, blogging, and the 2013 Shahbag movement. Many were active on social media and blogs since the early 2000s. Most supported at least some goals of the Shahbag movement, especially for a secular and progressive Bangladesh. They are united by shared experiences of being persecuted by Islamists. However, what led to them being persecuted varied, which makes them challenging to categorize as a unified group. In this chapter, I refer to them as exiles or secular exiles when differentiating them from other exiles, e.g., those from opposition parties.

In exile, Bangladeshi activists may have escaped physical danger, but they endure a different kind of repression—what I call "social disappearance," building on Gatti (2020). I argue that Islamist groups and the state collaborated to create a hostile environment for freedom of expression that has a particular and enduring consequence for secular progressive exiles. Through digital surveillance, harassment, and emotional impacts, exiles are effectively erased from the national narrative, leading to their

[6] I use the term "secularists" in part to distinguish them from other migrants (e.g., economic migrants) as well as exiled dissident journalists and members of the opposition parties. The term "secularism" needs to be problematized, but this is beyond the scope of this chapter.

"social disappearance" and loss of influence back home. This decentralized form of transnational repression operates through emotional and discursive practices, reflecting what Sara Ahmed (2004) describes as an economic model of emotion. Thus, repression is not only state-directed but also socially diffused (Gramsci 1992), impacting exiles on multiple levels, reducing their visibility and eroding their agency.

The majority of interviews[7] drawn on in this chapter occurred before the July–August 2024 uprising. Their experiences reflect the dire situation of repression while Sheikh Hasina was still in power. However, as I show, their future remains uncertain.

Affective Economy of Outrage and Fear

To understand the transnational repression of exiled Bangladeshis, we need to begin with the internet and the affective economy it produces. The same digital sphere that gave Bangladeshi activists the means to organize also became the tool for their repression by both state and non-state actors, both in Bangladesh and in exile.

The introduction of blogging, especially with the first Bangla-script blog (somewhereinblog) in 2005 and with the introduction of 3G in 2013, rapidly increased the pace of access to ideas and created a supercharged environment that both empowered and shocked people. Online, skeptics, atheists, and freethinkers found each other. They discovered Mukto-mona, the group and blog founded in 2001 by Avijit Roy, an American Bangladeshi whose writings on rationalism, freethinking, and homosexuality became influential. During this time, Ahmedur Chowdhury "Tutul," who had started his book publishing house in 2004, discovered new writers on blogs and encouraged them. Some of these were

[7] Fourteen exiles have been formally or informally interviewed, with some interviews conducted over extended periods. Most of the interviews and informal conversations have been with Bangladeshi exiles in Nordic countries. Initial contacts were made in 2017 through the International Cities of Refuge Network (ICORN), a Norway-based organization that assists at-risk writers seeking asylum. Additional contacts were established through snowballing. The exiled publication Shuddhashar, relaunched by Ahmedur Chowdhury (Tutul) in 2017 as an online platform in Norway, has provided a longitudinal perspective on life in exile. Several exiled and at-risk Bangladeshis—intellectuals, activists, LGBTQ+ individuals—have contributed to Shuddhashar as writers and editors. Broader insights from interviews, social media posts, and publications are also considered in this chapter.

published as books, including books by Avijit Roy (killed in a machete attack in February 2015) and Ananta Bijoy Das (killed in a machete attack in May 2015). LGBTQ+ individuals also discovered a community online through Yahoo groups, chat rooms, and blogs. Shakhawat Hossain "Rajeeb," who had recently moved from Saudi Arabia, learned about Boys of Bangladesh online, a group he joined and promoted. Women shared their experiences and views online. In 2013, Supriti Dhar founded the Women Chapter, which became a popular online platform for women to write about their lives and critique patriarchal norms. Progressive bloggers were emboldened to scrutinize religious practices for inconsistencies and oppression of women and LGBTQ+ individuals. The use of pseudonyms was common.

The blogosphere was also a space for intense political and sociore-ligious debate. For people concerned with the character and ideals of a Bangladesh post-independence from Pakistan, the internet became a proxy for face-to-face conversations, exchange of ideas, and ideological confrontations and struggles. True to its democratic ideals, the internet gave each individual with access to the web a voice. Each voice, each opinion counted and could be countered. This was especially true on unmoderated platforms.

The line between constructive criticism and slander blurred. Some bloggers made offensive and hateful statements against religion, and soon, any blogger critical of Islamic practices was branded an enemy of Islam. Even though Muslims were also blogging and posting (e.g., the Bash-erkella Facebook site was actively promoting Jamaat views at this time), the term "blogger" became associated with "anti-Islam" and "atheist" (see also Rahman 2018; Hasan and Ruud 2020). As Hasan and Ruud have argued, "active mobilization is needed for people to imagine a person as a blasphemer" (2020: 178), and in the aftermath of the Shahbag and Shapla Square demonstrations, the idea that the Shahbag activists and bloggers were atheists was reproduced in newspapers, press conferences, and hit lists. This mobilized both Muslim extremists and moderates to defend Islam against the social media activists of the Shahbag movement.

Feelings of outrage, religious offense, and hate circulated like commodities online and in the streets in this affective economy, which Sara Ahmed defines as the circulation of emotions in society. As Ahmed explains, "In such affective economies, emotions do things, and they align individuals with communities — or bodily space with social space — through the very intensity of their attachments" (2004: 119). Outrage

and hate led to real-life violence. By 2013–15, when emotions were flowing at a high intensity, the affective economy (Ahmed 2004) circulating on the internet began spilling onto the street.

This construction continued to circulate and attach itself to more subjects to include other writers and minorities perceived as abominations in an Islamic nation: religious minorities (including Hindus, Sufis, Bauls, and Ahmadiyyas), women's rights activists, gay activists, and progressive poets and writers. Ahmed describes how fear and hate function in an affective economy, arguing that "[f]ear does not reside in a particular object or sign [e.g. the blogger], and it is this lack of residence that allows fear to slide across signs, and between bodies [religious minorities, gay activists, poets]. This sliding becomes stuck only temporarily, in the very attachment of a sign to a body, whereby a sign sticks to a body by constituting it as the object of fear, a constitution taken on by the body, encircling it with a fear that becomes its own" (2004: 127). For outraged Islamists and Muslims protesting "atheist" bloggers, others—religious minorities, women activists, and gay activists—became attached to the emotions of threat, danger, and anger and were viewed as threats to Islam in Bangladesh. The result was a killing spree not only of atheists but also of many others.

The State's Strategy

The state faced a critical choice: defend the secular bloggers and align with Bangladesh's constitutional principle of secularism and reputation, or appease Islamist forces whose support has been vital for maintaining political power. While the AL won the election by appealing to its secular and middle-class base, promising to fight terrorism and bringing the war criminals to trial, both major political parties—AL and Bangladesh National Party (BNP)—have long relied on Islamist groups to secure elections (Lorch 2019; Riaz 2014). The Shapla demonstration revealed the enormity of Islamists' organizing power, and the AL was unlikely to succeed against an alliance by the BNP, Jamaat, and Hefazat.

Following a series of political maneuvers,[8] Hasina took a stance against the bloggers and a secular society of tolerance, signaling that secular bloggers and activists had no political guarantee of safety in Bangladesh. In

[8] For example, the deadly police response to the Islamist-led counterprotests at Shapla Square against the Shahbag movement in 2013 and the arrest of four bloggers.

response to the killings by Islamist groups, she warned against writings that "hurt religious sentiments" and emphasized existing laws to punish any who criticizes religion.[9]

By framing religious offense as intolerable, she fed into an affective logic that justified extralegal violence against those perceived as enemies of Islam. The state didn't need to directly repress secularists; instead, it tacitly consented to the Islamists' narrative that religious criticism was dangerous and unacceptable. This strategy aligns with Mbembe's *Necropolitics* (2019), where the power to dictate life and death extends beyond physical existence to social and political inclusion. Hasina's regime blurred the lines between state repression and societal affect, leveraging a decentralized form of repression through hegemonic consent.

By aligning Bangladesh with a polity intolerant of criticism against Islam, the state condoned Islamists' role in stifling dissent. This multi-layered, diffuse repression worked not only through formal mechanisms but also through the broader societal narrative of what was deemed acceptable. This, as we will see later, continues to impact those in exile.

Although there is no clear evidence of an explicit alliance between the state and Islamists, all the exiles I spoke with are convinced that the government cooperated with Islamist groups in the killing of bloggers and progressives (see also Hasan and Ruud 2020). They base their conviction on a series of events that occurred. First, police offered no protection even when death threats were credible. For instance, three months before his murder in 2015, Niloy Neel had posted on Facebook that he was being threatened and followed but was turned away from filing a report at the police station.[10] Supriti Dhar said the police dismissed her concerns and told her to publish articles about cooking instead. A few days after the writer Avijit Roy was killed by an Islamist group, the police commissioner reached out to Tutul directly and told him to stop publishing. This was not out of concern for his safety, he explained. "This was a threat

[9] Responding to the killing of writers, bloggers, and publishers, she warned that any writing that "hurts" religious sentiments will not be tolerated in Bangladesh. After Hefazat-e-Islam's 13-point demand that included the death penalty for blasphemers, she replied, "Actually, we don't have any plan to [establish a new anti-blasphemy law]. We don't need it. They should know that existing laws are enough." (Ethirajan 2013).

[10] https://www.theguardian.com/world/2015/aug/07/machete-gang-kills-secular-bangladeshi-blogger-niloy-chakrabarti.

for everyone. The community would become afraid and automatically self-censor."

Second, exiles highlight Hasina's numerous concessions to Islamist groups, particularly Hefazat, whose power grew in the 2010s due to its base of illiberal Qawmi madrasa students. Notably, she recognized the highest Qawmi madrasa certification as equivalent to a postgraduate degree,[11] earning her the title of "Mother of Qawmi"[12] at an event presided over by Hefazat leaders.

Exiles note that these concessions might be political efforts to maintain power, especially by ensuring the conservative opposition party remained divided. Hasina's concessions to Hefazat also functioned to counterbalance the power of Jamaat (Lorch 2020: 793). Regardless of the motivations, Hasina's actions empowered Islamist groups. By leveraging the affective economy of manufactured outrage against atheists, she protected her political interests while not getting her hands dirty with the bloggers or Shahbag movement activists.

Meanwhile, the state was busy. With increasingly draconian laws and an international mandate to fight terrorism, the state under Sheikh Hasina secured political power and codified the precarity (Butler 2016) of secularists and dissenters. Over the years, thousands were arrested under the ICT Act, amended in 2018 as the Digital Security Act and the Cyber Security Act in 2023, which authorized the prosecution of anyone who publishes online something that "causes or may cause hurt to religious belief" or "deterioration in law and order." Political dissenters were among the main targets of arrest.[13] Hundreds were killed in what was euphemistically called crossfire deaths,[14] and hundreds had been

[11] https://www.thedailystar.net/frontpage/qawmi-education-recognised-1389901.

[12] https://www.dhakatribune.com/bangladesh/dhaka/160091/pm-sheikh-hasina-branded-as-%E2%80%98mother-of-qawmi%E2%80%99.

[13] For example, before the January 2024 national elections, over 23,000 leaders and activists of opposition parties were arrested (*New Age*: 2023), with at least 1,724 sentenced from August 1 to 31 December 2023 (*New Age*: 2024).

[14] For example, in a nine-month period in 2018, according to *The Daily Star*, 400 were killed in crossfire or by police: *The Daily Star*, 1 October 2018.

disappeared.[15] A significant percentage of those killed in crossfire or disappeared were considered a threat to the government or its vision: the opposition parties (BNP and Jamaat) and journalists (Riaz and Zaman 2021; Odhikar 2024).

The curtailment of dissent and free speech under Hasina had a broad effect on many sectors, including journalism, academia, and publishing. However, Hasina's strategy had a particularly damning effect on bloggers, atheists, and religious minorities. Although a few secular progressives and minorities were arrested,[16] very few were targeted and killed in crossfires or disappeared by state actors. Unlike politicians and journalists, these writers were not seen as requiring literal disappearance, as a system of silencing had already been normalized. By cultivating their precarity and abandoning them to violence at the hands of Islamists, Hasina's government avoided direct persecution while enabling their erasure.

Between 2013 and 2018, armed Islamists brutally killed numerous secularists, atheists, religious minorities, gay activists, and foreigners, cementing the vulnerability of these groups. Targeted or threatened individuals had to decide whether to remain at risk, leave, or try to change their image. Hasina's strategy of enforcing precarity led to the disappearance of progressive secularists from Bangladesh's public sphere.

Social Disappearance from Public Sphere and Online

Although not explicitly persecuted by the state or transnationally, exiled secular writers and activists are subjected to social disappearance through the affective economy of fear and repression perpetuated online. For exiles, the influence of the Bangladeshi state and violent Islamists is largely mediated through the digital sphere. While some sources of their erasure mirror those experienced in Bangladesh, others have taken on new forms

[15] According to Odhikar, during Sheikh Hasina's rule between January 2009 and June 2024, 709 people were subjected to enforced disappearances. https://odhikar.org/enforced-disappearances-in-bangladesh-government-must-hold-perpetrators-accountable-ensure-justice-and-reparation-for-victims-survivors-and-their-families/. Accessed on 4 October 2024.

[16] Except for a few incidents, such as the four bloggers arrested in 2013, most cases and arrests were instigated by ordinary citizens empowered by the DSA that enabled them to file a case. The responsibility to enforce repression is shared by many individuals and institutions.

in exile. Together, these forces demonstrate that repression is driven by a wide range of societal actors, extending far beyond the state itself.

The term "social disappearance" is used by Gatti (2020; Gatti and Blanes 2021) to describe certain migrants, e.g., those traveling the route from Mexico to the United States. During migration, countless individuals are expelled from any reasonable notion of existence; they are deprived of rights, visibility, and recognition as a result of factors such as systemic violence, neglect, and exclusion from citizenship. I expand Gatti's concept of social disappearance to include the intentional exclusion of dissidents in the practice of precarity in Bangladesh, online, and discursively. To illustrate some of the contours of this disappearance, I draw on the experiences of a publisher and writer (Tutul), a gay activist (Rajeeb), and women (Supriti and others).

Intellectual Activists

While still recovering in a hospital bed after surviving a brutal machete attack in 2015 at his Dhaka Shuddhashar publication house, Tutul was resolute. "I will not retreat," he told a *Prothom Alo* interviewer. "I am not going to sit back. I have my own philosophy. None can restrain me from advocating freedom of expression." In February that year, Avijit Roy had been killed in a machete attack shortly after leaving Shuddhashar's book stall at the annual book festival. A few months later, on October 31, 2015, Avijit's two publishers—Tutul of Shuddhashar and Faisal Arefin Dipan of Jagriti—faced a coordinated attack by Islamists in their respective publication offices. Dipan was killed.

Despite narrowly surviving the attack, Tutul's defiance translated into action. Fourteen months later, in Norway, he launched *Shuddhashar.com*, an online platform for publishing. In the years since, the platform—now called *Shuddhashar FreeVoice*—has flourished as a space for essays, magazine issues, blogs, translations, and statements, amplifying marginalized progressive voices. One of his first books published in exile was a collection of writings by queers from South Asia, organized by Rajeeb and three others.[17] Tutul had published Avijit's book, *Homosexuality*, in 2009, which Rajeeb cites as an important contribution to the queer

[17] *Re/imagining Queer Utopias: Voices from South Asia*, edited by Shakhawat Hossain Rajeeb, Ibtisam Ahmed, I. Sayed, Orchi Lohani, and Saad Adnana Khan (2022).

community in Bangladesh. This new book, *Queer Utopias*, demonstrates Tutul's continued commitment to progressive causes.

Yet, even as Tutul continues to advocate for freedom of expression, he experiences profound isolation, both personally and professionally—a form of social disappearance that exile has magnified. While his platform has achieved international reach, his influence within Bangladesh has diminished. He describes the reluctance of his former community to engage with *Shuddhashar*, noting that few writers in Bangladesh agree to contribute. As Tutul put it, "When I was in Dhaka and was waiting for a writing, I'd go to the person's house, knock on the door, and tell them to sit down and start. Now I can't do that." This shift reflects not just physical distance but also the pervasive fear of association with a platform targeted by Islamist extremists. Many potential contributors in Bangladesh self-censor, unwilling to risk the perception of alignment with *Shuddhashar*. Occasionally, someone writes under a pseudonym, but these rare exceptions only underscore the broader silence.

As fear compels a silence that cannot be overcome by proximity, Tutul experiences a form of social disappearance: the gradual erasure of one's social identity, connections, and influence. For Tutul, the isolation is both professional and emotional, as his dream of fostering a progressive intellectual movement in Bangladesh appears increasingly out of reach. Despite efforts to adapt, such as publishing Bengali poetry and stories or expanding content in English to reach an international audience, these successes cannot replace the sense of being cut off from his community.

A meeting with an editor in Bangladesh in 2023 underscored the depth of this isolation. Discussing a potential collaboration, the editor remarked, "Islamists have won their campaign because people self-censor. They don't need to go out and kill anymore." The collaboration never materialized, a reminder of how self-censorship and fear can render even resilient voices powerless in their homeland. This reality demonstrates how the threat of violence, coupled with the absence of solidarity, contributes to the social disappearance of individuals like Tutul, as their work and mission are increasingly confined to the margins.

Women Activists

The young exiled Bangladeshi women I spoke with expressed a steadfast determination to speak out against injustices, particularly those faced by women. Many had been shaped by the collective power of the Shahbag

movement, where their visibility in the news and on social media marked them as advocates for change. Ettila Etu, who regularly critiqued religion and restrictions on women, was also energized by the Shahbag movement. She was a vocal and outspoken supporter of Taslima Nasrin, a Bangladeshi feminist writer exiled in 1994 after fatwas were issued calling for her death. Activist blogger Shammi Haque, who wrote about religion, politics, LGBT rights, and feminism on social media, became widely recognizable during the Shahbag movement, as her photos and videos were circulated on news channels and media. This visibility made them targets when the tide turned.

In response, Islamists launched a campaign to curtail women's public presence. Hefazat-e-Islam's 13-point demand, issued after the movement, explicitly condemned women's visibility and agency. Two demands directly targeted women: "Stop foreign cultural intrusions including free-mixing of men and women and candlelit vigils, and put an end to adultery, injustice, shamelessness, etc., in the name of freedom of expression and individual [rights].... Scrap anti-Islam women policy and education policy..." These demands, referencing the presence of women in public spaces and the Shahbag vigils, framed women's public roles as both un-Bangladeshi and anti-Islam.

As a result, the space for women activists shrank and became perilous, particularly for those who had been visible online and in news media. Women began receiving threats of rape and death. Several women activists began seeking protection or asylum. Shammi fled the country in 2015, soon after her friend Niloy Neel was murdered, and is now based in Germany. Etu eventually found refuge in Sweden. More women left Bangladesh, and by 2018, ICORN reported a significant increase in asylum applications from Bangladeshi women.

For many of these exiled women, the experience of social disappearance was acute. Three young women I spoke with had aspired to be journalists, but the distance from Bangladesh undermined their ability to engage with events in real time. One woman shared that she no longer had any subject to write about; the environment that had once inspired her was now a distant memory, and her unfamiliar surroundings provided little motivation. Others shifted their focus to building lives in their host countries, learning new skills to integrate into their new contexts. This transition marked a gradual erasure of their activist identities and public roles in Bangladesh, further distancing them from the communities they once fought for.

In contrast, Supriti, who received asylum in Sweden in 2018, had already established an online platform while in Bangladesh, allowing her to maintain some continuity in her activism. However, even she describes the isolation and alienation of exile. Living alone in a foreign country while her family remains scattered across Bangladesh and elsewhere, Supriti experiences a form of social disappearance: the loss of connection to her homeland and the community that gave her work meaning.

For these women, exile not only created physical distance but also stripped them of the social and cultural context that had fueled their activism. The threats they faced in Bangladesh did not end upon leaving; instead, they were replaced by a quieter, insidious form of repression—one rooted in the loss of community, identity, and relevance. Social disappearance for these women is not just about being silenced by external forces, but also about being made invisible within the very movements and spaces they helped shape. Coupled with Hefazat's push to delegitimize women's public role and agency, this erasure is a form of social death, where the cumulative impact of fear, distance, and isolation dismantles the identities and activism that had shaped their early lives.

Gay Activists

Rajeeb, a gay activist, has experienced a different trajectory to social disappearance in Bangladesh. Before his exile, he was visible and active, traveling throughout the country and meeting people. Like many others from the LGBTQ+ community, his connections and activism began online: "My own search for like-minded people from the community led me to discover several online based groups. Among them was 'Boys of Bangladesh'. It was just a social group back then, and then I sort of got involved in the group, and then gradually got involved in the organizing of the group, so I took up more of a leadership position in a couple of years." With his connections in Dhaka and throughout the country, he sought to educate Bangladeshis about queer people. He considered Avijit to be the community's first heterosexual ally, and he credits his blog and book about homosexuality with giving the community a way to talk about their identities and lives.

In April 2016, Rajeeb's friends, Xulhaz Mannan and Mahbub Rabby Tonoy, both LGBTQ+ activists, were hacked to death inside Xulhaz's apartment in Dhaka. Xulhaz was the founder of *Roopban*, Bangladesh's first LGBTQ+ magazine, launched in 2014, and worked eight years

for the U.S. Embassy before joining USAID. Their deaths sent shockwaves through Bangladesh's queer community. After the murders, Rajeeb became a central point of contact for the community, fielding many messages, calls, and social media posts from people seeking information and support.

"I was flooded… my inbox, my messages, my phone, my social media was flooded with calls, comments, posts, emails from all around the world and from Bangladesh and from friends and from colleagues and everyone. I was that person whom everybody was contacting for information, for support, for direction, like what to do …. Everybody was lost. I mean, it was the hugest blow that the community ever received so far." He stayed with the community in a safe house in Bangladesh, helping to work out details about who wanted to leave the country, how to arrange it, and so on. Finally, he also left.

In exile in Stockholm, Rajeeb has been able to resume activism, now leading the international unit of RFSL, an international LGBTQ+ organization. Regarding the queer community in Bangladesh, "I'm very much in touch with them, but I no longer represent the organization," emphasizing that his absence from Bangladesh and relative safety in exile disqualify him from speaking on behalf of those still facing daily dangers. Quoting Rajeeb: "Since I'm abroad, I'm no longer a part of the organization. … I think we work differently; we believe in mandates, we believe in community involvement. So it's no longer an individual who is working on this on an individual basis, because there's a community out there who is equally affected positively or negatively by the actions of an individual."

The broader exodus of progressives—secularists, feminists, LGBTQ+ activists, and their allies—from Bangladesh has created a significant vacuum. Activists like Tutul, Supriti, and Rajeeb were deeply embedded within Bangladesh's intellectual and activist communities. In exile, their ability to influence the sociopolitical landscape they left behind has been dramatically curtailed.

While Tutul and Supriti have worked to continue their activism in Bangladesh, Rajeeb and the younger women have turned their activism and attention to their new environments. Rajeeb, who had been in the forefront in the gay community in Bangladesh, is clear that he has no role in Bangladesh. He recognizes the daily dangers that his community continues to face, and he knows that any attempt to represent or speak for them could put them in further danger.

This rupture highlights the dynamics of social disappearance for exiles, whose current existence feels disconnected from the urgent and often exciting struggles of the past. While activists like Rajeeb continue to live and work abroad, their connections to the contexts that gave their activism meaning are eroded. For many exiles, this form of social disappearance underscores not just the loss of physical presence but also the gradual disappearance of their social and political relevance in the very spaces where their activism once thrived.

Digital Spaces: A Sanctuary and a Battleground

The digital sphere, which initially fueled debates, activism, and precarity, continues to play a central role in the lives of exiles. It simultaneously circulates visibility and erasure, as well as a mix of negative and positive emotions. Like other exiles, refugees, migrants, and expats, Bangladeshi exiles use social media to maintain connections with family and their past, exemplifying what Wilding et al. (2020: 652) describe as the "circulation of affect via digital media," which is essential for sustaining transnational family ties. Platforms like Facebook serve a psychological need, helping exiles stay connected to Bangladesh and feel visible rather than forgotten. For some, such as Tutul and Supriti, digital platforms are a way to continue the activism and identities forged before exile, a way to resist being silenced or erased.

At the same time, posting online is a public act that can increase feelings of insecurity and risk. In Bangladesh, violent threats were sent directly to one's inbox or by phone. In exile, threats manifest differently—sometimes as responses to posts, forcing exiles to decide whether to engage or ignore them. Online visibility exposes exiles to hostile actors and new forms of harassment, contributing to their vulnerability and social disappearance. This harassment, both direct and indirect, is particularly damaging because exiles lack the means to effectively counter it.

A new form of harassment comes from former friends or allies who scrutinize exiles' online presence, questioning their commitment to activism or the legitimacy of their asylum claims. These judgments overlook the paralyzing challenges unique to life in exile, and are rooted in the broader affective economy. For example, Tutul has faced criticism for not speaking out on certain progressive issues. Others are accused of provoking their risk in order to seek asylum. Such accusations exemplify a

decentralized form of repression, operating through hegemonic consent that perpetuates societal pressure and marginalization.

Bangladeshis have long sought ways to leave the country for better opportunities, but Hasina framed asylum seekers as opportunists. As Rajeeb explains, "This [idea that we're opportunists] is a trope from the government that the general people fall for. But this gives a very wrong impression about the [LGBTQ+] community, which is one of the most marginalized, which is in the most vulnerable situation, and finding ways to survive every day, each day.... It's a way to also delegitimize the work that we've done, the voice that we have, the dissent we have. So to paint the community as an opportunist community is a huge disservice and dishonesty. [Instead of recognizing the enormous challenges,] they chime in with the rhetoric from the government."

The situation is further complicated by the actions of some exiled bloggers who, amid debates about authenticity, seem to assert their relevance to progressive causes and claims of danger through overtly provocative posts. These include posting photos of themselves burning a Quran or engaging in confrontational debates with conservative Muslims on YouTube, X, and Facebook. While these actions may be intended to reaffirm their at-risk status, other exiles view them as escalating tensions and worsening an already hostile environment. For example, Rajeeb noted how a blogger's post of a rainbow flag over the Kaaba heightened risks for LGBTQ+ individuals. Even if the cis-heterosexual blogger was motivated by solidarity, the consequences often fell on gay individuals, who became more likely targets of violence for being associated with an image deemed blasphemous by conservative Muslims.

This discourse not only undermines the progressive exiles' work and commitments but also contributes to their erasure from the national narrative. It also demonstrates the state's role in shaping the national discourse about progressive exiles. After having condoned their punishment at the hands of radical extremists, the state further alienated progressives who fled by calling into question their motives.

Other new forms of harassment have emerged as well, as described by Tutul. After having closed all operations in Bangladesh, only limited access to previously published books has been retained by Tutul as e-books, which he distributes for free on the online *Shuddhashar FreeVoice* platform. However, another person or people in Bangladesh regularly promote books under the name of "Shuddhaswar" (a variant spelling of Shuddhashar) on Facebook. They post photos of books for sale, including

books originally published by Tutul's Shuddhashar in Dhaka, such as originals by Avijit Roy. Tutul has received complaints from customers of this fake Shuddhaswar, who claim they never received the books they ordered and paid for. For Tutul, this situation further contributes to his experience of social disappearance, with his former reputation, occupation, and identity in Bangladesh being co-opted and erased without recourse.

For exiles, the digital sphere is both a place-making and place-negating site, a space for connection and a disorienting space of alienation. Online harassment contributes to their social disappearance by keeping them disconnected from their former lives, identities, and influence, and underscoring their lack of power.

State-Sponsored Transnational Digital Repression

Under Sheikh Hasina's rule, the Digital Security Act (DSA) served as a critical tool of national and transnational repression. Supriti Dhar, founder of Women Chapter, called the DSA the "Black Law."[18] In 2018, Supriti left Bangladesh after repeatedly receiving vulgar and violent threats online and by phone. On April 19, 2018, a case[19] was filed against her, her daughter, and writer Taslima Nasrin (forced into exile in 1994). In 2021, the three were indicted for hurting religious sentiments. Despite their exile, the state targeted their family members in Bangladesh.[20]

This form of necropolitics, where the state controls the social and legal existence of citizens, manifests through both direct legal actions and the psychological toll of not knowing when a case might emerge. Tutul, who was told by a friend[21] that a case had been made against him, said it can be difficult to know if a case has been filed because there are so many, and one case may include several names. Exiles like Tutul understand that,

[18] Presentation at the annual ICORN General Assembly in Malmö in May 2018 and personal communication.

[19] The case was filed with the Cyber Tribunal of Dhaka under Section 57 of the Information and Communication Technology Act.

[20] Situations such as these are considerably more pervasive among journalists who face DSA cases. A few expatriate Bangladeshi journalists also have had their family members threatened, arrested, harassed, and/or beaten. These are harrowing reminders of the risks and potential consequences that Bangladeshis take when writing online. See Hasan, this volume. *The Daily Star*, stated that in the past five years, cases have been filed against 451 journalists under the Digital Security Act, with 97 of those leading to arrests (2024).

[21] In 2022. There was no official notice given to Tutul.

should they return to Bangladesh, they might be prosecuted. In this way, the state exerted a form of social death by limiting exile's ability to reclaim their identity or normal life.

The Bangladeshi government also weaponized digital censorship against exiles. Exiles find that sometimes the number of impressions their posts receive is suddenly decreased, suspecting state interference, but the clearest sign of repression comes when their websites are blocked in Bangladesh.[22] Typically, there is no official notice, and the situation is discovered on social media or direct messages from readers asking why a website is no longer available. When exiles see that their sites are available in their host country, they understand access is restricted only inside Bangladesh. Readers in Bangladesh find proxy servers or VPNs to view blocked sites, but most exiles have little power to do anything. Others, whose connections inside Bangladesh are stronger, fight back. Websites like *Somewhere in…blog*, Bangladesh's first Bangla-language blog (founded May 1, 2005), have been blocked several times. In 2019, the blog site was blocked during a widespread ban on sites that allegedly contained pornographic material. Syeda Gulshan Ferdous Jana, the founder, appealed to the courts, drawing on media like *Deutsche Well*e to exert pressure, arguing that the block was due to the minister's personal animosity against bloggers.[23] Other sites, like *Netra News*, based in Sweden, and YouTube channels run by expatriates,[24] have also been blocked, further underscoring the state's reach in silencing dissent.

The government surveiles citizens and exiles online. It has asked Facebook and TikTok to block information, and Meta complied with sharing

[22] In 2019, *Al Jazeera* reported that two popular news portals had been blocked (Mahmud 2019), and *Al Jazeera* was also blocked that year. When 54 news websites were shut down in 2018, the state claimed responsibility, allegedly for security reasons (Al Hasnat, *Dhaka Tribune* 2018). According to the South Asia Press Freedom's publication, the Bangladesh Country Report, made similar claims, stating that secular blogs "used to publish the voices of minority atheists, are now blocked by the authorities in Bangladesh territory. However, the sites can be viewed using alternative technologies such as proxy servers or VPNs" (2020–2021: 4).

[23] Personal communication, 2019.

[24] In 2022, when Bangladeshi expatriate Pinaki Bhattacharya's YouTube channel was blocked, *Netra News* claimed that the Awami League government was "using intelligence agencies or ruling party contractors — to make fake copyright claims to internet service providers or social media platforms requiring them to remove content and close websites or YouTube channels set up by expatriate Bangladeshis" (*Netra News*, November 4, 2022).

information about users.[25] Hasina's regime poured significant resources into digital surveillance, including sophisticated surveillance equipment from Israel, which allows them to monitor mobile phones (*Al Jazeera* 2021).

The state knows the power of online activities and works hard to repress it. In addition to using its laws to target progressives, the state and its actors have utilized digital weapons such as surveillance and blocking to enforce the silence and disappearance of exiles.

Strategic Management of Precarity and Social Disappearance

Governments and institutions strategically determine whose lives are worth protecting, and whose are not, and the lives of my interlocutors were deemed unworthy of protection. At the same time, they were worth making precarious and socially disappeared. Why?

Efforts to silence them indicate that their online activism posed a genuine threat. These progressive activists, many of them young, got organized through online networks where they quickly gained influence that exceeded their social status (a pattern also seen in the most recent student movements). Their growing power needed to be contained. Though many had previously supported the Awami League and Hasina, their rising political influence became too significant to ignore. They were made examples of. By silencing progressives and denying them protection from machete-wielding Islamist groups, the state amplified fear across society and strengthened its rule.

Further, outsourcing dirty work to Islamist extremists allowed the state to maintain a public stance of non-involvement while benefiting from the violent silencing of progressives. The use of proxies enabled the government to avoid direct responsibility for the repression.

This system of repression is decentralized, with broader society helping to enforce the new norms about "risky" behavior. Progressive exiles are scrutinized not only by government surveillance and conservative Muslims, but they are also scrutinized by progressive Bangladeshis at

[25] For instance, *the Dhaka Tribune* reported: "According to Meta's latest transparency report, from July to December last year [2022], the Bangladesh government sought information about 1,278 users or accounts. Meta has provided 64.83% information" (*Dhaka Tribune*, 2023).

home who assess whether exiles had legitimate asylum claims and are continuing activism. Host country agents also monitor their behavior online. While this may sound like they are incredibly visible, all these eyes and ears contribute to their precariousness, making them feel socially disappeared.

Bangladesh's authoritarian measures, concretely realized within the nation, extend beyond its borders, creating a digital landscape where fear is fueled by dispersed people and actions. Rather than being a refuge for free expression, the digital realm becomes a space where fear is magnified and exploited, affecting those in exile in subtle yet insidious ways. This also shows how the internet's space of potential democracy can become restrictive and punishing, creating various systems of censorship.

In exile, social disappearance describes their experience of ongoing repression. Exiled Bangladeshis occupy a precarious place because their contributions to civic society in Bangladesh are muted or silenced. They are excluded from both their homeland and from full membership in their new countries, erased from the social frameworks that once gave meaning to their existence. Their lack of recognition and meaningful visibility as well as prolonged non-citizenship contribute to this experience of social disappearance.

Outlook

When looking at the Bangladesh methods of transnational repression, which are on the surface subtler than the repressive tactics of other countries, it's important to note that the state's aim was to control the narrative about Bangladesh. When seen in that light, repression was very successful. During the past 15 years, the authoritarian rule of Prime Minister Sheikh Hasina tightened the noose around a narrow narrative of Bangladesh. She sought to control the story of Bangladesh's founding and the image of her father, Sheikh Mujibur Rahman, Bangladesh's first president. She was contradictory about the role of secularism, but she came down hard against secular activists who critiqued Islam, and she then also cozied up to Hefazat.

The government-supported attacks and laws described in this chapter contributed to the pressure cooker environment that erupted in July–August 2024, while the government was attacking a student uprising. Although beyond the scope of this chapter, the uprising coalesced around grievances against the tyrannical leadership of Prime Minister Sheikh

Hasina, the draconian laws that were weaponized by ordinary citizens as well as state actors, and a society characterized by enormous economic divides. Because of the brutality of the police and Awami League's student wing, Chhatra League, who attacked students, killing hundreds and injuring thousands more, a diverse representation of people came out to support the movement. Sheikh Hasina resigned and fled into exile in India.

With an interim government navigating next steps, much remain uncertain about the future, including whether the repressive state mechanisms and draconian laws established under the rule of the exiled prime minister will be entirely eliminated. However, there is no indication thus far that the individuals represented in this chapter will fare better in the near future. In fact, their prospect of a safer Bangladesh may even be worse.

After years of censorship, it is uncertain how a culture of free speech can be normalized.[26] Additionally, the narrative about Bangladesh, promoted for 15 years and taught in schools, will be hard to rewrite because so much of it centered on religious identity and national belonging—both of which are emotionally charged topics.

One thing remains clear, however, the Islamist parties have not disappeared. This underscores an important distinction between the repression of exiled or at-risk journalists and opposition parties, on the one hand, and the progressive secular activists discussed in this chapter, on the other. Journalists and opposition parties critiqued the government, were imprisoned, killed, or disappeared, and the state devised laws to repress them. Now, after the ousting of Hasina, they are free and likely feel empowered to contribute to Bangladesh.

In contrast, even though progressive secular activists critiqued both the government's actions and Islam, it was almost only the Islamists who explicitly targeted them. Islamists have grown increasingly powerful, and their illiberal views have continued to spread. Women activists, who played a prominent role during the July–August 2024 uprising, have largely been pushed to the sidelines once again. The LGBTQ+ community remains politically marginalized and lacks any significant influence. While the state officially recognized the third gender in 2013, this recognition is exclusionary, and members face additional forms of discrimination,

[26] At the time of writing, after Hasina's fall, Bangladeshis continue to seek asylum, uncertain about their safety in this "new" Bangladesh.

including invasive surveillance to verify their "authenticity." Furthermore, homosexuality remains criminalized, with penalties reaching up to life imprisonment. Additionally, other marginalized groups that have been targeted by Islamist groups continue to face insecurity under this interim government. Ahmadiyya Muslims have been attacked,[27] and numerous Sufi shrines have been destroyed.[28]

Thus far, the interim government has excluded non-religious, progressive secularists. While aiming for broad representation, it has incorporated Islamist members—a predictable move given their long-standing influence, having been courted by both the Awami League and the BNP over the years. Additionally, Adilur Rahman Khan, founder of the human rights organization Odhikar and formerly imprisoned under Hasina's government, holds a role in this interim administration. Khan has a history of publishing crucial reports[29] on enforced disappearances, unlawful detentions, and extrajudicial killings. One such report,[30] covering the deaths at Shapla Square, was criticized for alleged exaggeration.[31] Yet, regardless of the report's accuracy, it underscores a striking omission: Odhikar remained silent on the killings of bloggers.

With the expansion of Islamist influence and the lack of representation in the interim government, there is no indication that Bangladesh will be safer for the people who are the subject of this chapter. What is also worrisome is whether Bangladesh has enough secularists and minorities left to help create a more inclusive future or whether Islamists will continue their repressive actions to keep them silent or in exile.

[27] https://www.dhakatribune.com/bangladesh/356884/ahmadiyya-muslims-denounce-attacks-on-community.

[28] https://www.dhakatribune.com/bangladesh/358520/why-attacks-on-shrines-remain-rampant-in.

[29] https://odhikar.org/bangladesh-annual-human-rights-report-2023.

[30] https://odhikar.org/people-who-were-killed-in-may-05-06-2013-centering-hefazate-islam-rally/.

[31] https://www.dhakatribune.com/bangladesh/355345/hefazat-rally-in-shapla-chattar-odhikar-publishes and https://www.thedailystar.net/hefajats-may-5-death-claim-questionable-23428.

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CHAPTER 9

Transnational Repression by the Indian State, and My Academic Freedom: A Testimony

Ashok Swain, Mubashar Hasan, and Arild Engelsen Ruud

The Beginning: My Research on Bangladesh and the Indian Intelligence

In 1993, I was interviewed by the Bangladeshi newspaper, the *Daily Star*, about my research on water sharing between India and Bangladesh. A component of that research involved the Farakka barrage built on the Ganges on the Indian side. India has been diverting most of the

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water flow of the river to its end. In that *Daily Star* interview, I said Bangladesh is losing 40,000 cusecs of water because of the Farakka barrage. As a result, Bangladesh was losing a lot of its agricultural and industrial production, and many people were displaced. The *Daily Star* later published the interview on 12 December 1993, with a headline "2 million Bangladeshis displaced by Farakka, says Indian expert." Following the publication of that interview in Bangladesh, I was contacted by the Indian intelligence, specifically the Research and Analysis Wing (RAW), and summoned to Delhi. They threatened to blacklist me—back then, I still held an Indian passport.

I found the situation worrying, but I defended my stance, stating that my research was academically sound. It featured the Indian side too, although the Bangladeshi media report did not fully represent my views. However, the intelligence agents found any criticism problematic and, ultimately, we reached a verbal agreement. The compromise was that I could continue my research unrestricted, but was not allowed to discuss it with the media. If I agreed to this informal arrangement, I could still visit India without issues. That was my first experience of an intrusion into my academic freedom from the Indian state and state agents. Reluctantly, I complied. I had to. To maintain my ties with India, I stopped writing for newspapers like the *Pioneer* but continued my academic work. In 1996, my research gained more attention when Praful Bidwai, a prominent journalist who wrote for the *Times of India*, cited my work. This didn't get me in trouble since I wasn't the one who directly provided the information to the press. However, my interactions with the Indian intelligence and the Indian state continued.

Since then, and remarkably for nearly a decade, there were regular contacts between me and officials from the Indian Embassy in Sweden. At times, this included members of India's intelligence agency, RAW. They would reach out to me about various things not directly related to my research. For instance, when notable individuals from India came to give lectures in Sweden, I would often be the one to organize these events. I facilitated various academic and diplomatic exchanges by organizing meetings and lunches, especially when a new Indian ambassador would arrive in Sweden. These gatherings allowed Indian and Swedish researchers, including our superiors, to network. This collaboration and support system persisted until around 2016.

In addition, there was an instance involving the Indian government and Uppsala University funding that required my intervention. In another

case, I had to oversee the arrival and tenure of an incoming professor because the prior arrangement didn't work out. There were even some high-level visits that needed my involvement; for instance, when Indian President Pranab Mukherjee visited in 2015. Despite my mixed feelings about him personally, I was instrumental in organizing his visit. The embassy wanted him to be awarded an honorary doctorate from Uppsala University, which I knew was not feasible. Instead, I helped arrange for a public lecture, even assisting with his speech.

This helped me maintain a good relationship with the embassy, and I became somewhat of a point person for them in Sweden, especially since there were not many Indians working in the Swedish academic fields similar to mine.

Every year, I was invited to the Republic Day and Independence Day functions at the embassy. I recall that in 2002, during one of these events, a RAW official approached me in the presence of my wife. The official explicitly thanked me for no longer working on my Bangladesh research project, thereby indicating that they were closing the file they had on me. This incident underscored the fact that while our interactions were cordial on the surface, they had been keeping tabs on my activities in Sweden. It was very unsettling.

Criticism of Modi and the Indian Embassy in Sweden

I knew of Narendra Modi long before his rise to national prominence. I had conducted a large survey in Gujarat before he became the Chief Minister, during a Democracy and Social Capital Project in the late 1990s. I visited Gujarat immediately after the 2002 anti-Muslim riots. I also spent some time in 2005 as a visiting professor at MS University, Vadodara. Despite witnessing the state's transformation and his ascension, I chose not to write about it, trusting the Indian system to address any concerns. However, the situation changed around 2013–14 when several political scientists, both of Indian origin and Western, who were critical of the Congress party, appeared to downplay Modi's past, aiding his rise to power. They didn't critically address what Modi was doing or had done, and that's understandable among Western political scientists who may not be as familiar with Gujarat. But the Indian academics, who are renowned globally, failed to voice their concerns properly during that time. And when Modi won in 2014, my frustration was largely confined to private

discussions with friends, colleagues, and during dinner conversations at home.

Then, in October or November 2015, I went to Nepal for a project evaluation. DFID and the Netherlands Organization for Scientific Research had funded climate and security research, and I was there to review these initiatives. This was shortly after the devastating earthquake that killed around 10,000 people. Amidst this, Modi had initiated a blockade against Nepal, which impacted everyday life there, including the availability of gas for cooking—something that significantly affected me personally, as food is very important to me. Frustrated, I wrote an opinion piece and sent it to Scroll from there. That's when I really began writing, and it is also when my troubles escalated again—my writings from Nepal landed me in hot water again with the Indian state.

Changing Nature of the Indian State Under Modi

It is clear that the Indian state under Narendra Modi has ways of extending its influence to silence or intimidate dissenters abroad. Up to a certain point, my own experiences have been subtle but tangible; being under the watchful eye of the Indian intelligence officials, even in Sweden, created a sense of being monitored.

Yet, I've continued my work without directly joining any oppositional groups or movements. I value my independence and the freedom to criticize or support whom I choose without being swayed by group affiliations.

Writing for publications like *Scroll* and *India Today* began in October–November 2015. Later, my involvement in public discourse continued when the Swedish Prime Minister visited Mumbai for the "Make in India" event promoted by Modi. My criticism, published in a debate article in a prominent Swedish newspaper, coincided with the Prime Minister's landing in Mumbai. This piece, where I was critical of Modi's policies, especially his impact on Indian democracy, secularism, and scientific temperament, did not sit well with the Indian embassy in Sweden—particularly the ambassador, who felt I had undermined her efforts. Subsequently, my relationship with the Indian Embassy cooled considerably. Realizing that circumstances were getting complicated, my wife and I decided to apply for OCI (Overseas Citizenship of India), which we received fairly quickly in late 2019.

Surveillance from Swedish Intelligence and Switching to a Swedish Passport

I'd been in Sweden since 1991 and could have changed my passport then, but I waited, hoping that dual citizenship would be granted by the Indian government, as hinted at in the past by Indian politicians. In 2004, I went ahead and applied for Swedish citizenship. However, I faced an unexpected delay. My application wasn't processed for two years, and I couldn't understand why. In 2005, I called the Swedish authorities to inquire about the status of my application. They casually asked if I was in a rush to get the passport, to which I replied I was not, but nonetheless, I found it puzzling why it was taking so long.

The following year, I was in my office when I received a call from the Swedish secret police, Säpo. They requested a meeting, and given that I wasn't involved in any wrongdoing, I naively assumed it could be for something mundane or even a possible consultancy opportunity. I explained that I was busy and about to travel, so I suggested postponing our meeting for ten days. However, they pressed for urgency, which eventually alarmed me.

The next morning, I went to the Säpo office and found out that they had been monitoring me too. They had photos of me interacting with various embassy officials from China, Colombia, Vietnam, and others, which included military and cultural attachés. They questioned my activities, which frustrated me deeply. I pointed out that as the Director of the International Studies Program at Uppsala University at that time, it was part of my job to interact with international figures, including those linked to education programs. In some of my encounters with foreign embassy officials, who could have been from the intelligence sector, but the reality was that they also had responsibilities pertaining to educational outreach. Since I was directly involved with a master's program at Uppsala University, these officials would meet with me. Swedish security service Säpo had gathered evidence of these interactions as well as my connections with the Indian Embassy, which they presented to me with a sense of concern.

With an utter sense of frustration, I made it clear to Säpo that I was doing nothing clandestine and that my role, which was funded by Swedish taxpayers, required these diplomatic and educational engagements. I challenged them to think logically about the nature of my work and pressed them on why they would find it suspicious. A couple of days after this

intense encounter, my passport issue was finally resolved. And I received my Swedish passport.

Banned From Entering India and Cancellation of OCI

In February 2020, I needed to travel to India for a family wedding in Bhubaneswar. Anticipating potential complications if I visited Delhi, where the situation for me was particularly tense, I strategically chose to land in Kolkata. There, while going through immigration with some anxiety, the official scrutinized my passport and then left for a lengthy check-up. This unnerved me. Upon his return, without explanation, I was allowed to go. The experience, unsettling though it was, passed without incident. However, the situation began to deteriorate as the COVID-19 pandemic set in. By November, I received an official notification stating I was barred from entering India due to my supposed involvement in "anti-India activities," which included giving provocative speeches—allegations that seemed baseless to me since I didn't engage in such activities, not even in my classroom.

I sought to clarify these allegations and engaged a lawyer in India to help me construct a response. In the meantime, my OCI was also revoked. Refuting their claims, I initiated legal proceedings, which required presenting a power of attorney in the Delhi High Court—a document that also needed the Indian Embassy's confirmation. Salman Khurshid, a former Indian Law Minister and Foreign Minister, agreed to represent me, underscoring that the charges of being anti-India were unfounded.

However, the embassy was sluggish and uncooperative regarding the power of attorney, causing further delays. Nevertheless, the case pressed on. The Delhi High Court, in an interim decision, noted that due process wasn't properly applied in revoking my OCI. This semblance of victory was short-lived, as the judgment also left room for the authorities to issue a new order for revocation.

While on a family trip in southern Europe, another notice arrived, affirming that once more, my OCI was canceled. This prompted another round of legal challenges, leading me back to the Delhi High Court, where the matter was pending a hearing.

After realizing the extent of what had happened, I became more aware of the situation that there are others too who are threatened that their

OCI status will be revoked. As a result, they became hesitant to speak out due to potential repercussions, as the current regime is known for its vindictive tendencies. Initially, I refrained from speaking to journalists about my issue because I wanted to handle it legally and avoid turning it into a public spectacle. My interest has never been to be in the limelight; I had opportunities to go into politics since my father was a politician, but I chose academia because that's where my interests truly lie. Despite my reluctance, and my desire to not worry my mother with these issues, the situation became very public when my case was brought to the Delhi High Court in late 2022. To my surprise, this news spread across all major Indian newspapers, making it to the front page of publications like the *Times of India*. Until then, I had managed to keep the news confined only to a small circle of friends and a few journalists, upon whom I had impressed the need for confidentiality.

But once my case hit the headlines and became a public matter, I began talking to a few journalists, though it's always challenging for me. Explaining my situation and revisiting the events is emotionally exhausting. I find myself divulging this as part of the narrative—it represents the complexities and personal impact of publicly challenging power structures.

The Personal Toll of Transnational Repression: Isolation and Stigmatization

This series of events appears to be a bid to suppress my voice and disconnect me from my roots. Returning to India remains a deep-seated intention, especially since I've prepared a retirement home in Bhubaneswar since 2004. It represents the ideal of eventually returning to the world I've always believed in. My mother's care further compounds the issue; despite teaching gender equality, cultural expectations fervently dictate my responsibilities as her son, a duty I cannot simply delegate to my sisters, regardless of my beliefs in the Western world. Throughout this challenging period, despite being strong-willed, I faced difficult moments as a human being. My wife, family, and professional colleagues have been supportive, yet I've never considered giving up on what I believe is right. Financially, I am independent, supported by my own means rather than relying on my extended family or university funds. My defiance stems from my character; I've grown to a point where the opinions of others concerning my actions matter less to me. Although I've been in

Sweden for over three decades, making personal connections here has its challenges.

I mention this because I think it's important to understand how isolating these experiences can be. I've been living in Sweden for nearly 33 years. Over this time, I have developed several professional acquaintances, but I haven't formed many personal friendships. Making friends in Sweden can be difficult, as Swedes often have a different approach to friendship and socializing. My situation is compounded by the fact that I'm not an inherently sociable person, which means that forming close friendships has been challenging from both sides. I used to have school and university friends with whom I would communicate when I needed personal advice, or they needed mine. With advancements in communication, it became easier to keep in touch with friends in India, whether they were in Delhi or elsewhere. However, as a fallout of the case becoming public, contact with these friends has ceased, which has been painful, especially when some began to suspect that I was anti-Indian. This misunderstanding hurt the most.

Despite everything, including threatening phone calls and insults directed at my wife and myself, I remained steadfast in my beliefs. I've always advocated for justice, not just for India, but in different contexts like Bangladesh, Ethiopia, Palestine, and against the Pakistani military regime. Even facing accusations like being anti-Semitic from a right-wing Swedish publication didn't deter me. I am firmly anchored in my principles, and giving up on standing for what I believe in has never been an option—it would only result in greater sadness and difficulty for me. My convictions are non-negotiable, and abandoning them is not something I ever contemplate; doing so would be antithetical to who I am.

Transnational Threats, Security Measures, and Defiance

Many people I know are now afraid to communicate with me openly. They worry that their emails will be hacked or their phone conversations monitored. Recently, someone from the US wanted to talk to me but was too afraid to use conventional communication methods, preferring to use encrypted services like Signal. Personally, I am less concerned with these surveillances, as I work in a public space and believe that there is little more they can do to me. The intimidation and threats directed at me have created a ripple of fear among others, showing them that if I can

be targeted, they can be too. This creates a chilling effect on freedom of expression.

I'm okay with taking my travels my way, so that's fine. There have also been numerous threats that have been made openly. There have been several applicants who have written not only against me to UNESCO but have also initiated a public signature campaign, which did not succeed. They have sent at least 500 letters to my university here in Sweden, complaining about my writings, media interviews, and social media postings. The local police here are now involved due to the numerous threats I received. To name a few, I've received a threat letter stating that I would be cut into pieces by the morning, and similar threats have been directed at my wife, causing her distress. These threats have also been sent to my Vice Chancellor, and anyone who could be considered my superior.

There were specific death threats originating from the UK and the Indian diaspora there. Our university security was informed that someone intended to come to my office and shoot me. It's a challenging situation indeed.

As for the impact on my family, yes, it is tough. I've advised my children not to reveal their relationship to me because, it could cause problems. My son, who is pursuing a PhD abroad, and my daughter, who is studying in Stockholm, are both discreet about their connections to me. My wife faces frequent threats, and even my colleagues and bosses have been targeted. These ongoing issues are certainly not something I expected as part of my job. As for my family in India, they have not been threatened, which is a relief. My connections in Odisha seem to offer some protection, as I have friends and acquaintances in influential positions. Even though I have lost contact with several friends, those who are aware of my network tend not to interfere with my family there. Moreover, my in-laws' identities are not widely known, which provides an additional layer of security.

The threats that my wife, colleagues, and I have received make life difficult. You do not want to wake up to messages threatening violence or harassment directed at your loved ones or at your workplace.

Regarding security measures, the university and the Swedish police have been concerned, but they struggle to address threats originating from abroad. At my department, there are now restrictions on who can enter, which is not common in Sweden since universities here are typically open spaces. There was a proposal to install surveillance cameras in my office, which I resisted because it could affect other staff members.

Communication with university security is continuous, and when I walk from my home to my office, which is a mere seven minutes away, I have to take varying routes for safety reasons.

Reflections: Why Am I a Target of the Indian State's Transnational Repression?

In pondering the answer to this question, I contemplated that I'm not alone in criticizing Modi or his policies; many within India voice their concerns as well. One factor that singles me out might be that, as an academic living abroad, I have a significant social media and media presence. The intensity and reach of my criticism can potentially amplify its impact, which might not sit well with certain groups or individuals tied to the Indian ruling party.

For example, I have a huge social media following with over 600,000 followers on X (formerly Twitter). My Twitter mentions could even reach a larger audience, which underpins the impact my statements can have. Despite the attempts to undermine me, such as calling me a "fake professor," blocking or shadow-banning my Twitter account, and trying to marginalize my presence, my following has continued to grow. This undermines the efficacy of these strategies to silence me. It's worth noting that engagement on these platforms does not necessarily correlate with agreement or support but rather reflects the extent of interest and engagement with the content I produce, whether it's agreement, curiosity, or even opposition.

My writing and public commentary are driven by a sense of anger and frustration with the issues I address. By discussing political matters, questioning the state of democracy, and addressing economic challenges in academic forums, I touch on sensitive subjects that garner reactions from various quarters. I focus on Indian democracy and the economic situation in India. That means that if you're an academic and speak or write on these topics, you're bound to attract attention, sometimes even unwanted attention from authorities.

Additionally, there might be difficulties in categorizing me, which makes it challenging for my critics to dismiss my arguments using common stereotypes. As a Hindu and upper caste, my background does not fit the narrative that criticism of Hindu supremacy might only come from marginalized communities like Muslims, Christians, or Dalits.

Therefore, my criticism carries a different weight and perhaps strikes a more sensitive nerve.

Regarding my personal and financial ties, I even have links to Kashmir through my wife, a Sikh from the region. This adds another layer to the complexity of my situation, as my criticism isn't rooted in personal disenfranchisement but rather comes from a place of principle.

I've also been very critical of not just the government and Modi, but also of Hindu supremacist groups and the Indian diaspora's role in politics. My work, including a planned book on the Indian diaspora, which was hindered due to my growing 'notoriety' and subsequent isolation within the diaspora community, reflects this critique.

The reaction to my work could be an indicator that the most outspoken and visible critics present a threat to the status quo. By targeting me, a critic with a considerable profile, the intention might be to send a message to others who may share my views but are observing from the sidelines. It's a way of instilling fear and self-censorship among peers and the wider community, which ultimately helps silence dissent.

In essence, these experiences illustrate the fine line that public intellectuals and academics tread when analyzing and critiquing political and social issues in environments where voices are being increasingly suppressed. It's about maintaining the determination to continue the discourse despite the surrounding challenges.

My hypothesis is that there isn't necessarily a single decision-making entity orchestrating actions against individuals like myself; rather, it's more to do with an ecosystem of various actors. These individuals or groups may be trying to curry favor with others in power, and for some reason, I have been marked as a target. It's like a collective movement motivated by a shared ideology rather than centralized directives. They could have easily ignored me, considering I am situated in a small corner of Sweden, and the vast majority of the Indian populace would not be aware of me or my critiques. However, it appears that they have chosen to be vindictive for reasons best known to them, potentially to set an example for others who might think of challenging their narrative.

These situations are indeed perplexing and can lead one to wonder about the underlying motives and the fear or insecurity that drives such disproportionate reactions to academic engagements. But these occurrences also highlight the unpredictable and often reactionary nature of this ecosystem that aims to suppress dissenting voices.

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CHAPTER 10

Fear Without Borders: Bangladeshi State's Transnational Repression Under Sheikh Hasina Regime

Mubashar Hasan

Introduction

The case of Bangladesh under the former regime of Sheikh Hasina (from 2009 to 2024) exemplifies several key characteristics of transnational repression, which have often been overlooked due to the country's previous stability and economic growth. Bangladesh's open market economy and its non-threatening ideological stance toward liberal democracies allowed Western businesses, development organizations, and NGOs to operate with minimal constraints.

However, under Sheikh Hasina's government, authoritarian practices were increasingly embedded domestically through repressive tools such as extrajudicial killings, enforced disappearances, judicial harassment, and the Digital Security Act. While the government's harsh tactics against

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domestic dissenters became a growing concern for human rights organizations (Amnesty International 2017; HRW 2020), the regime's methods of transnational repression (TNR) remained under the radar for a considerable period, only coming to light significantly after the US imposed sanctions on the Rapid Action Battalion (RAB) and several of its high-ranking officials (US Department of Treasury 2021).

This chapter explores how Bangladesh's transnational repression (TNR) was a continuation of its domestic strategies. A key and unique element of Bangladesh's approach was its ability to instill a deep sense of fear, apprehension, and insecurity, through simple but effective methods. Unlike outright acts of violence, such as the murders, kidnapping, and physical violence, Bangladesh under Sheikh Hasina's TNR approach operated on a subtler psychological level. The strategic use of fear was able to effectively silence many dissenters living abroad. Bangladesh's TNR approach embedded and weaponized the sensation of fear as a central tool in the state's arsenal. The nuanced nature of Bangladesh's case demonstrates how TNR functions not just as an extension of domestic practices, but as an evolved and sophisticated strategy of psychological domination.

The Political Context of Bangladeshi TNR

From 1990 onward, following the fall of the military government led by General Ershad, Bangladesh evolved into a two-party political system, dominated by the Awami League (AL) and the Bangladesh Nationalist Party (BNP). A non-elected caretaker government traditionally oversaw elections to ensure fairness (The Daily Star 2024). However, after AL's landslide victory in 2008, the government abolished this provision, thus ensuring biased electoral oversight (Bishop 2014; The Daily Star 2019; Singh 2024). The subsequent elections in 2014, 2018, and 2024 were widely criticized as being neither free nor fair, enabling AL to consolidate power and cement itself as an authoritarian regime (Ruud and Hasan 2022).

This consolidation of power involved extensive repressive techniques. Reports documented that from 2009 to 2022, the government extrajudicially murdered over 2500 citizens and forcibly disappeared over 600 more (Ahasan 2023). Civil society actors, including journalists, academics, and NGO activists, faced severe imprisonment, torture, and disappearances (Front Line Defenders 2017; Mahmud 2021; HRW 2020; Feinstein 2021). Before the 2024 elections, over 2.5 million opposition

activists were reported to face legal actions, with charges ranging from 2 to 450 per activist (Mashal 2023).

The judiciary, police, bureaucrats, and intelligence agencies essentially became extensions of the ruling party, reinforcing a "party-state" dynamic (Kuttig 2020). Consequently, Bangladesh's global rankings in press freedom and rule of law plummeted, with the country being categorized as partly free and a hybrid regime by various democracy indexes (Kuttig and Sharif 2022; Riaz and Zaman 2021; Freedom House 2021a; World Justice Project 2023). The extensive repression provoked a mass exodus, with hundreds of thousands seeking asylum abroad (Hasan 2024). Rudd and Hasan (2022) have compiled a series of domestic repressive tactics by the Bangladeshi government in the edited volume *Masks of Authoritarianism: Hegemony, Power and Public Lives in Bangladesh*. While domestic persecution was a hallmark of the AL regime, less attention has been given to how it systematically targeted exiled dissidents. However, resilience among the Bangladeshis, including those living abroad in exile, persisted (Rudd and Hasan 2024). On August 5, 2025, Sheikh Hasina eventually fled Bangladesh, against the backdrop of a student-led people's uprising ending 15 years of her authoritarian rule.

Research Method

Presently, there are four TNR datasets available. They are *Central Asian Political Exiles Database (CAPE)*, *Authoritarian Actions Abroad Database (AAAD)*, *China's Transnational Repression of Uyghurs,* and *TNR Database of Freedom House*. A review of these databases reveals that they use media sources, news reports, reports by NGOs and international organizations, and interviews. However, none of these sources document TNR by the Bangladeshi state. A major reason behind this, according to a staff in Freedom House who I interviewed recently, is that Bangladeshis living in exile don't report TNR and also they are not known subjects of violent physical threat (assassination, kidnapping, or enforced disappearance in the foreign soil), except one case, in the country of their exile. This chapter, therefore, is going to contribute to the previously unreported and understudied field of TNR by the Bangladeshi state under Sheikh Hasina's regime.

Following the trend of the major data sets on TNR, I use in-depth interviews of Bangladeshis who were living in exile and subject to a multitude of harassment up until July 2024. Primarily, the interviewees

are selected based on purposeful sampling. Palinkas et al. (2015) state that purposeful sampling is "widely used in qualitative research for the identification and selection of information-rich cases for the most effective use of limited resources." The selection process for the purposeful sampling involves interviewing individuals or groups of individuals who are knowledgeable about or experienced with a phenomenon of interest (Palinkas et al. 2015; Creswell and Clark 2017). The interviewees for this study are therefore selected through their location of current residence, which is not Bangladesh. Other criteria of selection for the interviewees include whether they face an imminent threat of bodily harm, including imprisonment for their activism and work, if they return to Bangladesh from abroad. My primary knowledge about this group of exiled activists and professionals was useful in reaching them. My background of being a survivor of enforced disappearance in Bangladesh (Staszewska 2024; Front Line Defenders 2017) and my past status of living in exile too, helped me gain trust with the interviewees. Throughout the interview process, I found that gaining the trust of the interviewees is very important. Sheikh Hasina's authoritarian governing style had instilled distrust among the dissenters living abroad against the backdrop of persistent online surveillance and intimidation of their family members back home.

Once I managed to establish contact and trust with the interviewees, the snowball technique was useful to reach out to new interviewees. Snowball sampling is a research recruitment technique in which research participants are asked to assist researchers in identifying other potential subjects (Palinkas et al. 2015).

In total, I have interviewed 19 diaspora members in the period between April 2023 and January 2024. They were based in various cities, including Kuala Lumpur, Sydney, Canberra, Washington, D.C., New York, Malmo, Hong Kong, Athens, Ohio, and London. All the interviews took place before Sheikh Hasina's fall in 2024. For their security, the identities of the interviewees have been anonymized, though three activists were identified as they wanted to be identified and were convinced that their risks were minimal. The interviews were not recorded, as most interviewees were not comfortable with recorded interviews due to security concerns. Part of the transcriptions that are used in this chapter were sent to them for their approval. All the interviewees are males.

It should be noted that a drawback of this research is that the most part of the findings is entirely dependent on the claim of the interviewees, apart from a few publicly known instances such as violent attack

on a diaspora journalist's brother (OCCRP 2023), arrest of a sister of a diaspora journalist (CPJ 2022), and harassment of a mother of another diaspora journalist (Pieal 2024). The limitation of this research on TNR is not unique to Bangladesh, rather it is an overall problem of researching TNR.

Here is a breakdown of the locations and professions of the interviewees:

SL No	*Name/Code*	*Location*	*Activism/Profession*
1	A	Kuala Lumpur	Political Leader
2	Tasneem Khalil	Malmo	Investigative Journalist & Editor of Netra News, Diaspora Media
3	B	London	Editor of a Diaspora Newspaper
4	C	London	Journalist
5	D	Kuala Lumpur	Senior Opposition Leader
6	Kanak Sarwar	New York	Journalist
7	E	Kuala Lumpur	Political Activist
8	F	Washington DC	Journalist
9	G	Hong Kong and Ohio	Human Rights Activist
10	H	Sydney	Academic and Political Activist
11	Z	New York	Journalist/Youtube Commentator
12	J	Canberra	Writer and Social Media commentator
13	L	Sydney	Artist and Political Activist
14	M	London	Political Activist
15	N	Sydney	Social Media Commentator
16	Shafiur Rahman	London	Journalist on Rohingya Issues
17	P	London	British Bangladeshi Journalist
18	Q	Toronto	Academic and Analyst
19	R	London	Barrister, British Councilor, and Media Commentator

Along with the interviews, news reports and social media posts were used to understand the techniques and natures of Bangladeshi TNR under the AL regime.

Research Output: The Framework of Transnational Repression by the Bangladesh State Under Hasina

While the details and patterns of Bangladeshi TNR are important to narrate and describe, it is equally important to understand those details within a framework. Based on the interviews with the dissenters, it is evident that the Bangladeshi state under Hasina used multiple tools of TNR toward its targets with three objectives in mind: (a) generating fear among diaspora, (b) increasing vulnerability and weakening resilience of the exiles, and (c) silencing and isolating the dissents.

In order to achieve these objectives, interviewees said that Bangladeshi state allegedly used a variety of techniques including: coordination with host country law enforcements, using spyware, attempted kidnapping, death threats via social media, possible manipulation of Interpol red notices, repression on close family members back home, creating family feuds to put pressures on the exiles, encroachment of assets back home, convicting in transnational digital security act, alleged surveillance activity in foreign cities, heckling in social circles in foreign countries, not providing consular services including non-renewal of passport through Bangladesh High Commissions abroad, revocation of passport, and anonymous phone threats.

These tools of repression are used to attain the three aforementioned objectives. At the time of conducting this research, which is when Sheikh Hasina was in power, a few interviewees said that they would continue to persist with their work despite Bangladesh's intimidation, whereas some had opted to be silent, applied self-censorship, or toned down their criticism of Sheikh Hasina's government.

The following table presents the techniques used by Sheikh Hasina's government against critics abroad in three categories:

Objective of Transnational Repression	*Tools Used by the Bangladeshi State*
Generating fear among diaspora	Coordination with host country law enforcement officials, Attempted kidnapping, Death threats via social media, Manipulation of Interpol red notices, Alleged surveillance in foreign cities, Anonymous phone threats

(continued)

(continued)

Objective of Transnational Repression	*Tools Used by the Bangladeshi State*
Increasing vulnerability and weakening resilience	Repression on close family members back home, Creating family feuds, Encroachment of assets, Non-renewal of passport through Bangladeshi High Commissions abroad, Use of Spyware
Silencing and isolating dissents	Repression on close family members back home, Convicting transnational digital security act, Manipulating US copyright laws, Not providing Consular services, Heckling in social circles in foreign countries

Some of the tools featured in this framework are overlapping by nature. For instance, the repression targeted at close family members serves the dual purpose of both silencing dissent and increasing their vulnerability. These interconnected tools and objectives highlight the concerted efforts of the Bangladeshi state to not only isolate and silence dissidents but also to instill a pervasive sense of fear and vulnerability within their target individuals. Next section discusses how Sheikh Hasina's government used multiple tools with an aim to (a) generate fear among the diasporas, (b) increase vulnerability and weaken resilience, and (c) silence and isolate dissents.

Generating Fear Among Diasporas

The modus operandi of the Bangladeshi government to achieve this target varies depending on where the exiles live. For example, if an exile lives in an Asian country where the rules of law are bendable and democracy is not the foremost value of that land, Bangladeshi authority under Sheikh Hasina's regime tried to apply physical threats. On the other hand, if an exile lives in a liberal democracy the Bangladeshi authority did not intimidate the dissident physically but intimidated them in other ways, such as intimidating family members back home. To illustrate the point, I discuss a few cases.

First is the case of a person I shall call A here. He was a survivor of enforced disappearance in Bangladesh and has been living in Malaysia as a Bangladeshi expatriate since 2008. Additionally, A was an opposition political activist. In 2015, he returned to Bangladesh to get married, but

in 2016, law enforcement agencies kidnapped and forcibly disappeared him for several months. During this time, he was held in a highly challenging situation in a secret and illegal prison facility called the Aynaghar (House of Mirror), which used to be managed by the Bangladeshi military intelligence, known as the Directorate General of Forces Intelligence (DGFI) (VOA 2022). In an interview, A revealed that he was a case of mistaken identity. Once the intelligence agency realized this, they handed him over to a civilian intelligence agency, where he endured further torture. After a long struggle, A managed to flee back to Malaysia.

In Malaysia, A shared his harrowing experience with a Bangladeshi diaspora media outlet. After his story was published, A alleges that he was subsequently surveilled on the streets of Kuala Lumpur. He noticed unknown Bangladeshi individuals, whom he suspected to be Bangladeshi intelligence officials, loitering outside his house and following him. According to A, these officials were trying to gain a clearer understanding of his movement patterns.

One day, in a Kuala Lumpur alleyway, a few men approached him, introducing themselves as operatives of a Bangladeshi national security intelligence agency. They tried to coax him into a nearby vehicle. Fearing he was about to be kidnapped, A managed to run away and evade them. Traumatized by this experience, A sought help from officials of the United Nations High Commissioner for Refugees (UNHCR) in Kuala Lumpur. They advised him to relocate to a nearby city. However, the harassment continued at his new location, A claims that he was almost run over by a car one day. At the time of the interview, A was so disturbed that he had confined himself to his home, only venturing out for essential needs such as groceries. He also suspected that his phone had been infiltrated by spyware and that his Facebook messages were being monitored by Bangladeshi government agents, as everyone he communicated with in Bangladesh was subsequently visited by intelligence agents. As an interviewer, A's profound fear for his life in a third country was deeply distressing and unsettling to witness. A's experience of living in a state of distress up until the point when Hasina was in power underpinned why Bangladesh's dark approach to TNR was effective.

Furthermore, there have been cases where other Bangladeshi opposition leaders and dissidents, despite being asylum seekers, faced harassment and arrest by Malaysian police. In some instances, Malaysian law enforcement agencies collaborated with their Bangladeshi counterparts to target these dissidents. For example, in 2024, Malaysian police arrested a

Bangladeshi opposition leader named MA Qayum. A local newspaper reported that this arrest was part of a joint operation between Malaysian law enforcement and Bangladeshi agents (Khairulrijal 2024). The objective was to deport Qayum, but the Malaysian High Court issued a stay order, allowing him to remain in Malaysia.

Another case highlighting the Bangladeshi government's use of transnational repression to instill a sense of insecurity is that of H, an academic and political activist in Sydney, Australia. An Australian citizen of Bangladeshi origin, described how the government allegedly promoted apprehension by intimidating diaspora protest rallies.

In an interview, H recalled an event about organizing annual human chains and public protests on August 30—International Day of the Victims of Enforced Disappearance—in front of Sydney's Martin Place, opposite the NSW Parliament House, to criticize Sheikh Hasina's government's use of enforced disappearances. Initially, many Bangladeshis expressed interest in these demonstrations. However, individuals with military-style haircuts began photographing participants, causing widespread fear among the Bangladeshi diaspora participating in that protest. Those protesters feared that they would be placed in some kind of government database, leading to potential arrest upon returning to Bangladesh, or that their families might face repression by Hasina's government. These fears were justified, as several British Bangladeshi diaspora members involved in opposition politics had been arrested upon arrival at Dhaka airport under Hasina's regime. Consequently, the number of participants in Sydney's protests declined significantly in the following years due to these intimidation tactics.

Similarly, C, an editor of a Bengali newspaper published in London, faced severe repercussions after organizing a 2022 protest rally demanding justice for families of the disappeared in Bangladesh. Following the rally, his village home was attacked, and his elder brother was arrested and falsely charged with conspiring to overthrow the government, spending a month in jail. Additionally, National Security Intelligence (NSI) officials and detectives visited C's sister, showed a detailed list of 27 relatives, their residences, workplaces, businesses, vehicle movements, and children's schools. This high level of intimidation led C to refrain from publicly criticizing the Bangladeshi government for a while, highlighting the regime's far-reaching and deeply personal methods of stifling dissent.

Increasing Vulnerability and Weakening Resilience

People who are forced to live in exile are already vulnerable and isolated. Their family lives and overall stability are deeply disrupted because of forced dislocation. In addition, some of the exiles told me in interviews that they faced pressure from their families back home. They said that their family members accused them of being selfish for their activism against Hasina, as the exiles' activism in Bangladesh increased the vulnerabilities of their families living under Hasina's government. This accusation from families further expanded their sense of isolation. The Bangladeshi government under Sheikh Hasina exploited this inherent vulnerability and isolation, using the intimidation and repression of exiles' family members or close contacts back home as a key tactic. This tactic is known as "coercion by proxy" (Adamson and Tsourapas 2020). This psychological warfare aims to amplify the exiles' isolation and fear. While some exiles succumb to the pressure, others remain defiant, persisting in their opposition, despite the risks. I present a few cases here.

Kanak Sarwar, a Bangladeshi journalist, was imprisoned in 2015 on charges of sedition for broadcasting speeches of exiled opposition leader Tarique Rahman through Ekushey Television (Bergman 2021; TBS 2020). His imprisonment marked a significant milestone in the repression faced by media personalities opposing the government. After his release, he relocated to the United States and began running a YouTube channel, "Kanaksarwar News," from his home in New York. On this platform, he discusses what the Bangladeshi government perceives as sensitive topics, including military corruption, graft within the former ruling party, and human rights abuses.

The Bangladeshi authorities under Hasina, recognizing Kanak's influence, targeted him through a series of repressive measures to weaken him. Some of these measures included: blacklisting his passport in the government server, and he was denied any consular services from the Bangladeshi Embassy in New York. This move effectively rendered him stateless, cutting off his ability to travel. Later, multiple charges were filed against him, including under the extraterritorial Digital Security Act, sedition, and contempt of court. Kanak revealed that a total of five arrest warrants were issued against him by the authorities. The repression extended beyond Kanak himself to his remaining ties in Bangladesh. His relatives were persistently harassed and bullied. A social service school

established by Kanak's late parents, which was being operated by him and his family, was forcefully shut down. Local former ruling party men even went as far as installing a signboard over his land, falsely claiming it belonged to a leader of the Awami League. These actions were taken to send a clear message that dissent from abroad would not be tolerated, and the cost of defiance would be high.

Perhaps, the most harrowing incident was the dramatic arrest of Kanak's sister. In 2021, nearly 50 members of the Rapid Action Battalion (RAB), an elite paramilitary force, raided her home in Dhaka. Under the manufactured pretext of disseminating anti-state propaganda, RAB officers used a fake Facebook account they had created in her name to justify the arrest (Netra News 2021a). Despite her attempt to report the impersonation to local police, she was arrested. This high-stakes raid, typically reserved for violent criminals or terrorists, saw his sister's three young children held at the RAB headquarters for thirty hours. CCTV cameras around the property were dismantled, ensuring that no evidence of the abusive raid would come to light. The trauma and psychological pressure on Kanak were immense. While he publicly claimed that such pressure would not deter him from his work, the emotional toll was undeniable. His family felt vulnerable, with many in Kanak's family viewing Kanak's activism as the cause of their hardships.

The relentless psychological assault was not limited to Kanak alone but extended to others who challenged the regime. Tasneem Khalil, the editor of Sweden-based investigative news site Netra News, faced similar repression. Khalil was tortured by Bangladeshi military intelligence in 2007 under a military-backed government. After his release from illegal detention, he relocated to Sweden and became a Swedish citizen. Khalil's investigative journalism continued to examine corruption and human rights abuses by the Bangladeshi government, making him a high-value target for repression. His work included reports on a minister's expensive Rolex collection, state-backed hacking of critics' accounts, and the location of a military intelligence agency's secret prison (Ruud and Hasan 2024). Khalil also appeared in Al Jazeera's documentary "All the Prime Minister's Men," which exposed criminal activities of Bangladesh's former military chief, using state assets.

The Bangladeshi government's response to Khalil's work was multifaceted. Persistent online bullying, harassment, and anonymous death threats became part of Khalil's daily reality. He reported these threats to Swedish police. Additionally, the Bangladeshi Counter Terrorism and

Transnational Crime Unit brought charges against him under the Digital Security Act. Arrest warrants were issued, and an order was issued to confiscate his property in Bangladesh. Efforts to silence him also involved leveraging diplomatic pressure; Khalil said that the Bangladeshi government raised the issue of Netra News during bilateral meetings with Sweden, albeit without success, as press freedom in Sweden is strongly protected by the constitution (CPJ 2021).

Moreover, the government did not stop at legal charges and diplomatic intimidation. Khalil's aging mother, Nazneen Khalil, who was residing alone in Sylhet, faced severe harassment. Intelligence and law enforcement agents frequently knocked on her door in the middle of the night, ostensibly searching for Khalil, despite knowing he lived in Sweden. This form of intimidation extended to the broader family, causing psychological distress that included mental health crises for Khalil's sister in Canada. The targeted harassment aimed to petrify Khalil's family was somewhat successful in creating family friction, yet it did not deter Khalil from his investigative work. He understood the high-risk nature of his journalism and took numerous measures to protect his sources and journalists working in Bangladesh.

Another emblematic case concerns the case of D in Malaysia, who fled Bangladesh following a stint in prison. Vocal in his criticism of the government on Facebook, he found his family persistently intimidated and harassed by intelligence agents and law enforcement back home. This harassment created deep divisions and guilt within his family, rendering him vulnerable. His Bangladeshi passport was not renewed, and attempts were made to have him repatriated. For example, there were instances when Bangladeshi authorities coordinated with Malaysian authorities to return him to Bangladesh. The relentless persecution instigated feelings of guilt and vulnerability within his family. He said that his sister was called into the detective branch and faced veiled threats that she would lose her government job unless he stopped his online activism.

Finally, the case of Shafiur Rahman, a British–Bangladeshi journalist, further illuminates the scope of Bangladesh's repressive behavior to silence its critics under the Hasina regime. Rahman has spent his journalism career documenting rights violations against marginalized groups, including indigenous peoples in Bangladesh. Following the 2016 Rohingya exodus from Myanmar, Rahman developed a deep commitment to Rohingya refugee rights, publishing many investigative stories highlighting their persecution by Bangladeshi authorities and collaboration

between the Burmese junta and Bangladeshi intelligence agencies. His work made him a significant target; individuals he collaborated with faced intimidation, detention, and even torture. Rahman himself faced threats and felt compelled to avoid returning to Bangladesh due to security concerns. He continues his work from the UK and nearby countries.

These cases illustrate the Bangladeshi government's strategic and multifaceted use of transnational repression. By exploiting vulnerabilities exacerbated by exile and diaspora, destabilizing lives, and harassing families, the regime effectively aimed to silence many voices of dissent. Yet, amid this crackdown, several dissidents remain undeterred, steadfastly pursuing their mission to advocate for democracy and human rights and eventually they succeed. It should also be noted that the overarching theme in these cases is the systematic effort to dismantle courage and resilience among exiles and diaspora through sustained intimidation, legal harassment, and psychological warfare. These tactics were sophisticated and far-reaching, demonstrating a relentless pursuit to maintain control and silence opposition abroad.

Isolating and Silence Dissents

While many prominent Bangladeshi diaspora activists and journalists continue to resist the government's TNR, some have strategically chosen silence to safeguard themselves and their families. For instance, the case of Z, a Bangladeshi journalist and political commentator based in New York, is illustrative. After receiving threats from a former ruling party leader due to his coverage of vote rigging, Z relocated to New York to continue his activism through YouTube commentary and while establishing a digital marketing business to feed his family.

However, the government of Hasina, in concert with ruling party affiliates within the diaspora, launched a coordinated campaign to silence him. They pressured community members in New York not to patronize his business. Z reported losing significant business due to this campaign, describing how he was ostracized within the Bangladeshi community in New York and perceived as a "criminal" for his outspoken views. This social stigmatization took a severe mental toll on him. The pressure on Z also extended back to Bangladesh. Before the 2018 general elections, detectives visited Z's family home and threatened to jail them if Z did not stop his YouTube commentaries. Under immense family pressure, Z ceased his video commentaries for several years. However, he reignited

his activism before the 2024 elections, illustrating the cyclical nature of repression and resistance.

Similar patterns are evident among the Bangladeshi diaspora in the UK and Canada. The UK diaspora members believed that the Bangladeshi High Commission in the UK compiled a list of diaspora members actively involved in opposition politics, leading to several arrests at Dhaka airport. In Canada, the High Commissioner publicly declared that those spreading "anti-Bangladesh propaganda" would receive no consular services (Financial Express 2022). This created panic and silenced many critics. An example is R, a dual citizen and regular commentator in the British diaspora media. After being heckled at a public event by ruling party supporters and interrogated at the High Commission in London, R agreed to tone down his criticism to ensure he could visit Bangladesh without issues.

However, some individuals remain undeterred. J, an Australian citizen of Bangladeshi origin, works for an Australian government agency and is also an author. J's book, critical of Sheikh Hasina and her father, was banned by Bangla Academy in 2023. At that time, he received intimidating messages and threats online. His contacts in Bangladesh warned him that he would be arrested if he returned. Despite these threats, J continued his activism through writings, videos, and social media commentaries. His determination highlights the resilience and courage required to stand against authoritarianism, despite the isolation it brings. Similarly, Q, an academic and analyst based in Toronto, Canada, faced intense bullying and intimidation but persisted in his criticism of the ruling party. Supporters of the Bangladeshi ruling party in Canada and Bangladesh launched a campaign against him. He avoided Bangladeshi community events and became isolated from many relatives, who did not want to be associated with him publicly. At one point, Q said in an interview that Canadian authorities even advised him to report any security threats immediately. Despite being cut off from family and friends, Q remained steadfast in his activism, illustrating the sacrifices made by those who continue to speak out despite significant personal risks.

The former Bangladeshi government also utilized sophisticated cyber tactics to silence critics who are living in exile. By abusing the US copyright law, it managed to shut down the UK-based online newspaper *Daily Amar Desh*. Government agents set up fake websites to republish Amar Desh articles with backdated timestamps, filing false copyright claims to force hosting companies to disable the site (Bergman 2021). This tactic

created significant pressure, slowing down their operations. The use of such innovative legal manipulations underscores the regime's determination to stifle dissent through any means necessary. Another repressive tactic involves employing civilian contractors to hack Facebook profiles of opposition activists. The military intelligence agency DGFI's units—the Signal Intelligence Bureau (SIB) and the Public Relations Monitoring Cell (PRMC)—hired civilian contractors to conduct cyber-attacks. These contractors hack Facebook profiles, private messages, and launch fake abuse reports to restrict accounts of critics (Netra News 2020). These state-sponsored cybercrimes further isolated and silenced dissenters living in exile.

Analysis

Hasina's TNR efforts reflected a pattern: the targeting of exiles' fears, insecurities, and their family connections to undermine the sense of safety of the exiles. By weaponizing these vulnerabilities, the regime aimed to turn exiles into an extension of Bangladesh's domestic authoritarian grip. Families of exiles often bore the brunt of this strategy, subjected to harassment or surveillance, making even distant dissenters feel the regime's reach. This strategy reflected an evolving conception of statecraft among the former Bangladeshi ruler. Hasina's regime perceived Bangladesh as an emerging power capable of extending its reach beyond national borders. By leveraging technology, foreign law enforcement, and targeting families of exiles, the state followed in the footsteps of regional strongman India. However, this overestimation of her power backfired, and she had to flee from Bangladesh on August 5, 2024 against the backdrop of a peoples' uprising.

Globalization played a paradoxical role in this dynamic as it both facilitated and hindered Bangladesh's TNR ambition. On one hand, the government utilized spyware, surveillance technologies, and learned repressive tactics through international alliances. On the other hand, globalization empowered exiles to build robust networks using social media and encrypted communications, such as WhatsApp and Signal. These networks exposed the regime's brutal techniques and fostered global solidarity against repression (Ruud and Hasan 2024). The widespread knowledge of TNR's illegality fortified diaspora activism. During the 2024 student protests, the Bangladeshi diaspora staged global protests condemning government violence. In response, the Bangladesh Foreign

Ministry directed its foreign missions to identify protest organizers, fostering fear among some diaspora members. Yet, pushbacks emerged. A widely shared Facebook video advised Bangladeshi Americans to contact the FBI's transnational repression unit if threatened, showcasing a significant counteraction (Facebook Video 1 and 2, 2024a, b).

However, the psychological toll of TNR on exiles was hard to miss. Intimidation disrupted the sanctity of family ties—the bedrock of emotional security—leaving many exiles grappling with isolation and fear. For some, this disruption muted their public dissent temporarily, amplifying their vulnerabilities. Yet, repression had some unintended consequences. Repression on exiles often backfired, empowering many exiles to double down on their activism. Faced with threats, they became more security-conscious, built alliances, and amplified their dissent. This contrast between psychological vulnerability and resilient defiance underscores the complex dynamics and outcome of TNR. In the wake of Sheikh Hasina's fall, the legacy of her government's TNR will remain as a reminder of the lengths to which authoritarian regimes will go to silence dissent.

Conclusion

TNR under the Hasina regime is a curious case. It is curious because Bangladesh is a minor state with no significant leverage in global politics. Though domestically, it was able to assert hegemonic dominance over its local polity under the leadership of Sheikh Hasina, it did not mean that the government was able to assert its full control over Bangladeshi society. As Rudd and Hasan (2024) demonstrated, there has been a persistent demonstration of democratic resilience to push back Hasina's authoritarian outreach. It is also true that general people en masse did not take to the street in protest of Hasina's authoritarianism before the July uprising in 2024. That lack of reaction of the people gave a sense of false confidence to Sheikh Hasina's government. Perhaps, that shaped her ambition for TNR. However, the 2024 student protests and subsequent ouster of Hasina from the government had underpinned how fragile was the strong dictatorial edifice of Sheikh Hasina which she had carefully crafted in over a decade.

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CHAPTER 11

Afterword

Phil Robertson

There is a critical need for this book because it encapsulates a series of practices of transnational repression (TNR) that people have known about individually but never fully conceptualized as a cohesive system. We have always known separately about harassment, surveillance, and cases of people disappearing—what this book does is frame these actions as part of a broader authoritarian strategy known as transnational repression.

Therefore, I believe that this book will solidify our understanding of TNR which often goes unrecognized as a unified phenomenon. It's like the old saying: you can't see the forest for the trees. Everyone might notice the individual acts of harassment, surveillance, and extradition, but they don't always perceive the overarching system at play. TNR is the forest, and this book helps readers see it clearly.

The concept of TNR is becoming better understood among people in the know, especially in places like Bangkok, where I live and work. However, it hasn't yet reached a wider audience, and the term itself isn't widely recognized. Expanding the knowledge base around TNR is crucial. By defining and contextualizing it, like that was done with the concept

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of human trafficking in the 1990s, we can begin to develop systematic solutions to counter it.

Identifying and conceptualizing TNR as a system allows us to develop targeted, effective strategies to counter this authoritarian outreach, mitigating its impact on democratic societies. This book is essential in this regard—by shedding light on TNR as a systematic approach, it paves the way for informed, cohesive resistance against these repressive tactics.

It is also important to understand that TNR is not new. For example, Operation Condor in the 1980s was an early instance of TNR, where military governments in South America cooperated to target, arrest, and kill leftist activists. Although this wasn't labelled TNR at the time, it represented the kind of state-coordinated campaign this book addresses. So, it is long overdue for analysts and activists to catch up, and fully explore these incredibly abusive practices.

Rise in Transnational Repression: Recent Cases and Examples

I've been working on human rights issues in Southeast Asia, based in Bangkok, for over 30 years. I initially came to Thailand in the early 1990s, focusing on refugee-related work. Since then, my engagement has broadened to include labour issues, migrant worker rights, the protection of human rights defenders, and assisting those fleeing persecution across various countries.

One of the alarming trends I've observed over the last decade is the rise in TNR and how even non-political people are being targeted. For example, just a few days ago, we encountered a distressing case involving a domestic worker from Cambodia. She had posted a comment on Facebook calling the former prime minister of Cambodia, Hun Sen, a despicable person. This was noticed by someone in Phnom Penh and reported to the authorities, leading the Cambodian government to cancel her passport. Subsequently, the Cambodian embassy, in coordination with Malaysia's Ministry of Home Affairs and police, arrested her at her employer's residence. She was deported and is now imprisoned in Cambodia—all for one comment on social media. Why the Malaysian government of PM Anwar Ibrahim acquiesced to Cambodia's request is unclear, though it may involve diplomatic exchanges or favours. Regardless, this incident has devastated her life.

This example shows that TNR has evolved significantly over the years. Initially, it was primarily in the domain of major powers, such as the US with its post-9/11 renditions, and China's long-standing pursuit of dissidents, which intensified with the targeting of Uyghurs. Nowadays, a growing number of states, including Laos, Vietnam, Cambodia, Myanmar, and Malaysia, are participating in these repressive actions. Both single-party autocracies and ostensibly more democratic states have engaged in this practice. For instance, the Malaysian government aggressively pursued Nur Sajat, a prominent transgender social media influencer who had fled to Thailand, even after she received UNHCR refugee status. Fortunately, she resettled safely to Australia, but that was only after concerted diplomatic pressure on Thailand after they arrested her in Bangkok based on information provided by Kuala Lumpur.

It is very worrisome that there is an increase in the number of states willing to exert resources to silence dissenting voices abroad, reflecting a degree of impunity that governments apparently believe they have to engage in TNR.

Factors Contributing to Transnational Repression

Several factors are contributing to the rise in transnational repression. First, technological advancements have given activists and dissidents the ability to self-publish and broadcast their messages globally. For example, after the 2017 crackdown in Cambodia, many political activists who fled to Bangkok were able to set up sophisticated news broadcasting systems from their apartments, using platforms like Facebook Live to report news back into Cambodia daily. This ability to operate and broadcast independently poses a significant threat to regimes like Hun Sen's, who complained to Thai authorities about these broadcasts. Despite assurances, the Thai government initially took minimal action, leading to further diplomatic pressure from Cambodia, and ultimately direct action by Cambodian agents against dissidents living in Bangkok. An example is the attempted abduction of a leading Cambodian activist, Chamroeun Suon, at a 7–11 convenience store in Bangkok in December 2019 by two Cambodian men using tasers to subdue him and drag him into a waiting van.

Second, the digital age has enhanced the capacity for surveillance and repression. Governments now have greater capabilities to monitor and track dissidents, even across borders. These technological advances

facilitate more efficient and widespread repression, making it easier for authoritarian regimes to target and silence opposition beyond their immediate borders.

The China Factor

One major influence in the rise of the TNR is China, which has created a near-perfect system of social control, including the Great Firewall and mechanisms to monitor their diaspora through United Front structures. Sadly, this model of control is appealing to other authoritarian governments. For instance, both Vietnam and Cambodia are troubled by the large diasporas in the US, Europe, and Australia, many of whom oppose the government. While these two governments can't silence all dissidents, they focus on key ringleaders, harassing, intimidating, and attempting to control them.

A recent example of repressive tactics is the unjust arrest of Mech Dara, a senior investigative journalist in Cambodia. He's known for exposing the so-called "pig butchering" scam centres operating with impunity in Cambodia. The Cambodian government accused him of incitement to commit a felony based on questionable evidence, essentially a made-up charge. He now faces pre-trial detention, followed by a trial that could result in a two-year sentence. By going after him in this way, the Cambodian government wants to remove him from circulation and perhaps ultimately force him into exile.

China's effective suppression of internal and external opposition serves as a model for countries like Cambodia. They view the elimination of critical civil society activists and groups as beneficial, reducing criticism that officials face for actions like land seizures and resource exploitation that dispossess and disrupt local communities.

Unfortunately, the expansion of TNR practices in the region is coming just as the so-called "like-minded" governments in North America, Europe, and elsewhere—who stress their commitment to protecting human rights and good governance, and typically challenge such practices—have become distracted, more regressive, and more insular. For instance, in 2017, Donald Trump's administration in the US adopted a trade-focussed foreign policy that effectively discarded human rights advocacy, giving governments like Thailand, Vietnam, Cambodia, and others the opportunity to crackdown on their dissidents at home and abroad. More recently, under President Biden, the US has increasingly

prioritized engagement with governments to build a wider, anti-China bloc—thereby creating competition between geopolitical imperatives and rights concerns. Too often, as seen in Vietnam, the latter is being shunted aside by US policymakers.

It's important to understand that pre-2017, the US played a crucial role in promoting human rights in the Asia-Pacific region. That role is arguably diminished now, and that's unfortunate because when the US takes a stand, it has the capacity to galvanize a wider response of "like-minded" governments and facilitates coalition-building on key human rights issues and cases with the EU and its member states, Canada, the UK, Australia, New Zealand, and others, thereby creating pressure for different outcomes.

Regional and Geopolitical Dynamics: Thailand's Role and Actions

There are unique dynamics at play in Asia, particularly in Southeast Asia, where Thailand has become a geopolitical hub for transnational repression (TNR). Although TNR is not exclusive to this region—Russia is notably active in TNR across the UK and Europe—the tactics and geopolitical nuances vary.

For instance, the case of the famous Russian band Bi-2, which was performing in Phuket in January 2024, illustrates this. Following Putin's invasion of Ukraine, the band members of Bi-2 left Russia and became vocal opponents of the ongoing war there. The band was playing concerts around the world, and spreading their anti-Ukraine war message. Upon receiving information that the band members had entered Thailand on incorrect visas and thus did not have legal work authorization, Russia's Phuket consulate coordinated with local immigration for their detention after they finished playing a concert. Russia argued that Thailand must send the band members back to Russia, where they would face likely arrest for their activities. A coalition of governments, led by the US and Israel (since several band members held Israeli passports), intervened to pressure Thailand to find an alternative to returning them to Russia. Finally, after a week of the case being in the headlines and much diplomatic manoeuvering, Thailand deported all the band members to Israel. While ostensibly a win against TNR tactics, Russia had shown it could reach far afield, reflecting its broader strategy to harass, intimidate, and seek

to silence overseas critics, even when forcing their return to Russia isn't possible.

Thailand has long been a notable refuge for displaced individuals due to the expanse of Bangkok, along with the ability to hide in the megalopolis' nooks and crannies, relatively low costs for food and other essentials, and frequently disinterested and ineffective law enforcement. However, after the National Council for Peace and Order (NCPO) military junta seized power in 2014, there was a disturbing expansion in the scope and scale of transnational repression. During the tenure of Prime Minister Gen. Prayut Chan-o-cha and Deputy Prime Minister Gen. Prawit Wongsuwan, Thailand significantly intensified cooperation with other authoritarian countries interested in targeting asylum seekers and refugees from their countries who had fled to Thailand. This period saw an openness to forcing back individuals, including mainland Chinese, ethnic Uyghurs, and Vietnamese. The 2015 deportation of 109 Uyghur men and boys, handcuffed and hooded in the custody of Chinese police, on a plane back to China is a notable example. None of those Uyghurs were ever seen again. A similar case was the protracted effort by Thailand to force football player Hakeem al-Araibi back to Bahrain despite the fact that he was an Australian refugee just months from citizenship. But in that case, international pressure turned out to be too much, and Thailand had to backtrack, release him, and let him return to Australia.

In addition, members of Cambodia's political opposition increasingly sought refuge in Thailand following Prime Minister Hun Sen's massive crackdown in 2017 that saw the dissolution of the opposition Cambodia National Rescue Party, and persecution of activists in the lead-up to the rigged 2018 national election. Cambodian state security actively cooperated with the Thai government in hostile monitoring and surveillance of Cambodian exiles, and ultimately several UNHCR recognized refugees were arrested and forced back to Cambodia before international pressure mounted to get Thailand to stop these refoulements. The situation deteriorated further following Myanmar's 2021 military coup, leading to a surge of political refugees entering Thailand. The presence of Myanmar's military and intelligence apparatus within Thailand exacerbates the climate of fear among these refugees, who face the constant threat of detention and forced repatriation.

Living as a refugee or asylum seeker in Thailand is fraught with danger, as the principles of refugee protection and human rights are frequently disregarded. Under PM Gen. Prayut and Deputy PM Gen. Prawit, the

Thai government often negotiated deals to force back refugees, allegedly involving financial incentives and political favours.

In response to the significant increase of TNR practiced by the Prayut/Prawit governments, local, regional, and international NGOs built coalitions capable of tracking cases, responding rapidly to generate international political pressure when refugees were detained. These coalitions strengthened their partnerships with UNHCR and the UN Office of the High Commissioner for Human Rights (OHCHR). Such rapid response interventions have proved critical in efforts to counteract transnational repression moves, and swiftly and effectively respond when individuals are at immediate risk of being sent back.

Because of increased practice of TNR, the landscape for human rights and refugee protection has grown increasingly complex and difficult. More players are involved, and the speed with which these cases occur demands vigilance and rapid response to protect vulnerable individuals. Activists opposing TNR also must contend with state actors using various methods to detain and extradite individuals, including active collaboration with Thai authorities in surveillance leading to arrest, or more passive Thai involvement, essentially looking the other way. In the case of UNHCR-recognized refugee Doung Van Thai, it's clear that Vietnamese state agents snatched him off the street in daylight hours in Pathum Thai province, as he was returning home on his motorcycle, and dragged him back to Vietnam. Thai security officials later claimed this was an unauthorized operation and launched an investigation, but there was no public outcome to that inquiry. A Vietnamese court sentenced Doung Van Thai to 12 years in prison on October 30, 2024, for issuing "propaganda" against the Vietnamese state.

A prominent case illustrating this dynamic is that of Hakeem al-Araibi, an Bahraini footballer and recognized refugee in Australia who was detained upon arrival in Thailand, allegedly due to a coordinated effort between Bahrain and Thailand. Bahrain appeared well-informed about his travel plans, likely from Australian sources. Only after a massive international campaign that involved many of the "like-minded" governments, and the intervention of the global football association, FIFA, did Thailand buckle and agree to send al-Araibi back to Australia. Ultimately, Thai Foreign Minister Don Pramudwinai had to fly on an urgent mission to Bahrain to inform the government there that Thailand had to renege on the plan to return al-Araibi.

Furthermore, the close ties between Cambodia and Thailand, especially under former Prime Minister Hun Sen and the Shinawatra family, have raised additional concerns. Hun Sen has issued orders to Cambodian state agents operating in Thailand to apprehend dissidents like Phorn Phanna in Thailand.

Overall, these examples underscore the intricate and evolving nature of TNR in Southeast Asia. The need for a coordinated, increasingly vigilant approach to protect human rights and uphold international law is more urgent than ever.

How to Combat TNR?

In the immediate to mid-term, several critical areas demand focussed attention. We must build stronger networks of NGOs, international organizations, and governments dedicated to defending human rights. Specifically, in Thailand and other countries in Southeast Asia, we have witnessed the effectiveness of coalition efforts—when NGOs, diplomats, and UN agencies unite to counter attempts to silence dissidents. While not always successful, these collaborations are essential to have any hope of success in the fight against TNR. As authoritarian governments become more sophisticated, civil society responses must be more coordinated and strategic.

One key area requiring urgent attention and reform is the Interpol Red Notice system. Although Interpol rules currently prohibit red notices being issued by a government against refugees who have fled repression by that government, enforcement remains lax. Systematically reforming this system to ensure transparency and accountability would be a significant step forward. Targeted reforms like this can yield crucial precedents and encourage broader systemic changes.

Moreover, international cooperation is indispensable. Immediate measures could include creating UN instruments or declarations aimed at further defining and combating TNR, thereby providing a clear framework for nations to follow. Developing rapid response systems, akin to what we have established in Bangkok, is critical. This involves assembling a coalition of the willing, operating in a network of NGOs, diplomats, UN personnel, and other stakeholders capable of mobilizing swiftly when a TNR case arises. Such networks must communicate effectively, often via secure channels like Signal groups, to share information and coordinate interventions that prevent forced returns, pressure for immediate

releases, and organize third-country resettlement, if required. Though labour-intensive, this approach is crucial in preventing the disappearance or forced return of targeted individuals.

Beyond these efforts, strengthening international frameworks to protect dissidents is imperative. This might involve creating new international laws or conventions specifically addressing transnational repression and outlining host governments' responsibilities, supplementing the existing protections for asylum seekers and refugees against refoulement. Countries hosting dissidents must be held accountable for protecting these individuals and ensuring they are not returned to face persecution.

The fight for democracy and human rights is at a critical juncture. We have seen a troubling rise in authoritarianism and populism in recent years, not just in Southeast Asia but also in countries like the US and parts of Europe. The return of leaders like Donald Trump or the ascendancy of populist movements in Europe could embolden authoritarian regimes worldwide.

However, history shows that waves of authoritarianism do not last forever. Democracy has a resilience that allows it to rebound. Look at Sri Lanka or even Bangladesh—situations that seemed entrenched can change unexpectedly. Our key objective is to remain vigilant and persistent in our efforts. Authoritarianism is often fragile, relying heavily on the power and influence of a single leader. Once that leader is gone, the system often begins to unravel.

The international community should concentrate on building resilient democratic institutions and strong international coalitions. The global fight for human rights is interconnected; events in one country can have a ripple effect elsewhere. Therefore, defending human rights globally is not just a regional concern but a universal imperative. It is about upholding the principles of democracy, transparency, and accountability wherever they are under threat.

In summary, while the landscape for TNR presents significant challenges, there is a path forward that focuses on essential reforms, leverages technology, and constructs robust, rapid response networks. The fight against TNR requires collective awareness and coordinated action to protect dissidents and recognize their rights. By remaining vigilant and ready to act, and utilizing civil society networks to support those at risk, we can make a meaningful difference in this ongoing struggle.

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Correction to: China's Transnational Repression (CTR) on Uyghur Diaspora and Its New Forms

Dilnur Reyhan

Correction to:
Chapter 7 in: M. Hasan and A. E. Ruud (eds.), *The Long Reach of the Strong Arm: Evolving Forms of Transnational Authoritarianism*, https://doi.org/10.1007/978-3-032-04940-7_7

In the original version of this book, the following belated corrections have been incorporated: In chapter "China's Transnational Repression (CTR) on Uyghur Diaspora and Its New Forms", the affiliation "Oriental Institute of the Czech Academy of Sciences, Paris, France" of the author "Dilnur Reyhan" has been changed to "Oriental Institute of the Czech Academy of Sciences, Prague, Czech Republic". Also funding statement has been included at the end of the chapter. The book and the chapter have been updated with the changes.

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